

The Bihar Motor Vehicles Rules, 1992

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State of Bihar - Act

The Bihar Motor Vehicles Rules, 1992

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The Bihar Motor Vehicles Rules, 1992

Rule THE-BIHAR-MOTOR-VEHICLES-RULES-1992 of 1992

Published on 5 December 1992

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The Bihar Motor Vehicles Rules, 1992

Published vide Notification No. G.S.R. 44, dated the 5th December, 1992

(Corrected by Memo No. 15817 dated 23.9.1993)

G.S.R. 44, dated the 5th December, 1992. - In exercise of the powers conferred by Sections 28, 38, 65, 95, 96, 107, 111, 138, 159, 176 and 211 of the Motor Vehicles Act, 1988 (Act 59 of 1988). The Government of Bihar is pleased to formulate the following Bihar Motor Vehicle Rules, 1992, having got no suggestions as to the previously published notification through G.S.R. No. 28, dated 6th July, 1992.

Chapter-I Preliminary

1.

Short title, application and commencement.

- (i) These Rules may be called the Bihar Motor Vehicles Rules, 1992.

(ii)

They shall come into force at once.

(iii)

They shall, save as otherwise expressly provided, apply to, and in relation to, all motor vehicles in the State of Bihar.

2.

Definition.

- In these Rules, unless, the context otherwise requires. -

(a)

'Act' means the Motor Vehicles Act, 1988 (59 of 1988).

(b)

'Rule' means the Bihar Motor Vehicles Rules, 1992.

(c)

'Section' means a section of the Act.

(d)

'Passenger' means any person travelling in a public service vehicle other than the driver or the conductor or an employee of the permit holder while on duty.

(e)

'Form' means a form as set forth in the schedule appended to these Rules.

(f)

'State' means the State of Bihar.

(g)

'District Transport Officer' means any officer appointed as such by the State Government and it includes Additional District Transport Officer.

(h)

'Motor Vehicle Inspector or Inspector of Motor Vehicles' means any officer appointed as such by the State Government to perform the functions of Motor Vehicle Inspector. Motor Vehicles Inspector includes an officer having the requisite qualifications and authorised by the State Government to perform the functions of the Motor Vehicles Inspector. Motor Vehicles Inspector includes Assistant Motor Vehicles Inspector.

(i)

'Deputy Transport Commissioner/Assistant Transport Commissioner' means any officer appointed as such by the State Government for any area to perform the function of Secretary, Regional Transport Authority and it includes the Regional Transport Officer and the Asstt. Regional Transport Officer.

(j)

'State Transport Commissioner' means any officer appointed as such by the State Government to perform the function of Director of Transport under the Act and the rules made thereunder.

(k)

'Joint State Transport Commissioner'/Deputy State Transport Commissioner's/Asstt. State Transport Commissioner's' means any officer appointed as such by the State Government to perform the functions of Joint Transport Commissioner/Dy. Transport Commissioner/Asstt. Transport Commissioner under the Act.

Chapter II

Licensing of Drivers of Motor Vehicles

3.

Licensing Authority.

- The District Transport Officer shall be the Licensing Authority.

4.

Testing Officer.

(1)

Licensing Authority, the Motor Vehicle Inspector or any officer not below the rank of the Inspector of Police or the Sergeant Major nominated by the Licensing Authority, shall be the Testing Officer for the purpose of a test under sub-section (5) of Section 8 and sub-section 3 of Section 9 of the Act:

Provided that it shall be lawful for the Licensing Authority or any person nominated by it in that behalf to have more than

one test.

(2)

Every application for a test to obtain a learner's licence, driving licence or an authorisation to drive transport vehicle, shall be made in Form P.C.A.T. and shall be accompanied by the fee specified in Rule 6 of these Rules or in Rule 32 of the Central Motor Vehicles Rules, 1989, as the case may be.

(3)

Subject to the provisions of sub-section (6) of Section 9 the applicant shall furnish serviceable vehicle and present himself for the test at such time and place as may be specified by the Testing Officer concerned.

5.

Appellate Authority.

- The authority empowered to hear appeals against the orders of the Licensing Authority refusing to issue any learner licence or to issue or renew any driving licence or to and a class or description of Motor Vehicle to any driving licence or revoking any driving licence under provisions of Section 14 of disqualifying the holder from holding or obtaining driving licence or revoking such licence under the provision of sub-section (1) of Section 19 shall be District Magistrate.

6.

Fees payable under Chapter-II of the Act.

- The fees to be paid under Chapter-II of the Act shall be-

(i)

In respect of such test for grant of learner's licence, under Rule 4, twenty rupees,

(ii)

in respect of grant of driving licence, fifty rupees,

(iii)

in respect of a replacement of photograph on a licence, under Rule 12, ten rupees,

(iv)

in respect of duplicate driving licence under Rule 13, thirty rupees,

(v)

in respect of a test for grant of authorisation, under Rule 18, twenty rupees,

(vi)

in respect of an appeal under Rule 20, thirty rupees,

(vii)

in respect of each copy of any document, under Rule 20, twenty rupees,

(viii)

in respect of every copy of particulars of driving licences, under Rule 21, ten rupees, and

(ix)

fee payable for issue of Medical Certificate under sub-section (3) of Section 8 shall be Rs. 10/-.

7.

Exemption from payment of fees.

(1)

The State Government may, by general or special order, exempt, totally or partially, any person or class of persons, from payment of all or any portion of the fees payable under Chapter-1 of the Act.

(2)

(a)

The persons employed in the service of the State Government for driving motor vehicles.

(b)

The Ex-service persons on production of a certificate of proficiency in driving a motor vehicle from an officer in the Armed Forces of the Union.

(c)

Sub Diplomatic Officers or Consular Officers as the State Government may, by general or special order specify in this behalf, shall be exempted from the fees payable for the test of competence to drive, issue or renewal of learner's licences, the issue or renewal of driving licence, and the test for issue of learner's licence.

8.

Form of communication.

- The Licensing Authority shall communicate with another Licensing Authority in Form D.I. COM for the purpose of intimation-

(a)

The addition of other class or description of motor vehicle, under Section 11, or

(b)

the renewal of a driving licence under Section 15, or

(c)

the revocation of a driving licence, under Section 16, or

(d)

the revocation of a driving licence or the disqualification of a holder of a driving licence, under Section 19, or

(e)

the endorsement of a sentence of imprisonment on a driving licence, under Section 24, or

(f)

the replacement of a photograph, under Rule 12, or

(g)

the change of address, under Rule 14, or

(h)

the grant of authorisation to drive a transport vehicle, under Rule 18.

9.

Power to make enquiries of applicant for driving licence.

- The Licensing Authority may make such enquiries as may reasonably be necessary, to establish the identity of the applicant and to ascertain that the applicant is not disqualified for holding or obtaining a driving licence.

10.

Automobile Associations recognised for issue of a driving certificate.

- The State Government recognises the following automobile associations for the purpose of proviso to sub-section (3) of Section 9, namely:-

(1)

The Western India Automobile Association

(2)

The Automobile Association of Southern India

(3)

The Automobile Association of Eastern India

(4)

The Automobile Association of Upper India

(5)

The Uttar Pradesh Automobile Association

11.

Seal on the photograph.

- The photograph of the holder when affixed to any learner's licence issued under Chapter-II of the Act, shall be sealed with a seal of the licensing authority in such a manner that the part of the impression of the seal is upon the photograph part on the margin in the licence.

12.

Replacement of the photograph.

(1)

Where, at any time, it appears to a Licensing Authority that the photograph affixed to any licence issued under Chapter-II of the Act has ceased to be a clear likeness of the holder the licensing authority may require the holder to surrender the licence forthwith, and to furnish two clear copies of a recent photograph of himself and the holder shall, within such time as the Licensing Authority may specify, appear in person before the Licensing Authority and present the photographs accordingly.

(2)

Where the holder fails to comply with such requisition made by the licensing authority, the licence shall cease to be valid on the expiry of the said period.

(3)

Where, at any time, a holder of a licence so desires, a Licensing Authority may replace the photograph on his licence by a recent photograph of himself.

(4)

Upon the receipt of the copies of photograph as provided in sub-rule (1) or sub-rule (3) the Licensing Authority shall remove the old photograph from the licence, and shall affix and seal thereto one copy of new photograph and note the date of such replacement, and return the licence to the holder, and shall, if it is not the Licensing Authority by which the licence was issued; forward the second copy of the photograph to that authority.

(5)

The fee, for replacing a photograph under this rules, is provided in Rule 6 and shall be paid alongwith the photograph and application.

13.

Issue of duplicate driving licence.

(1)

Where at any time any driving licence is lost, destroyed, torn, defaced or mutilated the holder shall forthwith report the matter to the original Licensing Authority and shall apply for issue of a duplicate licence, in Form L.L.D. alongwith the fee prescribed under Rule 6 and, where a photograph is required to be affixed to a duplicate licence, two clear copies of a recent photograph of himself.

(2)

Upon the receipt of such report the Licensing Authority shall, after making such enquiries as it may think fit, if satisfied that a duplicate may properly be issued, issue a duplicate licence duly stamped 'Duplicate' in red ink and the date of issue of the duplicate:

Provided that where subsequent to the issue of a duplicate licence, it is found that there has been an endorsement by a Court since the date of the grant of or last renewal of the licence, it shall be lawful for the licensing authority to call for the duplicate licence and make the necessary endorsement thereon.

(3)

Where a duplicate licence has been issued upon representation that a licence has been lost, and the original licence is afterwards found or received by the holder, the holder shall immediately return the duplicate licence to the issuing authority.

(4)

If, at any time, it appears to a Motor Vehicles Inspector or to a licensing authority that a driving licence held by any person is so torn, defaced or mutilated in any way as to cease to be reasonably legible, such Motor Vehicle Inspector or the authority may, by order in writing, impound the driving licence and require the holder, to obtain a duplicate driving licence.

14.

Change of address.

(1)

If the holder of a driving licence ceases to reside or have his place of business at the address recorded in the driving licence, he shall, within thirty days of any such change of address, intimate his new address, to the licensing authority by which the licence was issued, and, if the new address is within the jurisdiction of another licensing authority, to that other Licensing Authority.

(2)

Upon the receipt of such intimation, if it is not the Licensing Authority by which the licence was issued, the licensing authority shall intimate the change of address to that authority.

15.

General duties, functions and conduct of drivers of transport vehicles.

- The driver of a transport vehicle:-

(a)

shall not cause or allow any person, animal or thing to be placed or to be in the space reserved for the driver's seat or

otherwise, in such a way as to impede him in having a clear vision of the road or proper control of the vehicle;

(b)

shall not knowingly drive the vehicle when there is not sufficient fuel in the vehicle to enable him to reach the next fuel pump on the route;

(c)

shall not loiter or unduly delay upon any journey but shall proceed to the destination with all reasonable despatch;

(d)

shall, at all times, exercise all reasonable care and diligence to maintain the vehicle in a fit and proper condition and shall not knowingly drive the vehicle when the vehicle or any brake, tyre or lamp thereof is in a defective condition likely to render the driving of such vehicle a source of danger to persons and vehicles using such place;

(e)

shall behave in a civil and orderly manner towards passengers, intending passengers or the hirer of the vehicle;

(f)

shall take all reasonable precautions to prevent the goods or the luggage, from being spoiled or lost, on the way;

(g)

shall, as far as may be reasonably possible having regard to his duties, be responsible for due observance of the provisions of the Act and the rules made thereunder.

16.

Additional duties, functions and conduct of drivers of public service vehicles.

- The driver of a public service vehicle:-

(a)

shall not smoke while on duty,

(b)

shall be cleanly dressed and in the manner specified by the State Government. Provided that when drivers of such vehicles are or are likely to be called upon to perform duties in an emergency or to receive training, the State Government may, by general or special order, exempt such drivers from the operation of this clause for such period as may be specified in the order.

(c)

shall maintain the vehicle in a clean and sanitary condition during its use in a public place.

(d)

shall, in the event of the vehicle being unable to proceed to its destination on account of mechanical break down or other cause beyond his control, arrange to convey the passengers to their destination in some other similar vehicle, or, if unable to arrange within a period of an hour after the failure to proceed to the destination, shall on demand, arrange to refund to passengers a proper portion of the fare relating to the completion of the journey for which the passengers had paid the fare.

(e)

shall see that no passenger smokes in the vehicle when the same is being filled up with fuel.

(f)

shall, at the conclusion of every journey, make reasonable search in the vehicle for anything left by any passenger and shall take into his custody anything as found and shall, as soon as may be convenient, handover the same to the officer-in-charge of the nearest police station or the permit holder.

(g)

shall, subject to any rules or regulations in force prohibiting the taking up or setting down of passengers at or except at certain specified places, bring the vehicle to rest for a sufficient period of time in a safe and convenient position upon the demand or signal of the conductor or of any passenger.

17.

Temporary authorisation in lieu of a License.

(a)

When the holder of a licence has submitted the licence to a licensing or other authority for renewal, or for obtaining an authorisation to drive a public vehicle, and has deposited the prescribed fee, or when any Court or other competent authority or a police officer, otherwise than under sub-section (2) of Section 206 has taken temporary possession of a

licence for any purpose and the licence has not been suspended or cancelled the licensing or other authority, or the police officer or the Court or other competent authority, as the case may be, shall on demand by the holder, furnish him with a receipt for the licence and temporary authorisation to drive, in Form L. Tern. During such period as may be specified in Form L.Tern. the production thereof on demand shall be deemed to be production of the licence.

(b)

Until the licence has been returned to the holder, he shall not be entitled to drive a motor vehicle (without being in possession of his licence) beyond the period specified in the temporary authorisation as aforesaid:

Provided that the authority, Court or police officer by which the temporary authorisation aforesaid was granted, may, in its or his discretion by order in writing, endorsed thereon, extend the period for which the temporary authorisation is valid.

(c)

No fee shall be payable in respect of such temporary authorisation.

18.

Grant of authorisation to drive a transport vehicle.

(1)

No person shall drive a transport vehicle unless an authorisation in the driving licence shall have been granted by the Licensing Authority.

(2)

No person shall hold more than one authorisation to drive a similar kind of public service vehicle.

(3)

No authorisation to drive a transport vehicle shall be granted unless the applicant satisfies the Licensing Authority that:-

(a)

he has adequate knowledge of the provisions of the Act and the Rules made thereunder relating to duties, functions and conduct of drivers of transport vehicles to which the application refers,

(b)

he possesses a good moral character, and

(c)

he possesses minimum educational qualification that may be prescribed by the Central Government in this behalf.

(4)

The holder of a driving licence may at any time apply to the licensing authority in Form T.V.A. for the grant of authorisation to drive a transport vehicle, such application shall be accompanied by:-

(a)

a report of moral character obtained from the police station of the area in which the applicant resides,

(b)

a proof of educational qualification as may have been, prescribed by the Central Government under sub-section (4) of Section 9, and

(5)

If the Licensing Authority is satisfied that the applicant is in all respect fit to be granted an authorisation to drive a transport vehicle, the driving licence shall be endorsed accordingly. The licensing authority shall then return the driving licence to the applicant thereof, and at the same time, if the driving licence was issued by another licensing authority, send an intimation to such licensing authority. The licensing authority shall refuse to grant or countersign the authorisation if it finds that the applicant is not a fit and proper person to be entrusted with the safe carriage of passengers and their personal luggage or of goods.

19.

Badges of drivers of public service vehicles.

(1)

Driver of a public service vehicle shall display on his left chest a badge, in the form illustrated in the Second Schedule appended to these Rules, inscribed with the particulars specified in the said schedule.

(2)

No driver of a public service vehicle shall display the badge held by him if the authorisation to drive such vehicle is suspended or revoked by any authority or if his driving licence has ceased to be valid by efflux of time.

20.

Manner of appeals.

(1)

An appeal under Rule 5 shall be preferred in duplicate in the form of a memorandum, setting forth concisely the grounds of objection to the order against which the appeal is preferred and shall be accompanied by a certified copy of that order and the fee prescribed under Rule 6.

(2)

Any person preferring an appeal shall be entitled to obtain a copy of any document filed with the licensing authority and connected with the order against which he is preferring the appeal, on payment of the fee prescribed under Rule 6.

(3)

The Appellate Authority may give any person interested in the appeal, a copy of any document connected with the appeal, on payment of the fee prescribed under Rule 6.

(4)

When an appeal is lodged, a notice shall be issued to the authority against whose order the appeal is preferred in such form as the appellate authority may direct.

(5)

The appellate authority, after giving an opportunity to be heard, and after such further enquiry, if any, as it may deem necessary, may confirm, vary, or set aside the order against which the appeal is preferred, and shall make an order accordingly.

21.

Supply of copies of particulars of driving licence.

- A licensing authority may in its discretion supply copies of particulars of driving licence issued by it, to any person who may apply for the same alongwith a fee prescribed under Rule 6.

22.

Exemption of drivers of road-rollers.

- Provisions of Chapter-II of the Act shall not apply to the drivers of road-rollers.

23.

Maintenance of State Register of Driving License.

(1)

Every Licensing Authority shall furnish a monthly report in duplicate, containing particulars required in the form of State Register of Driving Licenses, prescribed by the Central Government, to the State Transport Commissioner, within ten days of the succeeding each month.

(2)

The State Transport Commissioner shall forward a quarter's compiled report in duplicate, of particular received from all the licensing authorities, to the Director (Transport-Research) Ministry of Surface Transport, New Delhi within fifteen days of the succeeding month after the concerned quarter.

(3)

Notwithstanding anything contained in sub-rules (1) and (2) the State Government may from time to time issue directions to the licensing authorities or the State Transport Commissioner for the purpose of carrying into effect the provision of Section 26.

(4)

The State Transport Commissioner shall forward a compiled report in duplicate of the reports received from all the licensing authorities to the Ministry of Surface Transport, Government of India within 15 days of the succeeding month after a succeeding quarter.

Chapter-III Licensing of Conductors of State Carriages

24.

The Licensing Authority.

- The District Transport Officer shall be the Licensing Authority.

25.

Appellate Authority.

- The authority empowered to hear appeals against the orders of Licensing Authority refusing to issue or renew any

conductor's licence or revoking any conductor's licence, or disqualifying the holder from holding or obtaining a conductor's licence under the provisions of sub-section (1) of Section 34, shall be District Magistrate of the District in which the aggrieved person ordinarily resides.

26.

Fees payable under Chapter-III of the Act.

- The fees to be paid under Chapter-III of the Act shall be-

(i)

In respect of a test for grant of conductor's licence, under Rule 30, twenty rupees.

(ii)

In respect of grant of conductor's licence, thirty rupees.

(iii)

In respect of issue of a badge or its replacement under Rule 31, twenty rupees.

(iv)

In respect of replacement of photograph on conductor's licence, under Rule 34, ten rupees.

(v)

In respect of duplicate conductor's licence, under Rule 35, twenty rupees.

(vi)

In respect of appeal under Rule 37, twenty rupees.

(vii)

In respect of each copy of any document, under Rule 37, twenty rupees.

27.

Form of communication.

- The Licensing Authority shall communicate with another Licensing Authority in Form C. L. Com., for the purpose of intimating. -

(a)

the renewal of a conductor's licence,

(b)

the revocation of conductor's licence,

(c)

the disqualification of a holder of a conductor's licence,

(d)

the replacement of a photograph on a conductor's licence, and

(e)

the change of address.

28.

Restrictions on the holding of conductor's licence.

- No person shall hold more than one conductor's licence.

29.

Duties, functions and conduct of conductor's of stage carriage.

- The conductor of a stage carriage:-

(a)

Shall not loiter or unduly delay upon any journey but shall proceed to the destination in accordance with the time table pertaining to the trip-

(b)

Shall not smoke while on duty.

(c)

Shall not interfere with persons mounting or preparing to mount upon any other vehicle.

(d)

Shall not allow any person to be carried in the vehicle in excess of the seating capacity specified in the certificate of registration of the vehicle, and any additional number of passengers permitted to be carried standing under the terms of the permit.

(e)

Shall not, save for good and sufficient reason, refuse to carry any person tendering the legal fare:

Provided that this clause shall not apply to any Government servant or class of Government servants on duty, as the State Government may, time to time, by notification in the Official Gazette, specify in this behalf.

(f)

Shall not cause or allow anything to be placed in the vehicle in such a manner as to obstruct the entry or exit of passengers.

(g)

Shall not, save for good and sufficient reason, require any person who has paid the legal fare to alight from the vehicle, before conclusion of the journey.

(h)

Shall not be under the influence of any intoxicating drink or of a drug, while on duty.

(i)

Shall behave in a civil and orderly manner towards passengers and intending passengers.

(j)

Shall take all reasonable precautions to prevent the goods or the luggage, from being miscarried spoiled or lost, on the way.

(k)

Shall be cleanly dressed and in the manner specified by the State Government Provided that nothing in this clause shall apply to persons lawfully working as conductors in accordance with Rule 38.

(l)

Shall maintain the passenger's compartments in a clean and sanitary condition during its use in a public place.

(m)

Shall in the event of the vehicle being unable to proceed to its destination on account of mechanical break down or other causes beyond his control, arrange to convey the passengers to their destination in some other similar vehicle, or, if unable to arrange within a period of an hour after failure to proceed to the destination, shall on demand, refund to each passenger a proper proportion of the fare relating to the completion of the journey for which the passenger had paid the fare.

(n)

The conductor of a public vehicle or where there is no conductor, the driver shall at the conclusion of every journey make reasonable search in the vehicle for anything left by any passenger and shall take into custody anything so found and upon the first reasonable opportunity make over the same to a responsible person at any office or station of the holder of the permit of the vehicle or to an officer at a police station.

The responsible person at any office or station of the holder of the permit of the vehicle shall enter in a register duly page numbered (specially maintained for the purpose), the date trip, full particulars of the property found, its estimated value, to whom it was to be returned or delivered and signature of the person receiving the same and keep these articles lying with him in case of perishable goods for a period of 2 days and in case of other goods for a period of one month and if during that period nobody tries to claim them, the property shall be deposited at the nearest police station as unclaimed property.

If during the aforesaid period the claimant of the articles appear then after verification of the claim the articles may be handed over to him by the responsible person at the office or station of the holder of the permit of the vehicle.

(o)

The conductor of a transport vehicle, and where there is no conductor, the driver of such vehicle shall in the event of the vehicle approaching an unmanned railway crossing cause the vehicle to be stopped or stop it, as the case may be, and shall get down and see the railway track on both side to make sure that the way is clear before the vehicle crosses railway track.

(p)

Shall, supply a ticket to a person travelling in the vehicle on the payment of fare by such person.

(q)

Shall, where goods are carried on the vehicle in addition to passengers, take, all reasonable precaution to ensure that passengers are not endangered or inconvenienced by presence of the goods.

(r)
Shall, issue a ticket immediately, on payment of legal fare or freight by the passengers.

(s)
Shall on demand by any passenger, produce the complaint book for recording such complaints as the passengers may desire to record therein.

(t)
Shall, as far as may be reasonably possible, having regard to his duties, be responsible for the due observance of the provisions of the Act and the Rules made thereunder.

30.
Grant of conductor's licence.

(1)
No person shall be granted a conductor's licence unless he satisfies the licensing authority that:-

(i)
he has adequate knowledge of the provisions of the Act and Rules made thereunder relating to the duties and functions of a conductor.

(ii)
the applicant possesses a good moral character.

(iii)
the applicant possesses a valid Adult First Aid Certificate issued by Registered Medical Practitioner to show that he is qualified to use the first aid box.

(iv)
He has passed the Middle School Examination or any equivalent examination:
Provided that nothing in this clause shall apply to any person who is in possession of a conductor's licence immediately before these rules come into force.

(2)
An application for a conductor's licence shall be made in Form L. CON. A. Such application shall be accompanied by:-

(a)
a proof of age and educational qualification,

(b)
a valid Adult First Aid Certificates issued by any Registered Medical Practitioner,

(c)
a medical certificate in Form M. C. CON. issued by a registered medical practitioner having a minimum qualification of bachelor's degree in medicine and surgery ordinarily known as M.B.B.S. and practicing in the State of Bihar and containing the following particulars:-

(i)
name and address in brief,

(ii)
the name of the clinic, if any,

(iii)
telephone no., if any,

(iv)
medical qualification, and

(v)
registration number,

(d)
a report of moral character obtained from the police station of the area in which the applicant resides,

(e)
three copies of recent photographs, of a size not more than 50 mm by 60 mm, taken from the front,

(f)
a fee for test, prescribed under Rule 26: Provided that the licensing authority may decline to accept the aforesaid report or the medical certificate, granted more than one month before the date of application.

(3)

A Motor vehicle Inspector/Asstt. Motor Vehicle Inspector and any officer not below the rank of Inspector or Sergeant Major authorised by the licensing authority shall be a testing officer for the purpose of test for the grant of conductor's licence:

Provided that it shall be competent for the licensing authority or for any person nominated by it in that behalf to have more than one such test.

(4)

When any application has been duly made to the appropriate licensing authority and the applicant has satisfied such authority of his competence to act as a conductor of a stage carriage, the licensing authority shall issue the applicant a conductor's licence in Form L. Con. on payment of fees specified in sub-section (5) of Section 30, unless the applicant is for the time being disqualified for holding or obtaining a conductor's licence.

31.

Badge of conductors of the stage carriages.

(1)

A conductor of stage carriage shall display on his left chest a badge in the for in illustrated in the Second Schedule, inscribed with the particulars specified in the said schedule.

(2)

No conductor of a stage carriage shall display the badge held by him if his conductor's licence is suspended or revoked by any authority or if his conductors licence.has ceased to be valid by efflux of time.

(3)

A conductor shall not hold more than one such badge issued by an authority in the State.

(4)

If at any time a conductor's licence is suspended or cancelled by a competent authority or by any court or ceases to be valid, the conductor shall, within seven days, surrender the badge to the authority by which it was issued.

32.

Currence of conductor' licence.

- A conductor's licence issued or renewed under the Act or the Rules made thereunder shall:-

(i)

if the person obtaining the licence, either originally or on renewal thereof, has not attained the age of forty years on the date of such issue or renewal,

(a)

be effective for a period of twenty years from the date of such issue or renewal,

(b)

until the date on which such person attains the age of forty years, which ever is earlier,

(ii)

if the person referred to in clause (i) has attained the age of forty years on the date of issue or, as the case may be, renewal thereof, be effective for a period of five years from the date of such issue or renewal:

Provided that every conductor's licence shall, notwithstanding its expiry under this Rule, continue to be effective for a period of thirty days from such expiry.

33.

Renewal of conductor's licence.

(1)

Any licensing authority may, on an application made to it in Form L. CON. R. renew a conductor's licence with effect from the date of its expiry:

Provided that in any case where the application for the renewal of a licence is made more than thirty days after the date of its expiry, the licence shall be renewed with effect from the date of its renewal:

Provided further that where the applicant has attained the age of forty years, the application shall be accompanied by a medical certificate in Form M. C.CON. and a valid adult first Aid certificate issued by a Medical Practitioner to the effect that the applicant knows how to use first aid box.

(2)

Where the authority renewing the conductor's licence is not the authority which issued the licence, it shall intimate the

fact of renewal to the authority which issued the licence.

(3)

Every application for renewal of conductor's licence shall be accompanied by a fee specified under sub-section (5) of Section 30.

34.

Replacement of the Photograph.

(1)

If at any time, it appears to a Licensing Authority that the photograph affixed to any conductor's licence has ceased to be a clear likeness of the holder, the licensing authority may require the holder to surrender the licence forthwith, and to furnish two clear copies of a recent photograph of himself.

(2)

If, at any time, a holder of a conductor's licence so desires, a Licensing Authority may replace the photograph on his licence by a recent photograph of himself.

(3)

Upon the receipt of the copies of photograph as provided in sub-rule (1) or sub-rule (2), the licensing authority shall remove the old photograph from the licence, and shall affix and seal thereto one copy of new photograph and note the date of such replacement, and return the licence to the holder, and shall, if it is not the Licensing Authority by which the licence was issued, forward the second copy of the photograph to that authority.

(4)

The fee for replacing a photograph under this Rule shall be as provided in Rule 26 and shall be paid alongwith the photograph and application.

35.

Issue of duplicate conductor's licence.

(1)

Where at any time a conductor's licence is lost, destroyed, torn, defaced or mutilated, the holder shall forthwith report the matter to the original licensing authority and shall apply for issue of a duplicate licence in Form C.L.D. along with the fee prescribed under Rule 26, and two clear copies of a recent photograph of himself.

(2)

Upon the receipt of such report the licensing authority shall, after making such enquiries as it may think fit, if satisfied that a duplicate may properly be issued, issue a duplicate licence duly stamped 'Duplicate' in red ink and the date of issue of the duplicate:

Provided that where subsequent to the issue of a duplicate conductor licence, it is found that there has been an endorsement by a Court since the date of the grant or last renewal of the licence, it shall be lawful for the licensing authority to call for the duplicate conductor's licence and make necessary endorsements thereon.

(3)

Where a duplicate licence has been issued upon representation that a licence has been lost, and the original licence is afterwards found or received by the holder, the holder shall immediately return the duplicate licence to the issuing authority.

(4)

If at any time it appears to a Motor Vehicle Inspector or to a Licensing Authority, that a conductor's licence held by any person is so torn, defaced or mutilated in anyway as to cease to be reasonably legible, such authority may, by order in writing impound the conductor's licence and require the holder, to obtain a duplicate conductor's licence.

36.

Change of address.

(1)

If the holder of a conductor's licence ceases to reside at the address recorded in the conductor's licence, he shall, within thirty days of any such change of address, intimate, his new address, to the licensing authority by which the licence was issued and, if the new address is within the jurisdiction of another Licensing Authority to that other Licensing Authority.

(2)

Upon the receipt of such intimation, if it is not the licensing authority by which the licence was issued, the licensing authority shall intimate the change of address to that authority.

37.

Manner of appeals.

- An appeal under Chapter-III of the Act shall be preferred in duplicate, in the form of a memorandum, setting forth concisely the grounds of objection to the order against which the appeal is preferred, and shall be accompanied by a certified copy of that order and a fee prescribed under Rule 26.

(2)

Any person preferring an appeal shall be entitled to obtain a copy of any document filed with the licensing authority and connected with the order against which he is preferring the appeal, on payment of a fee prescribed under Rule 26.

(3)

The Appellate Authority may give any person interest in the appeal, a copy of any document connected with the appeal, on payment of a fee prescribed under Rule 26.

38.

Exemption from the provisions of sub-section (1) of Section 29.

(1)

Where in any emergency it becomes difficult for the permit holder to provide for a conductor for his stage carriage, or where a conductor on duty, for reasons beyond his control cannot perform his duties, the driver of a stage carriage may, for a period not exceeding one month, act as a conductor of the stage carriage without holding a conductor's licence, required under Section 29.

(2)

Any person, other than a driver of a stage carriage, may act as a conductor without holding a conductor's licence, for a period not exceeding one month:

Provided that:-

(a)

he intimates in writing, the intention to do so to the licensing authority within whose jurisdiction he intends to act as a conductor,

(b)

he is not disqualified for holding or obtaining a conductor's licence, and

(c)

he has not on previous occasions acted as conductor without a licence for a total period exceeding one month.

39.

Effectiveness of a conductor's licence issued in another State.

- Any person can act as a conductor on the stage carriage of another State and operating within this State under any reciprocal agreement with that State or under the countersignature of stage carriage permit, if such person holds a valid conductor's licence issued in that State and the person complies with the provisions of Rule 29 while the stage carriage is being operated in this State.

Chapter-IV Registration of Motor Vehicles

40.

Registering Authority.

- The District Transport Officer shall be the Registering Authority:

Provided that a Motor Vehicle Inspector may on being authorised by the Registering Authority perform any of the duties of the Registering Authority under the Act and the Rules.

41.

Appellate Authority.

(1)

The authority to hear appeals against any appealable order other than an order under Chapter-III of the Central Motor Vehicles Rules, 1989, passed by a Registering Authority under Chapter-IV of the Act shall be the District Magistrate.

(2)

The authority to hear appeals against any order under Section 53 by any other authority prescribed under Rule 43 shall be the State Transport Commissioner.

(3)

The authority to hear appeals against any appealable order passed by an Inspector of Motor Vehicles or an authorised

testing station under Section 56 in respect of a certificate of fitness shall be the Registering Authority having jurisdiction in the area in which the order was passed.

42.

Appeals, conduct and hearing of.

(1)

An appeal, under Rule 41, shall be preferred in duplicate, in the form of a memorandum, setting forth concisely the grounds of objection to the order against which the appeal is preferred, and shall be accompanied by a certified copy of that order and fee prescribed under Rule 44.

(2)

Any person preferring an appeal shall be entitled to obtain a copy of any document filed with the registering authority and connected with the order against which he is preferring the appeal on payment of a fee prescribed under Rule 44.

(3)

The Appellate Authority may give any person interested in the appeal, a copy of any document connected with the appeal on payment of a fee prescribed under Rule 44.

(4)

When an appeal is lodged a notice shall be issued to the authority which passed the order appealed against in such form as the appellate authority may direct.

(5)

The Appellate Authority may, after giving an opportunity to the authorities or their authorised agents, to be heard and after such further enquiry, if any, as may deem necessary confirm, vary, or set aside, the order against which the appeal is preferred and shall make an order accordingly.

43.

The other authority to suspend certificate of registration.

- The other authority to suspend certificate of registration under Section 53 shall be any District Magistrate, Sub-Divisional Magistrates, Secretary, Regional Transport Authorities, and Secretary, State Transport Authority.

44.

Fees payable under Chapter-IV of the Act.

- The fees to be paid under Chapter IV of the Act shall be:-

(i)

In respect of an appeal under sub-rule (1) of Rule 41, fifty rupees,

(ii)

in respect of facility provided under Rule 47, ten rupees,

(iii)

in respect of each copy of any document under sub-rule (2) and sub-rule (3) of Rule 58A, ten rupees,

(iv)

in respect of extension of validity of certificate of fitness under sub-rule (2) of Rule 52A, twenty rupees,

(v)

in respect of certificate of temporary registration of each of its extension thereof under sub-rule (1) of Rule 52 A, twenty rupees,

(vi)

in respect of duplicate copy of certificate of registration, ten rupees,

(vii)

in respect of duplicate copy of certificate of fitness, half of the fee mentioned in serial no. 11 of Table annexed to Rule 81 of the Central Motor Vehicle Rules, 1989,

(viii)

in respect of each copy of particulars of registration of each vehicle under Rule 58, ten rupees.

45.

Exemption from payment of fees.

(1)

The State Government may, if it is of opinion that it is in the public interest to do, by general or special order, exempt, totally or partially, any Government Department, local authorities, associates or bodies of individuals, from payment of

the fee payable for copies of particulars of registration under Rule 44.

(2)

(a)

Such foreign Consular Officers as have been notified by a general or special order of the State Government in respect of motor vehicle belonging to them,

(b)

The owners of-

(i)

tractors intended to be used solely for agricultural operations,

(ii)

motor ambulances intended to be used solely for the conveyance of the sick, or injured and other motor vehicles designed and intended to be used exclusively for affording free medical and other relief,

(c)

The Technical Co-operation Mission of the United States of America or its field personnel in respect of motor vehicles belonging to that Mission and assigned to its field personnel for their official use in the State of Bihar,

(d)

The United Nations Agencies and Organisation, in respect of motor vehicles belonging to them,

(e)

The American Peace Corps Volunteers, in respect of their official motor vehicles used in the Corps programmes and projects, and

(f)

Co-operative for American Remittances (to Europe) INC, in respect of motor vehicles belonging to the said organisation and intended to be used in the State of Bihar in connection with the work providing food and other urgently needed commodities shall be exempted from payment of fees payable under sub-section (2) and sub-section (9) of Section 41.

Explanation. - For the purposes of this Rule, the expression 'agricultural operation' means tilling, sowing, harvesting or crushing of agricultural produce, or any other similar operation carried out for the purpose of agriculture but does not include the transportation of persons or materials for the purpose of agriculture or the transportation of agriculture produce.

(3)

The State Government or any other Government, in respect of motor vehicles belonging to it, shall be exempted from payment of fees payable under Chapter-IV of Act.

46.

Grant of temporary registration.

(1)

An application for a certificate of temporary registration or extension of period of validity thereof shall be made in Form C.R.Tem. A. alongwith the fee-prescribed under Rule, 44:

Provided that the period of such extension shall not be more than one month at any one time.

(2)

A certificate of temporary registration shall be in Form C.R.Tem.

(3)

The other authority for the purpose of Section 43 in respect of motor vehicles manufactured by the manufacturer on the approval of the State Transport Commissioner, shall be, an officer of that manufacturer:

Provided that the power conferred by this sub-rule shall not be exercised unless the name of the officer is approved by the State Transport Commissioner in writing in this behalf and unless the vehicle is proceeding immediately for registration to a place outside the region.

(4)

(i)

The temporary registration mark to be assigned by any registering authority specified in the first column of the Third Schedule to these Rules, shall be set forth in the corresponding entry in the second column thereof,

(ii)

the temporary registration mark to be assigned by the other authority prescribed under sub-rule (3) shall be from among

a block or registration marks allotted by the respective registering authority, from among those assigned to it in the Third Schedule aforesaid.

(5)

The authority granting a certificate of temporary registration shall assign a temporary registration mark to the vehicle and the owner shall cause the said mark to be displayed to the front and rear of the vehicle in the prescribed manner.

(6)

The records of the other authority prescribed under sub-rule (3) which are maintained by them for the purpose of issue of certificate of temporary registration shall be open for inspection at all reasonable times by any officer of the Motor Vehicles Department.

47.

Facilities to be provided to certain persons for registration of motor vehicles.

- The Registering Authority may depute the Motor Vehicles Inspector at any place specified in the application for verification of such particulars and requirements, on any day or days specified by the registering authority, if the number of motor vehicles to be so inspected at such place exceeds twenty and the fee prescribed under Rule 44 is paid.

48.

Recording the particulars of exemption.

- Where a Registering Authority registers a motor vehicle in respect of which an order or a notification, exempting such motor vehicle from any of the provisions of rules made under Chapter-VII of the Act, has been issued, the registering authority shall record the particulars in brief of such exemption in the certificate of registration and its records of registration.

49.

Approval of the plate bearing registration mark.

- The registration mark displayed on the motor vehicle by the registered owner shall be got approved by the Registering Authority within thirty days of the assignment of such registration mark.

50.

Particulars to be exhibited on transport vehicles.

(1)

The particulars to be exhibited on the left hand side of transport vehicle shall be:-

(a)

in the case of motor cabs and maxi cabs:-

(i)

the number of passengers permitted to be carried,

(ii)

the minimum fares, chargeable,

(iii)

the rate of fares, and

(iv)

the registration number of vehicles.

(b)

in the case of other transport vehicles:-

(i)

the chassis number,

(ii)

the unladen weight denoted by U.W.,

(iii)

the gross vehicle weight denoted by G.V.W.,

(iv)

the registered front axle weight denoted by F.A.W.,

(v)

the registered rear axle weight denoted by R.A.W.,

(vi)

the registered axle weight of each intermediate axle, if any, denoted by M.A.W.,

(vii)

the number of passengers if permitted to be carried, denoted by pass, and

(viii)

the number, size and ply rating of tyres on each axle denoted by Front, Rear and Middle.

(2)

The name and address of the registered owner shall be exhibited on both sides of every transport vehicles, as required by Section 84.

(3)

The letters and figures of the particulars to be exhibited under sub-rule (1) shall not be less than 20 mm in height.

51.

Issue, renewal and cancellation of certificate of fitness.

(1)

Certificate of fitness may be issued or renewed by Motor Vehicles Inspector or authorised testing station, subject to the general control and direction of the appropriate Registering Authority.

(2)

An application for issue or renewal of certificate of fitness shall be made in Form C.F.A. to the Motor Vehicles Inspector or the authorised testing station, in whose jurisdiction the vehicle is normally kept, and shall be accompanied by the fees prescribed under Central Motor Vehicles Rules, 1989.

(3)

There shall not be more than one certificate of fitness in respect of any vehicle.

(4)

The authority empowered to cancel the certificate of fitness under the provisions of sub-section (4) of Section 65 shall be the Motor Vehicles Inspector, Enforcement Officer and Registering Authority.

(5)

The authority cancelling a certificate to fitness shall give the owner or other person in charge of the vehicle, the reasons in writing, for such cancellation and shall make a report of his action and forward the certificate to the Registering Authority under whose direction, and control he may be. After the authority has cancelled the certificate of fitness, such authority may, by endorsing in Form C.F.X. specify the time within which and the conditions subject to which the vehicle may be driven to a specified destination for the purpose of repair.

(6)

Nothing in sub-rule (5) shall debar the owner or the person in charge of the vehicle, the certificate of fitness of which has been cancelled, from applying at any time for the restoration of the certificate of fitness if the vehicle has been repaired in such a manner that all the requirements of the Act and the rules made thereunder are complied with. If such a vehicle is inspected and passed within thirty days of the date of cancellation of the certificate of fitness but before the date of expiry specified in such certificate, the certificate shall be restored to its original date of expiry. If, however, the vehicles is brought for inspection at any other time a fresh certificate of fitness will be required, in which case the fees prescribed by the Central Government for the issue of certificate of fitness shall be charged:

(7)

While inspecting a motor vehicle for the purpose of issue or renewal of a certificate of fitness, the Motor Vehicles Inspector or the authorised testing station shall fill in Form M. V. Inserted in duplicate and shall deliver the duplicate copy to the applicant, on completion of the inspection. The Motor Vehicles Inspector or the authorised testing station, as the case may be, shall also obtain legible pencil, impression of chassis number of the vehicle so inspected on the original copy.

52.

Extension of validity of certificate of fitness.

(1)

If, owing to Mechanical breakdown or other cause, a motor vehicle is, after the expiry of the certificate, outside the area in which the Motor Vehicles inspector by whom the certificate is to be renewed has jurisdiction the Motor Vehicles Inspector may, on an application made to him and without prejudice to any penalty to which the owner or driver may have become liable, if the vehicles is in his opinion fit for use, by endorsement in Form C.F. Sub. and subject to such

conditions as he may specify, extend the validity of certificate of fitness for its continued use for such time as may reasonably be necessary for the vehicle to return to the area of the authority by which the certificate should be renewed and the vehicle may be driven to such area in accordance with such endorsement but shall not be used after its return to that area until the certificate has been renewed.

(2)

The fee for the grant of such extension under sub-rule (1) shall be as prescribed under Rule 44.

(3)

If a vehicle is damaged at any time so as to be unfit for ordinary use and may in the opinion of any Motor Vehicles Inspector safely be driven at a reduced speed to a place of repair, and if the Motor Vehicles Inspector is satisfied that it is necessary that the vehicle should be so driven, the Motor Vehicles Inspector may by endorsement in Form C.F.X. specify the time within which, and the conditions subject to which, the vehicle may be driven to a specified destination for the purpose of repair and the limit of speed beyond which it shall not be driven.

52A.

Grant of temporary registration.

(1)

An application for a certificate of temporary registration of period of validity thereof shall be made in Form C.R. Tern. A alongwith the fee prescribed under Rule 43:

Provided that period of such extension shall not be more than one month at any one time.

(2)

A certificate of temporary registration shall be in Form C.R.Tem.

(3)

The other authority for the purpose of Section 43 in respect of motor vehicle manufactured by them, shall be an officer of. -

(i)

Tata Engineering Locomotive Co. Ltd., Jamshedpur.

(ii)

Any other manufacturer:

Provided that the power conferred by this sub-rule shall not be exercised unless the name of officer is approved by the State Transport Commissioner in this behalf and unless the vehicle is proceeding immediately for registration to a place outside the region.

(4)

(i)

The temporary registration mark to be assigned by any registering authority specified in the first column of the Third Schedule to these Rules, shall be as set forth in the corresponding entry in the second column thereof.

(ii)

The temporary registration mark to be assigned by the other authority prescribed under sub-rule (3) shall be from among a block of registration marks allotted by the respective registering authority, from among those assigned to it in the Third Schedule aforesaid.

(5)

The authority granting a certificate of temporary registration shall assign a temporary registration mark to the vehicle and the owner shall cause the said mark to be displayed to the front and rear of the vehicle in the prescribed manner.

(6)

The records of the other authorities prescribed under sub-rule (3) which are maintained by them for the purpose of issue of certificate of temporary registration shall be open for inspection at all reasonable times by any officer of the Motor Vehicles Department.

53.

Notice of alteration in a motor vehicle.

(1)

The notice by the owners of a motor vehicle to a registering authority in accordance with sub-section (1) of Section 52 shall be in Form B.T.I.

(2)

Where any alteration has been made in a motor vehicle the owner shall report the alteration in Form B.T.A. along with a fee prescribed under the Central Motor Vehicles Rules, 1989, in this behalf, to the Registering Authority and shall produce the vehicle so altered before it for verification and recording the alteration as made.

(3)

No approval shall be granted to replace a chassis or a body-shell of any motor vehicle unless the chassis or the body-shell, as the case may be, is to be replaced by an identical, new chassis or body-shell of an identical vehicle the registration of which is cancelled, and in either case the proof to the satisfaction of the registering authority of such chassis or body-shell to be fitted, shall be accompanied with the notice.

(4)

Subject to the provisions of sub-rule (3) the proviso to sub-section (1) of Section 52 shall not apply in respect of a notice to replace the chassis or the body shell.

54.

Issue of duplicate certificate.

(1)

If a certificate of temporary registration is lost, destroyed, torn, defaced or mutilated, the owner of the motor vehicle or the dealer, as the case may be, shall forthwith report the matter to the original Registering Authority and shall, apply for the issue of a duplicate, certificate in Form G.D. along with a fee prescribed under Rule 44 and an affidavit swearing the above facts.

(2)

If a certificate of fitness is lost, destroyed, torn, defaced or mutilated, the owner of the motor vehicle shall forthwith report the matter to the Registering Authority in whose jurisdiction the certificate was issued or last renewed and shall, apply for the issue of a duplicate certificate in Form C.D. alongwith a fee prescribed under Rule 44.

(3)

Upon receipt of such intimation the registering authority shall furnish the applicant with a duplicate copy of such certificate, duly stamped 'duplicate' in red ink, and the seal of the Registering Authority.

(4)

If at any time it appears to an Inspector of Motor .Vehicles or to a Registering Authority that any of the certificate issued under Chapter-IV of the Act is so torn, defaced or mutilated in any way as to cease to be reasonably legible, such Motor Vehicles Inspector or the authority may, by order in writing, impound the certificate and require the owner or the dealer, as the case may be, to obtain a duplicate certificate.

55.

Intimation in respect of vehicle not registered within the State.

(1)

When any motor vehicle which is not registered in Bihar has been kept within Bihar for a period exceeding fifteen days, the owner or others persons incharge of the vehicle shall send intimation to the registering authority of the area in which the motor vehicle is kept at the time of making the report and shall intimate:-(i) his name and permanent address, and his address for the time being, (ii) the registration mark of the vehicle, (iii) the make and description of the vehicle, and (iv) in the case of a transport vehicle the name of the authority within the State by whom the permit has been issued or countersigned:

Provided, that in the case of a transport vehicle covered by a permit having validity in the State, it shall only be necessary to make a report under this sub-rule upon the first occasion when a report is due.

(2)

Nothing in this Rule shall apply to a motor vehicle which is exempted from registration under the provision of rule or which is registered under Section 60 of the Act.

56.

Power of Registering Authority to require production of certifications of registration.

- The registering authority may, subject to the provisions of subsection (5) of Section 58, require an owner of a motor vehicle to produce the certificate of registration before it for the purpose of revision of entries therein of particulars relating to the gross vehicle weight, and the owner of such a motor vehicle shall produce the certificate of registration within seven days from the date on which such requisition was made.

57.

Information regarding stolen and recovered vehicles.

(1)

The Superintendent of Police or such other police officers as the State Government may specify in this behalf, shall furnish monthly returns in the forms appended to this rule, containing the informations regarding vehicles which have been stolen and stolen vehicles which have been recovered of which the police are aware, to the State Transport Commissioner and shall send the copy of such returns to all such officers which the State Government may specify.

Form-I

Statement showing the information regarding motor vehicles which have been stolen in the month of.....

Sl. No.

Crime register number, date and Section

Time, date, place of occurrence, the name of
police station & district

Type of vehicle, model and colour

1

2

3

4

Registration number of the stolen vehicle

Chassis number

Engine number

Name of the accused if known

Remarks if any

5

6

7

8

9

Form-II

Statement showing the information regarding stolen vehicles which have been recovered in the month of

Serial number

Crime register number, date & section

Registration number of the recovered vehicle

Chassis number

Engine number

Brief facts of the recovery

Remarks if any

1

2

3

4

5

6

7

58.

Supply of copies of particulars of registration.

- A Registering Authority may in its discretion supply copies of particulars of registration of any motor vehicle registered in the records maintained by it, to any person who may apply for the same alongwith a fee prescribed under Rule 44.

58A.

Manner of appeals.

(1)

An appeal under Rule 41, shall be preferred in duplicate, in the form of a memorandum, setting forth concisely the

grounds of objection to the order against which the appeal is preferred; and shall be accompanied by a certified copy of that order and a fee prescribed under Rule 44.

(2)

Any person preferring an appeal shall be entitled to obtain a copy of any document filed with the registering authority and connected with the order against which he is preferring the appeal, on payment of a fee prescribed under Rule 44.

(3)

The Appellate Authority may give any person interested in the appeal a copy of any document connected with the appeal, on payment of a fee prescribed under Rule 44.

59.

Exemption of vehicle used solely for the construction, repairs and cleaning of road.

- Nothing contained in Chapter-III of the Act shall apply to road-rollers, and other vehicles designed and used solely for the construction, repairs, and cleaning of roads, save that every tractor used to tow trailers shall be registered and every tractor used for the purpose of towing a motor vehicle or trailer shall further require a certificate of fitness.

60.

Preparation and submitting of returns of particulars of registration.

- The Registering Authority shall prepare and submit for the State Government a return containing such particulars in respect of motor vehicle registered by him as the State Government may direct. The registering authority may grant a copy of an extract from the return on payment at the rate of five rupees for particulars in respect of motor vehicles up to five and five rupees in respect of each additional number of five or less.

61.

Foreign Diplomatic or Consular Mission exempted from payment of fee to.

- The State Government may, by notification in the Official Gazette, make an exemption from payment of all or any portion of the fees payable under Chapter-III of the Act in respect of motor vehicle owned by Foreign Diplomat or Consular Missions or accredited Missions engaged in Technical Assistance Programme including Organisation of the United Nations.

62.

Maintenance of State Register of Motor Vehicles.

(1)

Every Registering Authority shall furnish a monthly report in duplicate containing particulars required in the form of State Register of Motor Vehicles prescribed by the Central Government to the State Transport Commissioner, within ten days of the each succeeding month.

(2)

The State Government may, from time to time, issue direction to the registering authorities or to the State Transport Commissioner for the purpose of carrying into effect the provisions of Section 63.

63.

Form of communications.

- The Registering Authority shall communicate with another Registering Authority in Form R. Com. for the purpose of intimating:-

(a)

The renewal of certificate of registrations, under sub-section (1) of Section 41, or

(b)

the transfer of the registration of the vehicles, under sub-section (2) of Section 47, or

(c)

the change of address, under sub-section (4) of Section 49, or

(d)

the transfer of ownership, under sub-section (7) of Section 50, or

(e)

the alteration in vehicle, under sub-section (5) of Section 52, or

(f)

the suspension of registration, under sub-section (3) of Section 53, or

(g)

details of payment of taxes due on the vehicle as per provisions of Bihar and Orissa Motor Vehicles Taxation Act by the vehicle owner.

64.

Registration marks.

- Retention of old assignment of preferred number. - The owners of new Motor Vehicles intending assignment of the registration mark and number which stands assigned to any vehicle owned by them earlier of indicating preference for assignment of a particular registration number of their new vehicle, shall be assigned the same number for which they shall be required to pay an extra amount of Rs. 100/- as fee, if the registration number so asked for is available for assignment in the registration register of concerned registering authority, provided registration number of the old vehicle shall not be assigned to the new vehicle unless up-to-date taxes of the old vehicle are paid, (Provided that the State Transport Commissioner may, in special circumstances of the case permit change only once of registration mark of non-commercial vehicle on payment of fees of Rs. 100/-.

Chapter-V Control of Transport Vehicles

65.

State Transport Authority.

(1)

The State Transport Authority shall meet at such times and at such places as the Chairman may appoint, provided that it shall meet not less than once in each of the periods of three months of January to March, April to June, July to September and October to December.

(2)

Not less than ten days notice shall be given of any meeting of the State Transport Authority.

(3)

The State Government may, at any time, remove any member of the State Transport Authority.

(4)

Subject to the provisions of sub-rule, (3), a non-official member if any, of the State Transport Authority shall hold office for a period of three years, and thereafter until a successor is appointed:

Provided that, when any such member dies or is removed or vacates office, his successor shall hold office for the remainder of the period of office of the member whose place he takes and thereafter until a successor is appointed.

(5)

For the purpose of a quorum at a meeting presence of at least two members shall be necessary, out of which one member shall be the Chairman or the Presiding Officer appointed under sub-rule (6). If within half an hour from the time appointed for the meeting a quorum is not present, the meeting shall be adjourned to such day and at such time and place as the Chairman or the Presiding Officer may determine and if at the adjourned meeting a quorum is not present, the members present shall constitute the quorum.

(6)

The Chairman may, if necessary, nominate a panel of members, any one of whom may preside at the meeting in the absence of the Chairman (such person being referred to as the 'Presiding Officer' in the order of preference determined by the Chairman and the Chairman may vary such panel at any time.

(7)

The Chairman or the Presiding Officer shall have a second or casting vote.

(8)

The provisions contained in sub-rules (2) to (7) shall not apply in case the State Transport Authority is constituted in accordance with the provisions contained in second proviso to sub-section (2) of Section 68.

66.

Regional Transport Authorities.

(1)

The Regional Transport Authority shall meet at such places as its Chairman may appoint: Provided that it shall meet not less than once in each month unless the State Transport Authority otherwise directs.

(2)

Not less than seven days notice shall be given to every member, of any meeting of the Regional Transport Authority.

(3)

A member of the Regional Transport Authority shall attend at least six meetings in each financial year. The State Government may at any time remove any such member from office on his failure to attend the minimum number of meetings fixed under this sub-rule. The State Government may at any time remove from office any member for any other cause.

(4)

Subject to the provisions of sub-rule (3), a non-official member, if any, of the Regional Transport Authority shall hold office for a period of three years and thereafter until a successor is appointed, provided that, when any such member dies or is removed or vacates office, his successor shall hold office for the remainder of the period of office of the member whose place he takes and thereafter until successor is appointed.

(5)

For the purpose of a quorum at a meeting, presence of at least two members shall be necessary, out of which one member shall be the Chairman or the

Presiding Officer appointed under sub-rule (6). If within half an hour from the time appointed for the meeting a quorum is not present the meeting shall be adjourned to such day and at such time and place as the Chairman or the Presiding Officer may determine.

(6)

The Chairman may, if necessary, nominate a panel of members any one of whom may preside at the meeting in the absence of the Chairman (such person being referred to as the 'Presiding Officer') in the order of preference determined by the Chairman, and the Chairman may vary such panel at any time.

(7)

The Chairman or the Presiding Officer shall have a second or casting vote.

(8)

The provisions contained in sub-rules (2) to (7) shall not apply in case the Regional Transport Authority is constituted in accordance with the provisions contained in second proviso to sub-section (2) of Section 68.

67.

Transport Authorities-conduct of business of.

- Subject to the provisions of the Act and these Rules, the business of the State Transport Authority and the Regional Transport Authority shall be conducted according to the following sub-rules:-

(1)

The Secretary shall lay before the Regional or the State Transport Authority, as the case may be, the agenda to be considered at any meeting.

(2)

Save in the case of the hearing of an objection to the grant of a stage carriage permit a State or a Regional Transport Authority, as the case may be, may decide any matter, without holding a meeting by the majority of the votes of members recorded in writing and send to the Secretary (hereinafter referred to as procedure by circulation.)

(3)

In the event of procedure by circulation, the Secretary shall send to each member of the Authority such particulars of the matter as may be reasonably necessary in order to enable the member to arrive at a decision and shall specify the date by which the votes of members are to be received in the office of the Authority. Upon receipt of the votes of members as aforesaid the Secretary shall lay the papers before the Chairman who shall record the decision by endorsement on the form of application or other document, as the case may be, according to the votes received and the vote or votes cast by the Chairman. The record of the votes cast shall be kept by the Secretary and shall not be available for inspection by any person save by a member of the Authority at a regularly constituted meeting of the Authority. No decision shall be made upon procedure by circulation if, before the date by which the votes of members are required to reach the office of the Authority, not less than one third of the members of the Authority by notice in writing to the Secretary demand that the matter be referred to a meeting of the Authority.

(4)

The number of votes, excluding the Chairman's second or casting vote, necessary for a decision to be taken upon procedure by circulation, shall not be less than the number necessary to constitute a quorum.

(5)

The State or the Regional Transport Authority, as the case may be, may summon any applicant for permit to appear

before it and may decline to grant the permit until the applicant has so appeared, either in person or by an agent authorised by him in writing and until the applicant has furnished such information as may reasonably be required by the authority in connection with the application.

(6)

Nothing contained in this rule shall prevent a State or a Regional Transport Authority from deciding upon procedure by circulation any matter which has been considered at a meeting or has been the subject of a hearing and upon which a decision has been reserved.

(7)

When a matter is decided by the votes of members present at a meeting of State or Regional Transport Authority, no person other than a member of the Authority, shall be entitled to be present and record of voting shall be kept, save of the member of votes cast on either side. Provided that when any matter is decided by the exercise of second or casting vote of the Chairman, the fact shall be recorded.

(8)

All correspondence intended for the considerations of the Authority shall be addressed to the Authority or to its Secretary. No action shall be taken on any correspondence, which is not so addressed.

(9)

Any notice or petition may be returned to the presenting party, or if that is not possible, filed by the Secretary and shall be treated as not received, if:-(i) it does not bear the full name and address of the presenting party and his signature or mark or that of his agents, or (ii) it is found to be pseudonymous.

(10)

The Secretary, shall, under the general or special instructions of Chairman, lay before the Authority all matters requiring its decision.

(11)

The agenda for a meeting of the Authority shall be prepared by the Secretary and after it has been approved by the Chairman, shall be sent to each member at least five days in advance of the meeting, provided that copies of additional agenda, if any shall be handed to the members of the Authority on the date of meeting.

(12)

In any case in which a person has a right to be heard according to the provisions of the Act or the Rules, he may appear either in person or through a representative duly authorised in writing to hear any representation whether made in person or through a representative duly authorised in writing in this behalf.

(13)

All decisions of the authority shall be carried into effect by the Secretary who shall act in this behalf under the direction of the Chairman.

(14)

If a quorum as prescribed in Rules 65 and 66, is not present at any meeting, the Chairman shall adjourn meeting and no quorum shall be necessary for the subsequent meeting.

(15)

Members wishing to table any motion for discussion, shall give 14 days notice of such motion to the Secretary and the Secretary will include that motion in the agenda or the additional agenda of the next following meeting with the approval of the Chairman. The proposer may withdraw any notice proposed by him.

(16)

The minutes of previous meeting shall be read in the next meeting and after confirmation shall be signed by the Chairman:

Provided that the proceedings shall be treated as confirmed with the members, if copies of the last meeting have been circulated previously.

(17)

If any member present objects to the minutes as having been incorrectly or incompletely recorded, the Chairman shall after taking the sense of the meeting make such amendments in the minutes as he feels proper and the amended minutes then shall be confirmed and signed by the Chairman.

(18)

Any member present at a meeting may refrain from voting, if he so chooses. When any relation of a member is a party

before the Transport Authority, the member shall refrain from taking part in discussion.

(19)

When there is equality of votes on any proposal in a meeting and the Chairman refrains from giving his second and casting vote, the proposal shall be held to have neither been passed nor rejected and may be brought forward to any subsequent meeting.

(20)

The Chairman, shall preserve order in a meeting all points of order shall be summarily decided by him, no discussion be allowed there on unless he thinks fit to take the opinion of the members present.

(21)

The Chairman may adjourn any meeting that refuses to obey his ruling on a point of order or any business which cannot be conducted on account of unruly behaviour of any member.

(22)

A member wishing to leave the meeting before its close may do so after informing the Chairman.

(23)

A member may put questions in the meeting to the Chairman in respect of a matter concerning with the executive administration of the authority and shall be entitled to an oral reply:

Provided that the Chairman may disallow any question, if in his opinion it is frivolous, vexatious or offensive or if he thinks that the information cannot be divulged without determining the public interest or it involves communication of information given in confidence. It will not be necessary for the Chairman to explain to the members the reason for disallowing any question.

(24)

The Secretary, with the approval of the Chairman may appoint persons to authenticate documents and perform other duties on his behalf.

(25)

As expert on transport problems any officer of Government concerned with the business of the Authority or any other person or persons on the request of the Authority may attend a meeting of the Authority and may take part in the discussions but shall not be entitled to vote.

(26)

The Chairman shall decide all points of procedure or any matter not specifically provided for in these Rules and his decision shall be final.

(27)

The members of an Authority may, at a meeting, appoint a subcommittee to report on such matters as it thinks fit. The Secretary of a Regional Transport Authority or the Secretary of the State Transport Authority shall act as the convenor of the sub-committee which shall follow such procedure as the Authority may determine.

68.

Delegation of powers by State Transport Authority.

(1)

The State Transport Authority may, by general or special resolution recorded in its proceedings, and subject to the restrictions, limitations, and conditions herein specified, delegate to the Chairman or State Transport Commissioner or Additional Transport Commissioner or Joint Transport Commissioner, all or any of its following powers, namely:-

(i)

Power to grant with or without modifications or refuse to grant, a permit in respect of a tourist vehicle, under sub-section (9) of Section 88 and the power to attach conditions or vary the conditions so attached to any such permit.

(ii)

Power to countersign or refuse to countersign permits granted in any other State, under Section 88 and the power to attach conditions or vary the conditions so attached.

(iii)

Power to renew or reject the application for renewal of any of the permit mentioned in clause (i) of the countersignature mentioned in clause (ii) of this sub-rule.

(iv)

Power to suspend a permit or a countersignature under Section 86 or to recover from the holder thereof a sum of money

agreed upon, in accordance with sub-section (5) or sub-section (7) of the said Section subject to the provisions of sub-section (4) of the said Section.

(v)

Power to permit the replacement of one vehicle by any other vehicle of the same nature, under Section 83.

(vi)

Power under Section 214 to direct a stay of the order passed by the original authority against which an appeal has been preferred or application for revision has been made.

(vii)

Power to grant or refuse to grant a temporary permit under Section 87 or a special permit under sub-section (8) of Section 88, and the power to attach conditions or vary the conditions so attached to any such permit.

(viii)

Power to decide any appeal preferred under Rule 110.

(ix)

Power to record change of address under Rule 85, Provided that the State Transport Commissioner or Additional Transport Commissioner or Joint Transport Commissioner, as the case may be, shall:-

(x)

keep informed the State Transport Authority from time to time of the action taken by him, in pursuance of the powers delegated to him, and

(xi)

arrange to paste on a notice board on the premises of his office, a copy of every resolution of that Transport Authority delegating its power.

(2)

Notwithstanding anything contained in this Rule, the State Transport Authority may, from time to time, issue instructions to the State Transport Commissioner, Additional Transport Commissioner, Joint Transport Commissioner as to the manner in which the powers so delegated, shall be exercised.

69.

Delegation of powers by Regional Transport Authority.

(1)

A Regional Transport Authority may, by general or special resolution recorded in its proceedings and subjects to the restrictions, limitations and conditions herein specified, delegate to the Chairman or Secretary R.T.A./R.T.O., all or any of its following powers, namely:-

(i)

Power to grant or refuse to grant a temporary permit under sub-section (1) of Section 87 and sub-section (7) of Section 88, or a special permit under sub-section (8) of Section 88, and the power to attach conditions or vary the conditions so attached to any such permit.

(ii)

Power to grant with or without modifications or refuse to grant, a stage carriage permit, a contract carriage permit, a private service vehicle permit, a goods carriage permit under the Act, and the power to attach conditions or vary the conditions so attached to any such permit.

(iii)

Power to countersign or refuse to countersign a stage carriage permit, a contract carriage permit or a private service vehicle permit, granted in any other region in the State, and the power to attach conditions or vary the conditions so attached to any such countersignature.

(iv)

Power to renew or reject the application for renewal of any of the permit mentioned in clause (ii) or any of the countersignature mentioned in clause (iii) of this sub-rule.

(v)

Power to permit the replacement of any vehicle by any other vehicle of the same nature, under Section 83.

(vi)

Power to suspend a permit or a countersignature under Section 86 or to recover from the holder thereof the sum of money agreed upon in accordance with sub-section (5) or sub-section (7) of the said Section, subject to the provisions

of sub-section (4) of the said Section.

(vii)

Power to grant or renew, or refuse to grant or renew licences of the agents under Section 93, and the power to attach conditions so attached to any licence.

(viii)

Power to forfeit the security and the power to suspend or revoke any such licence granted under Section 93.

(ix)

Power to record change of address under Rule 85. Provided that the Secretary, R. T. A./R.T.O., as the case may be:-

(i)

keep informed the Regional Transport Authority from time to time of the action taken by him in pursuance of the powers delegated to him, and

(ii)

arrange to paste on a notice board on the premises of his office, a copy of every resolution of that Transport Authority delegating its power.

(2)

Notwithstanding anything contained in this Rule, a Regional Transport Authority may from time to time, issue instruction to the Secretary, R.T.A./ R.T.O., as to the manner in which the powers so delegated, shall be exercised.

70.

Application of sub-section (1) of Section 66.

- The provisions of subsection (1) of Section 66 shall apply to any motor vehicle constructed or adapted to carry more than nine persons excluding the driver.

71.

Exemption from sub-section (1) of Section 66.

(1)

The provisions of sub-section (1) of Section 66 shall not apply to-

(i)

any transport vehicle used as relief vehicle for carrying passengers and their luggage from a disabled stage carriage to the place of destination,

(ii)

any transport vehicle owned by a registered religious or charitable institution used for the purpose of such institution and specifically exempted by the State Government,

(ii)

any transport vehicle specified by the State Government in the notification in the Official Gazette, to be used for any public purpose.

72.

Disposal of applications under Chapter V of the Act.

(1)

When any application made under Chapter-V of the Act to the Transport Authority is received by the Secretary of the Transport Authority, he shall examine whether the powers to deal therewith have been delegated to any authority or person, and shall forward the application to such authority or person if the powers have been so delegated by the concerned Transport Authority.

(2)

In cases where the application is required to be considered by the State Transport Authority or the Regional Transport Authority, the concerned Secretary or such authority or person referred to in preceding sub-rule, shall scrutinise the application and call for such further particulars and make such other enquiry as may be considered necessary, and shall, subject to the general directions of the concerned Transport Authority decide whether the application be disposed off by the circulation procedure or at a meeting of the Transport Authority.

(3)

Normally, the application referred to in sub-rule (1) or sub-rule (2), shall be disposed off within one month of receipt thereof.

73.

Forms to be used for the purpose of Chapter-V of the Act.

(1)

Every application for a permit shall be:-

- (i)
in respect of a stage carriage, in Form P. St. S.A.
- (ii)
in respect of a stage carriage to be used as contract carriage also in Form P. Co. S.A.
- (iii)
in respect of a contract carriage.....in Form P. Co. PA.
- (iv)
in respect of a private service vehicle in Form P. Pr. S.A.
- (v)
in respect of a goods carriage...in Form P. Pu. C.A.
- (vi)
in respect of a temporary permit in Form P. Tern. A.
- (vii)
in respect of a special permit in Form P. Co. Sp. A.
- (viii)
in respect of a countersignature of a permit in Form P. C. S. A.

(2)

Every application for a licence shall be:-

- (i)
in respect of an agent engaged in the sale of tickets for travel by public service vehicles in Form L. Ag. A.
- (ii)
in respect of an agent engaged in the business of collecting, forwarding or distributing goods carried by goods carriages in Form L. Ag. G. C. A. of principal or supplementary licence.

(3)

Every application for a renewal shall be:-

- (i)
in respect of any permit or any countersignature of a permit.....in Form P.C.S.R.
- (ii)
in respect of and agent's licence granted with regard to public service vehicles in Form L. Ag. R.
- (iii)
in respect of an agent's licence granted with regard to goods carriages in Form L. Ag. G. C. R. for principal or supplementary licence.

(4)

Every application for a duplicate copy shall be:-

- (i)
in respect of any permit or any countersignature of a permit in Form P. C. B. D.
- (ii)
in respect of any agent's licence in Form L. Ag.D.

(5)

Every application shall be:-

- (i)
in respect of replacement of a motor vehicle on permit or countersignature of a permit in Form M. V. Rep. A.
- (ii)
in respect of transfer of permit on countersignature of a permit in Form Tr. PA.
- (iii)
in respect of change of address of the holder of permit or countersignature of a permit in Form C. Ad. A.

(6)

Every application shall be accompanied by a fee prescribed under Rule 71.

(7)

Every permit shall be:-

(i)

in respect of a stage carriage in Form P. St. S.

(ii)

in respect of a stage carriage to be used a contract carriage also in Form P. Co. S.

(iii)

in respect of a contract carriage in Form P. Co. P.

(iv)

in respect of a private service vehicle....in Form P. Pr. S.

(v)

in respect of a goods carriage....in Form P. Pu. C.

(vi)

in respect of a tourist vehicle in Form P. Tr. V.

(vii)

in respect of a temporary permit in Form P. Tern.

(viii)

in respect of a special permit....in Form P. Co. Sp.

(ix)

in respect of a countersignature of permit in Form P.C.S.

(x)

in respect of national permit in Form N.P Pu.C.

(8)

Every licence shall be:-

(i)

in respect of an agent's licence granted with regard to public service vehicle in Form L.A.

(ii)

in respect of an agent's licence principal or, supplementary, granted with regard to goods carriages in Form L.Ag. G.C.

(9)

Communication between the Transport Authorities under rule 73 shall be in Form T.A. Com.

(10)

Every permit or licence issued or countersigned in accordance with Chapter-V of the Act shall be sealed and signed by the Transport Authority or by the officer to whom the powers under Rule 65, or as the case may be, under Rule 66, have been delegated.

74.

[Fees payable under Chapter-V of the Act.

[Substituted by G.S.R. 7 dated 17.8.1994.]

- The fees to be paid alongwith the application under Chapter-V of the Act shall be-

The fees for the grant of renewal or variation of condition of a permit other than temporary permit for 5 years shall be in respect of as-]

Class of Vehicles Rate

RateRs.

Particular State Carriage.

2,000.00

Service of Stage Carriage.

2,000.00

Contract Carriage (Casual or particular) other than motor cab
for one region.

1,000.00

Contract Carriage (Casual or particular) other than motor cab
for two regions.

1,200.00

Contract Carriage (Casual or particular) other than motor cab for more than two regions.

2,000.00

Contract Carriage (Casual or particular) for cab (car) with meter for one region.

1,000.00

Contract Carriage (Casual or particular) for motor cab (car) with meter to two regions.

1,200.00

Contract Carriage (Casual or particular) for motor cab (car) with meter for more than two regions.

2,000.00

Contract Carriage (Casual or particular) for motor cab (car) without meter for one region or more.

5,000.00

Contract Carriage (Casual or particular) for motor cab (car) with special taxi-permit for one region or more.

6,000.00

Contract Carriage (Casual or particular) for motor cab (other than car) for one region with or without meter.

1,000.00

Contract Carriage (Casual or particular) for motor cab (other than car) for two regions with or without meter.

1,200.00

Contract Carriage (Casual or particular) for motor cab (other than car) for more than two regions with or without meter.

1,200.00

Private Carrier

1,000.00

Public Carrier for two

1,000.00

Public Carrier for two regions

1,200.00

Public Carrier for more than two regions

2,000.00

Private motor cars adapted to carry more than nine passengers excluding the driver.

500.00

(a)

The application for grant or renewal or variation of condition of permit shall be accompanied by a fee prescribed below:-

Particular Stage Carriage

100.00

Service of Stage Carriage

100.00

Contract Carriage (Casual or particular)

50.00

Private Carrier Permit

50.00

Public Carrier's Permit

50.00

Private motor car (seating capacity more than nine excluding driver and conductor used for hire or reward).

50.00

(b)

The fees for the grant or renewal or countersignature of a permit other than a temporary permit shall be:-

(i) For route or routes or area or areas in one region in the State.

500.00

(ii) For route or routes or area or areas in more than one region in the State.

800.00

(iii) For route or routes or area or areas in this State in respect of permits issued by other State.

1000.00

(c)

The fee for the temporary permit:-

For inter-regional or inter-State (separately for each purpose) shall be:-

For seven days or part thereof

50.00(no change)

For four months (other than Auto-ricksaw)

240.00(no change)

For four months (Auto-ricksaw)

45.00(no change)

(d)

The fee for countersignature of permanent permit:-

(i) If valid for route or routes or area or areas in the State.

250.00

(ii) for route or routes or area or areas in this State in respect of permits issued by other State.

500.00

(e)

The fee for the replacement of a vehicle covered by a permit holder shall be.

200.00

(f)

The fees in respect of an application for approval of a taxi-meter shall be.

200.00

(g)

The fee for the transfer of a permit shall be.

500.00

(h)

The fee for the issue of a duplicate permit or a duplicate part of a permit in place of permit or part of a permit lost or destroyed part 'A' or part 'B' or authorisation or any part of the permit shall be.

100.00

It shall be effective from the date of its publication.

75.

Exemption from payment of fees.

- The State Government may, if it is of opinion that it is in the public interest so to do, by general or special order exempt, any person or class of persons from payment of all or any portion of the fees payable under Chapter-V of the Act.

76.

Communication between the Transport Authorities.

- (i) Whenever the original Transport Authority grants or renews a permit to be operative in any other region or regions within the State by extending its validity under Rule 81, it shall intimate the fact of such grant or renewal to the Transport Authority of such other region or regions.

(ii)

The Transport Authority which grants or renews a countersignature, of a permit issued by another Transport Authority, such Authority shall intimate the fact of such grant or renewal to the original Transport Authority.

(iii)

The original Transport Authority replaces a motor vehicle by another vehicle, on the permit bearing the countersignature of any other authority, it shall intimate the fact of such replacement to the Transport Authority by which the permit was countersigned.

(vi)

The original Transport Authority transfers a permit bearing the countersignature of any other authority, it shall intimate the fact of such transfer to the Transport Authority by which the permit was countersigned.

(v)

The original Transport Authority varies the conditions of a permit operative in any other region or State by virtue of a countersignature or otherwise, it shall intimate the fact of such variation to the other Transport Authority in whose area the permit is so valid.

(vi)

The Transport Authority varies the conditions or a countersignature of the permit, it shall intimate the fact of such variation to the original Transport Authority.

(vii)

The Transport Authority suspends or cancels a permit or countersignature of the permit, it shall intimate the fact of such suspension or cancellation to the Transport Authority in whose area the permit or the countersignature is so valid.

(2)

The intimations under sub-rule (1) shall be in the form prescribed under Rule 73.

77.

Refusal of an application for private service vehicle permit.

- Subject to the provisions of sub-section (2) of Section 80, the Regional Transport Authority may in its discretion refuse, an application for a private service vehicle permit, if it is satisfied that-

(i)

such application is made on behalf of a union or an association, which has been formed by individual person carrying on trade or business for the specific purpose of providing a collective transport, without having any other joint liability in their individual trade or business, if fees or expenses are recovered in some form or others to meet the operating expenses of the vehicle; or

(ii)

the applicant is the holder of a private service vehicle, permit, which has been suspended or cancelled.

78.

Entry of registration mark on permit.

(1)

Where the registration mark of the vehicle is to be entered on the permit and the applicant is not on the date of application in position of the vehicle then the application shall within one month of the sanction of the application by the Transport Authority may specify, produce before the authority the certificate of registration of the vehicle registered in his name in order that particulars of the registration mark may be entered in the permit.

(2)

No permit shall be issued until the registration mark of the vehicle to which it relates has, if the form of permit so requires, been entered and in the event of any applicant failing to produce the certificate of registration within the specified period, the Transport Authority may withdraw its sanction of the application.

79.

Additional conditions in respect of certain permits.

(1)

A permit in respect of stage carriage shall be subject to the following conditions namely:-

(a)

that its holder shall not use a stage carriage in a public place for carrying or intending to carry passengers unless it carries a conductor;

(b)

that there shall be exhibited on the vehicle adequate particulars indicating to the public the place to which and the route by which the vehicle is proceeding;

(c)

that the service of stage carriage shall be regularly operated on the specified route in accordance with the approved time-table;

(d)

that a copy of the Rule 115 in English and Hindi language shall be carried in a prominent place in every stage carriage operated by him.

(2)

A permit in respect of a tourist vehicle shall be subject to the following conditions in addition to those prescribed by Central Government under clause (iii) of subsection (11) of Section 88:-

(a)

that no goods shall be carried in the vehicle in addition to or to the exclusion of passengers;

(b)

that the attendant of the tourist vehicle shall wear the same uniform as may have been specified for the driver of such vehicle.

(3)

A permit in respect of a contract carriage may be subject to one or more of the following conditions:-

(a)

that the vehicle shall not be driven in a public place except by the permit holder or a driver authorised by him in writing and approved by the Regional Transport Officer or Asstt. R. T. O., as the case may be which writing an approval shall be carried by such driver when driving and shall, on demand by any police officer or officer of the Motor Vehicle Department of and above the rank of an Asstt. Motor Vehicle Inspector, in uniform, produce such authorisation for examination;

(b)

that the number of persons or the weight in kilograms to be carried in the vehicle shall not exceed the number of weight which may be specified in the permit;

(c)

that no advertising device, figures or writing shall be exhibited on the vehicle;

(d)

that the holder of the permit shall maintain a register showing the list of passengers travelling in the vehicle in each and every trip performed by the said vehicle in the form append to this sub-rule and shall also cause a copy of the said list of passengers to be carried in the vehicle when the vehicle is being used in a public place, and the driver, attendant or the representative of the holder of the permit shall, on demand by the checking officer, produce such list for examination:

Provided that the provisions of this sub-rule shall not be applicable to the motor cabs and maxi-cabs:

Provided further that the State Government may, by an order in the Official Gazette, exempt permit holder of specified class from the operation of this sub-rule subject to such conditions as may be specified in the order.

Form

M. V. No.....

Period of engagement

From date

Time:

To date

Time

Route List of passengers.....

Sl. No.

Full name of the passenger

Full address

Age

1

2

3

4

(4)

A permit in respect of a public service vehicle shall be subject to the condition that its holder shall make provision on such vehicle for the conveyance of a reasonable quantity of passenger's luggage with efficient means for securing it and protecting it against rain.

(5)

A national permit granted under sub-section (12) of Section 88 shall operate subject to such local restrictions regarding maximum load to be carried etc. as may be laid down from time to time;

(6)

A permit in respect of a transport vehicle shall be subject to the following conditions, namely:-

(a)

that the vehicle shall not be used for carriage of any article, the transport of which is prohibited by or under any law for the time being in force in the State of Bihar;

(b)

the holder of the permit shall cause the permit to be carried in a glazed frame or other suitable container carried in the vehicle in such a way as to maintain is in a clear and legible condition and readily available for inspection at any time by any person duly authorised in that behalf;

(c)

that the holder of the permit shall maintain the vehicle in a clean and sanitary condition;

(d)

that the holder of the permit shall comply with all the requirement of the Act and the rules made thereunder.

80.

Variation of conditions of permit.

(1)

The permit holder may, apply in writing to the Transport Authority to vary any of the conditions of the permit, alongwith a fee prescribed under Rule 74 and the Transport Authority may in its discretion vary such conditions.

(2)

A Regional Transport Authority may vary any of the conditions of the permit or attach to the permit further conditions, without affording the holder of the permit an opportunity of being heard, if such variation of addition of permit is in accordance with any particular or general direction issued by the State Transport Authority under sub-section (4) of Section 68, or involves a question of principle which has already been decided by a ruling of the Regional Transport Authority or of the State Transport Authority, and such ruling has not been modified upon appeal, and Regional Transport Authority may attach any other condition which may be prescribed.

(3)

Where the Transport Authority has given a notice of one month, to vary the conditions of the permit or to attach to the permit further conditions in the Official Gazette, then after the expiry if such period from the date of publication shall be deemed to have been attached to the permit and such permit holders shall produce their permits before the Transport Authority by which the permit is issued for incorporation of such variations or additions of conditions, in the existing

permit.

81.

Extension of area of validity of permits.

(1)

Subject to the provisions of Section 88 and of this rule a Regional Transport Authority which issues a permit (hereinafter referred to as the "Original Transport Authority") may extend the area of validity of a permit other than a stage carriage permit and a goods carriage permit, for any area in any other contiguous region within the State in accordance with any general or special resolution passed and recorded by the Transport Authority of each of the other region concerned; and the original Transport Authority may, upon such extension, attach conditions to the permit with effect to such region or regions and may likewise attach different conditions in respect of different regions.

(2)

The vehicle, in respect of which the area of permit is so extended, shall normally be kept within the area of the Original Transport Authority.

(3)

The Original Transport Authority which issue a permit to be operative in any other region or regions, shall intimate the fact of issue and also send a copy of the permit, to the Transport Authority of such region or regions.

(4)

The Original Transport Authority shall not extend the area or validity of a contract carriage permit other than the contract carriage permit in respect of motor cabs and maxi cabs, unless it attaches the condition to the permit to the effect that, if the vehicle is using the other region or regions is discharged or released, from the contract by the passengers in such other region, it shall not be offered for hire or reward on its return journey, for picking up any passenger traffic from any place within such other region or regions for the purpose of visiting any place in the State.

(5)

An application for special permit shall be made not less than three days before the date on which it is desired that the permit shall take effect:

Provided that the Transport Authority may, having regard to the circumstances of the case, entertain such application made to it at any time.

(6)

Having regard to the circumstances of the case the Transport Authority of the region in which the vehicle alongwith its party or passengers happens to be at the time, may for the purpose of extension of the journey, extend the validity of special permit with respect of its expiry or the route on the area, provided the necessary taxes and the fee provided for the grant of such permit is paid.

(7)

Where the State has entered into reciprocal arrangements with any other State, the Regional Transport Authority shall not grant any special permit valid in any part of that other State except in conformity with the terms of their reciprocal arrangements.

(8)

A special permit granted by a Regional Transport Authority of another State in accordance with sub-section (8) of Section 88 shall unless the reciprocal arrangement between the two States provides otherwise, be valid without countersignature subject to the following conditions, namely:-

(i)
the tax payable to the State according to the [Bihar Motor Vehicle Taxation Act, 1930]

[Now, See Act 8 of 1994.]

is paid in advance.

(ii)

at least three days advance intimation of the intention to enter the State is given to the Secretary of the Regional Transport Authority within whose jurisdiction the vehicle is proposed to enter the State.

(iii)

the period of validity of the special permit in the State shall not exceed a period of one month.

(9)

A permit in respect of a tourist vehicle granted by the State Transport Authority of any other State in accordance with

sub-sections (9) to (11) of Section 88 shall be valid in this State, if the tourist vehicle covered under the said permit is chartered by the tourists in the Home State for visiting this State:

Provided that if such tourist vehicle visiting this State is discharged/released in this State by the said tourists, it shall not be offered for hire or reward on its return journey for picking up any passenger traffic including tourist traffic from any place within this State for the purpose of visiting any other place either in this State or in any other States.

82.

Renewal of permits or countersignature.

(1)

An application for renewal of a permit or a countersignature of a permit shall be made in the form prescribed under Rule 70, to the Transport Authority by which the permit or countersignature of a permit was issued and shall be accompanied by the permit or the countersignature, as the case may be, and the fee prescribed under Rule 74.

(2)

Subject to the provisions of sub-section (9) of Section 52 and sub-section (4) of Section 81, the Transport Authority may renew the permit or the countersignature, as the case may be.

(3)

The original Transport Authority which renews a permit may, unless any Transport Authority by which the permit has been countersigned has, by general or special resolution, otherwise directed, likewise renew the countersignature of the permit, and shall intimate the fact of renewal of permit and its countersignature to the Transport Authority by which the permit was originally countersigned.

(4)

Unless the countersignature is renewed under this rule, it shall be of no effect beyond the date of expiry stated therein.

(5)

The Original Transport Authority which renews a permit to be operative in any other region or regions in accordance with the provisions of Rule 81 shall intimate, the fact of renewal of permit to the Transport Authority of that region or regions.

(6)

The original Transport Authority which renews a permit to be operative in any other region or State by way of a countersignature on it, shall intimate, the fact of renewal of permit, to the Transport Authority by which the permit has been countersigned.

(7)

The Transport Authority which renews a countersignature of a permit under sub-rule (2), shall intimate the fact of renewal of countersignature to the Transport Authority by which the permit was issued.

83.

Replacement of a vehicle covered by permit.

(1)

If the holder of permit desires at any time to replace the vehicle with another, he shall apply to the Transport Authority by which the permit is issued, in the form prescribed under Rule 73, accompanied by a fee prescribed under Rule 74; and shall:-

(i)

If the new vehicle is in his possession, forward the certificate of registration thereof, and the permit;

(ii)

If the new vehicle is not in his possession, State any material particulars and the nature of the proposed new vehicle;

(iii)

If the vehicle covered by the permit is held under a hire purchase, lease or hypothication agreement, forward a no-objection certificate referred in sub-section (6) of Section 51, obtained from the financier.

(2)

Upon receipt of an application under sub-rule (1), the Transport Authority may in its discretion reject the application:-

(i)

if it has prior to the application, given reasonable notice of its intention to reduce the number of transport vehicles of that class generally or in respect of the route or area to which the permit applies; or

(ii)

if the new vehicle proposed differs in material particulars and in its nature, from the old vehicle; or

(iii)

if the holder of the permit has contravened the conditions of the permit.

(3)

If the Transport Authority grants permission for the replacement of a vehicle under this rule, it shall call upon the holder of the permit to produce the permit and the certificate of registration of the new vehicle, if not previously delivered to it, and shall correct the permit accordingly and return it to the holder.

(4)

The original Transport Authority which, replace motor vehicle on a permit may, unless any Transport Authority by which the permit has been countersigned has, by general or special resolution otherwise directed, likewise endorse the replacement on the countersignature of the permit, and shall intimate the fact or replacement, to the Transport Authority by which the permit was countersigned.

(5)

The original Transport Authority which replaces a motor vehicle on a permit operative in any other region or regions in accordance with the provisions of Rule 81, shall intimate the fact of replacement, to the Transport Authority of that region or regions.

(6)

The original Transport Authority which replace a motor vehicle on a permit operative in any other region or State by way of a countersignature on it, shall intimate the fact of replacement to the Transport Authority by which the permit has been countersigned.

84.

Alteration in a vehicle covered by permit.

(1)

Further to the provisions of Section 52, the owner shall, at the same time as the report required by that section is made to the registering authority, forward a copy thereof to the Transport Authority by which the permit relating to the vehicle was granted.

(2)

Upon receipt of a report under sub-rule (1), the Transport Authority by which the permit was granted may, if the alteration is such as to contravenes any of the provisions or conditions of the permit:-

(i)

vary the permit accordingly, or

(ii)

require the permit holder to provide a substitute vehicle within such period as the authority may specify, and if the holder fails to comply with such requirement, suspend or cancel the permit.

85.

Change of address of permit holder.

(1)

If the holder of a permit or a countersignature ceases to reside or have his principal place of business at the address recorded in it, he shall within fourteen days of any such change of address, intimate in the form prescribed under Rule 73, accompanied by such documents as may be specified by the Transport Authority alongwith a fee prescribed under Rule 74 his new address, to the Transport Authority by which the permit or countersignature was granted.

(2)

On receipt of intimation under sub-rule (1), the Transport Authority may, after making such verification as it may think fit, cause the new address to be entered in the permit or countersignature, as the case may be, and shall intimate the altered address to the concerned Transport Authority.

(3)

Nothing in sub-rule (1) shall apply where the change of the address recorded in the permit is due to a temporary change not intended as to exceed three months in duration.

86.

Procedure of cancellation, suspension or expiry of permit.

(1)

The holder of a permit may at any time surrender the permit to the original Transport Authority and the authority shall

forthwith cancel any permit so surrendered.

(2)

Where a Transport Authority suspends or cancels any permit granted by it, such authority shall intimate the fact of such suspension or cancellation to any Transport Authority by which the permit has been countersigned and to any Transport Authority in the region of which, the validity of such permit has been extended under Rule 81.

(3)

Where a Transport Authority suspends or cancels any countersignature of a permit, such authority shall intimate the fact of such suspension or cancellation, to the Transport Authority by which the permit was granted.

(4)

Upon cancellation of any permit or a countersignature of a permit, the holder shall surrender the permit or countersignature, as the case may be immediately the cancellation takes effect and upon suspension, shall also surrender:-

(i)

the certificate of registration of the vehicle,

(ii)

the plates bearing the registration mark of such vehicle.

(5)

Within 3 days in case of a stage carriage and 7 days in any other case, of the expiry of the permit by efflux of time, the holder shall deliver the permit to the Transport Authority by which it was granted, and, the authority receiving any such permit shall intimate the fact to the Transport Authority or Authorities by which it was countersigned and to any Transport Authority in the region of which the validity of such permit has been extended under Rule 81.

(6)

The holder of the permit shall within fifteen days of the receipt of order of suspension or cancellation of permit, intimate:-

(i)

to the Transport Authority suspending or cancelling the permit, or the countersignature thereof; and

(ii)

to the Transport Authority in the region of which the validity of such permit has been extended under Rule 78.

The place where the vehicle in respect of which the order is passed will be kept, during the period of suspension or upon the cancellation of permit. Such holder shall not remove the vehicle from the place so intimated without the prior permission of the Regional Transport Authority in whose region the vehicle is so kept.

87.

Transfer of permit.

(1)

Where the holder of a permit desires to transfer the permit to some other person under sub-section (1) of Section 82, he shall, together with the person to whom he desires to make the transfer, make a joint application in writing in the form prescribed under Rule 73, to the Transport Authority by which the permit was granted, setting forth the reasons for the proposed transfer, and shall be accompanied by a fee prescribed under Rule 74.

(2)

The Transport Authority may summon both the parties to the application to appear before it and may, if it deems fit, deal with the application as if it were an application for a permit, and the Transport Authority may require the holder and the other party to State in writing whether any premium, payment or other consideration existing out of the transfer, is to pass or has passed between them and the nature and amount of any such premium, payment or other consideration.

(3)

Without prejudice to any other penalties to which the parties may be liable, the Transport Authority may declare void any transfer of permit made upon such application, and there upon such transfer shall be void and of no effect, if it is satisfied that any matter stated to it under sub-rule (2) of any material particular in the application, was false.

(4)

If the Transport Authority is satisfied that the transfer may properly be made, it shall call upon the holder of the permit in writing to surrender the permit within seven days of the receipt of the order.

(5)

Upon receipt of the permit, the Transport Authority shall make necessary corrections therein and shall if permit bears

any countersignature, endorse the permit with the words "Transfer of permit valid for" inserting the name of the authority by which the permit has been countersigned with effect from the date of transfer.

(6)

Unless the permit has been endorsed as provided in sub-rule (5), the countersignature shall be of no effect beyond the date of transfer.

(7)

Where the holder of the permit dies, the person succeeding to the possession of the vehicle covered by the permit shall make an application for transfer of permit in the form prescribed under Rule 73, to the transport authority by which the permit was granted, alongwith the permit, the certificate of registration, death certificate in respect of deceased permit holder, and shall be accompanied by a fee prescribed under Rule 74.

88.

Production of permit.

- The permit shall always be kept with the vehicle and the driver or other person in charge of a vehicle shall produce the permit, on demand by any officer of the Motor Vehicle Department of and above the rank of an Assistant Inspector of Motor Vehicles or any Police Officer not below the rank of a Sub-Inspector of Police.

89.

Provision of taxi meter on motor cabs.

(1)

A Regional Transport Authority may, by notification in the Official Gazette, require that within the limits of such area as may be specified in the notification, all motor cabs or any class of motor cabs shall be fitted with taxi meter.

(2)

Where a notification as aforesaid has been issued, permit in respect of any motor cab covered by the notification shall not be granted unless such motor cab is fitted with approved taxi meter.

90.

Compulsory fitment of taxi meter.

- No motor cab required to be fitted with a taxi meter under Rule 89 (hereinafter referred to as "meter") shall be used in a public place unless:-

(i)

it is fitted with a meter of a type approved by the State Transport Commissioner's, and

(ii)

the provisions of Rules 95, 97 and 98 are complied with.

91.

Prohibition of use of motor cab with defective meter.

(1)

No meter which is in any way defective shall be fitted to any motor, cab and no cab which is fitted with a defective meter shall be used in any public place.

(2)

Upon service of a notice issued by any officer of the Motor Vehicles Department, on the owner of any motor cab, prohibiting the use of the meter fitted shall at once be removed and the motor cab shall be immediately withdrawn from service.

92.

Unauthorized interference with meter.

(1)

No person shall break or in any way tamper with any seals or makes placed on a meter or, with an intent to deceive tamper with a meter.

(2)

No meter shall be altered or modified with the written permission of the State Transport Commissioner.

93.

Approval of meters.

(1)

An application for the approval of a new or a modified type of a meter shall be made to the State Transport

Commissioner and shall be accompanied by two complete specimens of the meter and detailed description with drawings of its mechanism and a fee prescribed under Rule 74.

(2)

The State Transport Commissioner shall send the meters to any of the testing institutes where they shall be subjected to an exhaustive test in order to ascertain whether they comply with the requirements specified in Rule 74 and is otherwise suitable for use. At least one of the meters shall be opened and such parts removed as may be required for a comprehensive examination of the mechanism.

(3)

After the test, one meter shall be retained at the testing institute as a sample instrument and the other shall be sealed and returned to the State Transport Commissioner.

(4)

After considering the report received from the testing institute the State Transport Commissioner shall if he is satisfied that the meter complies with the requirements specified in Rule 94, and is otherwise suitable for use, approve the meter by an order in writing and shall send copy of such order to all the registering authorities within the State and the applicant.

(5)

If upon the report received from the testing institute, the State Transport Commissioner is of the opinion that the meter does not comply with the requirements specified in Rule 94 and is not otherwise suitable for use, he shall refuse the approval and shall inform the applicant accordingly after recording the reasons for refusal.

94.

Constructional requirement of meters.

(1)

Method of indicating fare etc. - Every meter shall be so constructed (i) indicate in suitable slots upon the dial the amount of fare calculated by time and/or in kilometers and (ii) to have a flag, the position of the flag showing whether or not the meter is in action (i.e. 'Hired' or 'For hire') or stopped.

(2)

Information to be given in slots. The nature of the information given in each slot, i.e. fare, position of flag and extra charges shall be indicated by suitable wording immediately above or below the slot. The words or signs denoting rupees and paise shall be placed immediately above, below or beside the appropriate disc or drum positions.

(3)

Letters and wording. - (i) The letters and figures shown in the slots shall be of a size which the State Transport Commissioner considers to be reasonable and shall be so placed as to be easily readable by the hirer.

(ii)

All letters and figures required to be shown on the meter and gearboxes shall be of such size, form and colour as would render them clearly legible.

(4)

Flag. - The flag of the meter shall be suitable strength and shall bear the words 'For Hire' in the white letters of plain book type at least 50 millimetres in height and a proportionate thickness on a red coloured ground so that they may be easily read from a distance. The arm or lever which carries the flag shall be of such length that when it is kept vertical the lower edge of the flag is above the highest part of the meter.

(5)

Mechanism and operation. - The mechanism of the meter shall be so designed that:-

(a)

(i)

the words 'For Hire' are indicated in the appropriate slot when the flag arm is vertical,

(ii)

the word 'Hired' is indicated when the arm has been rotated through 130 degrees and the time and distance gearing are in engagement,

(iii)

the word 'stopped' is indicated when the arm is arrested in horizontal position at 270 degrees.

(b)

the flag arm cannot normally remain in any position other than the three positions mentioned in clause (a),

(c)

The fare calculated by time ceases to be recorded when the flag is in the 'stopped' position,

(d)

the fare calculated by distance is recorded on the meter if the motor cab is driven with the flag in the 'stopped' position,

(e)

the fare recorded is not obscured when the flag is in the 'Hired' or 'stopped' position,

(f)

it is not possible (i) to move the flag back from the "Hired" position to 'From Hire' position or (ii) to return the flag from 'stopped' position to 'Hired' position,

(g)

when the flag arm is raised to a vertical position (i.e. the 'For Hire' position), the previous record of fare is cleared and the various mechanisms are brought to their initial positions,

(h)

before the flag can again be rotated, the full vertical position shall be reached, and a positive stop made thereto ensure that the mechanism comes to rest and that the fare indication is obscured by a shutter,

(i)

the mechanism for recording time and distance cannot be engaged disengaged except by the normal sequence of operation of the flag arm referred to in clauses (a) and (f), and

(j)

the operation of the shutter for obscuring the fare synchronises with the engaging and disengaging of the time and distance mechanism of the meter.

(6)

Audible warning. - Every meter shall be so constructed that it gives audible warning by means of a suitable bell or going whenever the driver moves the lever which operates the recording mechanism.

(7)

Sealing. - (a) Every meter shall be so made as to be capable of being sealed by inset lead scale after the meter has been tested and approved. The holes or recesses for the scale shall be 3 millimetres deep and shall taper gradually in diameter from at least 18 millimetres at the bottom to 16 millimetres at the top.

(b)

When the gear which operates the distance recording apparatus is not contained in the main part of the machine, the case of cover enclosing it shall be so made that it may be sealed either by the inset or wired on type of seal.

(c)

All meter cable connections shall be so made as to be capable of being sealed by means of inset or wired on lead seals, to prevent improper removal.

(8)

Driving mechanism. - The mechanism driving the distance recording gearing of meters shall be fitted not to the driving wheels of a motor cab, but to the non-driving wheels of the chassis gear-box attached to the cab.

(9)

Plates. - (a) A plate of suitable size and pattern shall be attached to the meter or its gear-box in such a manner that it cannot be removed without either removing the seals affixed by the testing institute or opening the meter or the gearbox. The plate shall bear raised or sunken words, or figure denoting the measurement of the effective circumstances of the wheel by which the meter will be driven and by which its action and accuracy may be tested.

(b)

The measurements shown on the plate shall be in accordance with the circumstances of the wheels of minimum size approved for the cab and normally attached thereto.

Explanation. - The effective circumstance of the cab wheel to which the meter transmission gearing is attached and by which the meter is driven is the distance which the cab moves forward for one complete revolution of the wheel and may be measured by making a mark on the tyre of the wheel where it touches the ground and pushing the motor cab in a straight line until this mark is again in contact with the ground, the motor cab being in its normal working condition and carrying two passengers.

95.

Rough test of meter its fitment on motor cab.

(1)

A meter of any type approved under Rule 93, shall, before being fitted to a motor cab, be sent to the testing institute for a rough test whether the meter accurately registers time and distance and also for examination as regards its external appearance, general action and conformity with the approved type.

(2)

Arrangements shall be made at the testing institute for the action of the meter to be demonstrated by a person familiar with its construction and technical details, and after such demonstration, the person submitting the meter shall supply, for at least one day, a motor cab fitted with such meter or to which one of such meters submitted may be fitted.

(3)

The meter submitted for a rough test may be opened for interior examinations, as it may be deemed necessary.

(4)

If after test and examination, the meter is found to be suitable it shall be sealed at the testing institute in such a manner that interior parts cannot be reached without breaking the seal.

(5)

Every meter in use shall be submitted for test at the testing institute, not more than 30 days before the date on which the motor cab is to be produced for the renewal of certificate of fitness, and the report of such test shall be produced at the time of renewal of certificate of fitness.

96.

Fees, that may be charged by the testing institute.

- The following are the maximum fees that may be charged by the testing institutes for different tests:-

I.

Tests of new types of taxi meters

For a complete examination

Rs. 150

For testing a flexible staff

Rs. 30

II.

Rough tests of approved types of taxi meters

For test of single meter of approved type

Rs. 30

For each re-test

Rs. 15

97.

Location of meter on a motor cab.

(1)

The meter shall be fitted in such position and in such manner as may be approved by the Regional Transport Authority, having regard to the design of the motor cab. It shall normally be fixed on the near side of the driver's seat, with the face or dial towards the interior of the cab. So as to be clearly visible to the hirer and also capable of being read both by the hirer and the driver.

(2)

Flexible or driving gear or gear-boxes shall be so affixed that no part of the cable etc. can be reached by an unauthorised person.

(3)

The meter or its gear-box shall not be fitted to a motor cab the effective circumstances of the wheel of which is different from that for which the meter has been designed, geared and tested.

(4)

The effective circumstances of the wheel by which the meter is driven shall not be more than five percent of and less than the measurement shown on the plate attached to the meter under sub-rule (9) of Rule 94.

(5)

Every motor cab required to be fitted with meter shall have a light so fixed as to illuminate the meter at night.

98.

Sealing of meter after road test.

- After the meter is fitted to a motor cab and before the cab is let or plied for hire, it shall be taken to any officer of the Motor Vehicles Department of and above the rank of an Assistant Motor Vehicles Inspector, who shall examine the meter as to the correctness of fittings and submit it to a practical road test of about eight kilometers and time test of not less than half an hour. If the meter is found to be correct its fittings to the cab shall be sealed by such officer in such manner that they cannot be removed or tampered with, without removing the seals.

99.

Meter repairs.

(1)

After it is sealed under Rule 98, no repairs to any meter shall be made except by a maker, or a repairer approved by the Regional Transport Authority.

(2)

Any person applying for being approved as a repairer for the purpose of sub-rule (1) shall satisfy the Regional Transport Authority that:-

(i)

the applicant is of good character and of good business repute;

(ii)

the applicant's financial position is sound;

(iii)

the applicant is generally a fit and proper person to undertake the repair or modification of taxi meters;

(iv)

the applicant maintains an efficient staff and suitable equipment at his premises and has sufficient supply of spare parts for the repair of meters:

Provided that the premises where the work of repairs or modification of meters is to be carried on shall be open at all reasonable times for inspection by officers of the Motor Vehicles Department and that they shall notify to the Regional Transport Authority if the situation of the premises is, at any time changed.

(3)

The Regional Transport Authority may, in its discretion, revoke the approval of a repairer if it is found that such person is unable to comply or has not complied with the requirements set out in sub-rule (2) or if the business is not carried on to the satisfaction of such authority.

100.

Revocation of approval of meter.

- If on receipt of a complaint from any member of the public or of a report submitted by the Secretary, Regional Transport Authority or an Inspector of motor vehicles or police officers not below the rank of Sub-Inspector of Police, the State Transport Commissioner is satisfied that meters of any type approved under Rule 93, do not record fares correctly, or develop defects or go out of order at frequent intervals, or have ceased to conform to the requirements of Rule 94, he may, after giving a reasonable opportunity to be heard, to the person on whose application such type of meter was approved and to the person, officer or authority on whose complaint or report as the case may be, the revocation of approval of such type of meter is sought, and after such further enquiry, as he may deem necessary, revoked the approval given to such type of meter, and shall inform the person whose application such type of meter was approved, of his order on the reasons therefore:

Provided that, in case the approval is revoked on the ground that, the meter has ceased to conform the requirements of Rule 94, the order of revocation shall not apply to the meters of such type which are already sealed and in use on the date of such order:

Provided further that, in case the approval is revoked on any of the grounds that, the meters do not record fares correctly or develop defects or go out of order at frequent intervals, the meters of such type which are already sealed and in use on the date of such order, shall be replaced by any other type of the approved meters, within three months of the date of such order.

101.

Licensing of agents engaged in sale of tickets.

(1)

No owner shall employ any person to act as an agent for sale of tickets for travel by public service vehicles unless that person holds a valid agent's licence.

(2)

No person under the age 20 years shall hold an agent's licence.

(3)

No person shall hold more than one agent's licence effective in the same region.

(4)

Every owner of a public service vehicle to be let or plied for hire shall intimate of the Regional Transport Authority concerned the name and address of the person appointed on his behalf to act as the agent who has been engaged in the sale of the tickets to passengers for travel by such vehicle.

(5)

Application for an agent's licence shall be made to the Regional Transport Authority of the region wherein the applicant intends to carry on the business, in the form prescribed under Rule 73, and shall be accompanied by three clear copies of a recent photograph of the applicant and by a fee prescribed under Rule 74.

(6)

Application for the renewal of an agent's licence shall be made to the Regional Transport Authority by which the agent's licence was issued, in the form prescribed under Rule 73, and shall be accompanied by the fee prescribed under Rule 74.

(7)

An agent's licence shall be valid for a period of three years from the date of issue or renewal and shall be effective only in the region wherein it is issued or renewed.

(8)

The Regional Transport Authority may, for reasons to be recorded in writing, refuse to issue or renew an agent's licence or grant licence on such conditions as the Regional Transport Authority may consider fit to impose.

(9)

The Regional Transport Authority shall, while granting or renewing a licence or at any time during the validity of a licence, by order require the licensee to furnish a security in cash, of one thousand rupees and when a licensee has furnished earlier any security in pursuance of an order passed under this sub-rule additional security not exceeding one thousand rupees.

(10)

(i)

The Regional Transport Authority may, for reasons to be recorded in writing, suspend or cancel an agent's licence.

(ii)

On an agent's licence being suspended, cancelled or not renewed, it shall be surrendered forthwith to the Regional Transport Authority which issued the licence.

(11)

The Regional Transport Authority may order the forfeiture, in whole or in part, of the security furnished by the licensee, for contravention of any provision of this Rule or for breach of any of the conditions attached to his licence:

Provided that no such forfeiture shall be ordered, unless the licensee is given an opportunity of being heard.

(12)

In the event of the forfeiture of the security in whole or in part, the licence shall cease to be valid if the licensee fails to make payment or bring the security already furnished by him to its original value within thirty days of the receipt of the order of forfeiture.

(13)

The agent shall on demand by the Police Officer in uniform not below the rank of Sub-Inspector of Police or an Inspector or Assistant Inspector of Motor Vehicles in uniform produce his agent's licence for inspection.

Explanation. - For the purpose of Section 93 and of this Rule, persuading any person, soliciting or attempting to persuade any person, to travel in a vehicle shall be deemed to be acting as an agent for the sale of tickets for travel thereby.

102.

Licensing of agents engaged in collecting, forwarding or distributing goods.

- For the purpose of Rules 103, 104, 105, 107, 108 & 109 unless the context otherwise requires:-

(a)

"agent" means any person who is engaged in the business of collecting, forwarding or distributing goods carried by road by goods carriages plying for hire;

(b)

"agent's licence" means a licence granted to an agent under sub-rule 3 of Rule 103 for the principal establishment and includes a supplementary licence granted to such agent for any additional establishment such as, branch offices specified in such supplementary licence; and

(c)

"Licensing Authority" means a Regional Transport Authority of the region in which the applicant intends to carry on the business, and in any other case, of the region in which the applicant has his principal place of business.

103.

Grant of agent's licence.

(1)

Any person desiring to obtain an agent's licence shall make an application to the licensing authority in form prescribed under Rule 73, accompanied by a fee prescribed under Rule 74.

(2)

In considering the application made under this rule, the licensing authority shall have due regard, among other things to:-

(a)

the number of goods carriages, if any, either owned by the applicant or under his control;

(b)

the suitability of accommodation in the charge of the applicant for the storage of goods at every operating place;

(c)

the facilities provided by the applicant for parking the goods carriages while loading or unloading without hindrance to the general traffic in the area; and

(d)

the financial resources of the applicant and his experience in the trade.

(3)

The licensing authority shall either grant or renew the licence including a supplementary licence for branch offices, if any, in the form prescribed under Rule 73, specifying the place or places where the business may be carried on, or refuse to grant or renew the licence:

Provided that the licensing authority shall not refuse to grant or renew, the licence or a supplementary licence for a branch office, unless the applicant is given an opportunity of being heard, and the reasons for refusal are recorded and communicated to him in writing.

(4)

The Licensing Authority shall, while granting or renewing a licence including any supplementary licence or at any time during the validity of a licence, by order require a licensee to furnish a security in cash of five thousand rupees and when the licensee has furnished earlier any security in pursuance of an order passed under this sub-rule, additional security not exceeding five thousand rupees.

(5)

The licence shall be in two parts, namely, the principal part (hereinafter referred to as "the principal licence") in which supplementary licence issued for every separate establishment or branch office for loading, or unloading or receipt or delivery of consignments is carried on, shall be mentioned, and the supplementary part (hereinafter referred to as "the supplementary licence"). The details of the establishments or branch office (such as municipal house no., the nearest road, by lane, the postal delivery districts and other land marks in the vicinity to enable identification of the place of business duly attested by the licensing authority) shall be attached to the licence.

(6)

The principal licence shall be kept and displayed prominently at the head office and the supplementary licence shall be

kept and displayed prominently at each branch office to which it refers, except when the principal licence or supplementary licence, as the case may be, forwarded to the licensing authority for effecting renewal thereof. Such licence shall be produced before any office of the Motor Vehicles Department or any Police Officer not below the rank of a Sub-Inspector of Police when required by such officer.

(7)

The agent's licence shall be non-transferable.

(8)

The agent's licence shall be valid for a period of three years from the date of grant or its renewal. The date of expiry of the supplementary licence shall be co-terminus with the date of expiry of the principal licence irrespective of the date on which the supplementary licence is granted.

104.

Renewal of agent's licence.

- The agent's licence may be renewed on an application made in the form prescribed under Rule 73 to the Licensing Authority, and shall be accompanied by the licence and the fee prescribed under Rule 74.

(2)

The renewal of licence shall be made by endorsement of renewal thereof by the Licensing Authority on the principal and supplementary licence, if any.

105.

Conditions of agent's licence.

- The agent's licence shall be subject to the following conditions, namely:-

(1)

The licence shall, subject to the provisions of Rule 107, provide adequate space for the parking of vehicles for the purpose of loading and unloading of goods.

(2)

The licensee shall be responsible for proper arrangement for storage of goods collected for dispatch or delivery or both.

(3)

The licensee shall-

(a)

take all necessary steps for proper delivery of the goods to the consignee;

(b)

be liable to indemnity for the consignee for any loss or damage to goods while in his possession by adequate insurance cover, where available, at the cost of the consignor or consignee;

(c)

issue to the consigner and consignee a goods transport receipt only after he actually receives goods for dispatch and state therein the weight, nature of goods, destination, approximate distance over which the goods are to be carried, the freight charged, the service charge. If any, such as for local transport, insurance while in his custody and labour charge, if any, for loading and unloading provided that the service charge shall be reasonable and proof of its reasonableness established, if required by the licensing authority;

(d)

not deliver the goods to the consignee without actually receiving the consignee's note or any such note issued by the office which received the goods for dispatch or if this note is lost or misplaced an indemnity bond covering the value of goods;

(e)

issue a copy of every goods transport receipt issued to the consigner or consignee to the driver of the goods vehicle transporting the goods and shall not allow any consignment to be loaded without handing over a copy of the receipt in respect thereof to the driver;

(f)

maintain in Form A.R.T. proper record of collection, dispatch or delivery of good, the registration mark of the vehicle in which goods are carried for transport and make the same available for inspection by the Licensing Authority or by any person duly authorised by it in this behalf;

(g)

not charge commission exceeding that which may be fixed by the licensing authority subject to the orders of the State Government, if any;

(h)

maintain proper account of the commission charged by him to every operator of goods carriages engaged by him;

(i)

maintain a weighing device in good condition and capable of weighing at a time not less than 250 kilograms;

(j)

not refuse to accept goods for transport without valid reasons; and (k) comply with the provisions of the Rules 103, 106, 107 and this Rule.

106.

Particulars to be mentioned in contract of agency.

- All contracts entered into or way bills issued by a licensee for the purpose of collecting, forwarding or distributing goods shall be in writing and shall contain the following particulars, namely:-

(i)

names and address of consigners and consignees.

(ii)

description and weight of consignment,

(iii)

description and its approximate distance in kilometers from the starting station,

(iv)

freight on weight-destination or weight-distance or no truck distance basis for long distance haulage, and for local transport for collection at consigner's place or delivery at consignee's place, if required,

(v)

delivery instructions i.e. the approximate date by which and the place at which goods are to be delivered to the consignee,

(vi)

terms for payment separately for long distance transport, local transport, home delivery and collection labour charges for loading and unloading and the demurrage.

107.

Places to be used for loading and unloading of goods, etc.

(1)

The Licensing Authority may, in consultation with the local municipal authority or police authority having jurisdiction over the local area concerned, or both, approve any premises owned or to be used by an applicant for an agent's licence for loading, unloading and for parking goods carriages or for the storage of goods while in the custody of the licensee having regard to the suitability of the site, traffic conditions obtaining in the locality, sanitary conditions, storage facilities, space for parking of vehicles, for the purpose of loading or unloading goods carriages provided at such premises as the place of carrying on the business under the licence.

(2)

Any approval under sub-rule (1) shall be subject to the following conditions, namely:-

(a)

that the premises shall at all times be kept in a clean condition and in good state of repair;

(b)

that the premises shall be administered in an orderly manner;

(c)

that the licensee shall not change the premises or make any external alteration to it or in the parking arrangement thereat, as may be likely to cause obstruction to the general traffic in the vicinity without prior approval of the Licensing Authority;

(d)

that the licensee shall take suitable precautions to ensure that no breach of any provisions of the Act or of these rules, in so far as these provisions relate to the following matter is committed in respect of any vehicle engaged by him and which is entering or leaving or standing at such premises, namely:-

- (I)
requirements that a good vehicle shall be covered by:-
- (i)
valid and effective permit/countersignature for the route/area of travel;
- (i)
construction, equipment and maintenance of motor vehicles to the extent the defects are easily noticeable from the exterior appearance of a motor vehicle;
- (ii)
limits of weight and prohibitions or restrictions on use of motor vehicles;
- (iii)
loading of goods, overall height, length, width and projection of load laterally, to the front, the rear and in height;
- (iv)
transport of dangerous or explosive substances or hazardous materials or contraband articles under any law for the time being in force;
- (v)
parking or abandonment of motor vehicles on road in such a way as to cause obstruction to traffic or danger to any person or other users of roads;
- (vi)
leaving vehicles in dangerous position; and
- (vii)
driving of motor vehicle by persons holding valid and effective driving licence.
- (ii)
valid certificate of fitness;
- (iii)
valid certificate of insurance; and
- (iv)
proof of payment of tax under the [Bihar Motor Vehicles Taxation Act, 1930.]
[Now see Act 8 of 1994.]
- (II)
observance of the regulations or conditions as to:-
- (3)
Where the licensing authority refuses to approve any premises under sub-rule (1) it shall communicate in writing the reasons for such refusal.
108.
Suspension or cancellation of agent's licence and forfeiture of security.
- (1)
Without prejudice to any other action which may be taken against a licensee, the licensing authority may by order in writing cancel an agent's licence or suspend it for such period as it thinks fit, if in its opinion any of the conditions under which the premises have been approved or under which the licence has been granted have been contravened.
- (2)
Before making any order of suspension or cancellation under sub-rule (1) the Licensing Authority shall give the licensee an opportunity of being heard and shall record reasons in writing for such cancellation or suspension.
- (3)
The Licensing Authority may order the forfeiture in whole or in part of the security furnished by the licensee under sub-rule (4) of Rule 103 for contravention of any provision of this Rule or under Rules 103, 106 and 107 or for breach of any of the conditions specified in Rule 105 by the licensee:
Provided that no such forfeiture shall be made, unless the licensee is given an opportunity of being heard.
- (4)
In the event of the forfeiture of a security deposit or part thereof, the licence shall cease to be valid if the licensee fails to make payment to bring the security already furnished by him to its original value within thirty days of the receipt of the order of forfeiture.

109.

Issue of duplicate permits or licences.

(1)

If a permit or a countersignature of a permit is lost, destroyed, torn, defaced or mutilated, the holder shall forthwith report the matter to the original Transport Authority and shall apply for the issue of a duplicate copy thereof in the form prescribed under Rule 73, alongwith a fee prescribed under Rule 74.

(2)

If an agent's licence issued under Rule 101, or under Rule 103 is lost, destroyed, torn, defaced or mutilated, the holder of the licence shall forthwith report the matter to the original Transport Authority and shall, apply for the issue of a duplicate copy of a licence in the form prescribed under Rule 73, alongwith a fee prescribed under Rule 74.

(3)

Upon the receipt of such report the Transport Authority shall after making such enquiries as it may think fit, if satisfied that a duplicate copy may properly be issued, issue a duplicate copy of the permit or countersignature or the licence, as the case may be, duly stamped "Duplicate" in red ink, and the seal of the Transport Authority.

(4)

Where a duplicate copy has been issued upon representation that a permit or countersignature of licence has been lost, and the original is afterwards found or received by the holder, the holder shall immediately return the duplicate copy to the issuing authority.

(5)

If at any time it appears to an Inspector of Motor Vehicles or to a Secretary of the Transport Authority that a permit or countersignature of a licence is so torn, defaced or mutilated in any way as to cease to be reasonably legible, such Inspector of Motor Vehicles or Secretary may, by order in writing, impound it and require the holder to obtain a duplicate thereof.

110.

Appeals.

(1)

Any person aggrieved by an order of refusal of approval or of revocation of approval of taxi meter may appeal to the State Government.

(2)

The Secretary to the Government in the Transport Department shall hear such appeal preferred under sub-rule (1) on behalf of the Government.

(3)

Any person aggrieved by an order made under sub-rule (3) of Rule 103, and sub-rule (3) of Rule 107 and sub-rules (1) and (3) of Rule 108 may appeal to the State Transport Authority.

111.

Manner of appeal and revision.

(1)

An appeal or a revision under Chapter-V of the Act shall be preferred in duplicate, in the form of a memorandum, setting forth concisely the grounds of objection to the order against which the appeal is preferred, and shall be accompanied by a certified copy of that order and a fee prescribed under Rule 74.

(2)

Any person preferring an appeal of a revision shall be entitled to obtain a copy of any document filed with the Regional Transport Authority or the State Transport Authority or the State Transport Commissioner, as the case may be, and connected with the order against which he is preferring the appeal or the revision, on payment of a fee prescribed under Rule 74.

(3)

The State Transport Appellate Tribunal or any other appellate authority may give any person interested in the appeal or the revision, as the case may be, a copy of any document connected with such appeal or revision, on payment of a fee prescribed under Rule 74.

(4)

An appeal shall be preferred within thirty days from the date of the order:

Provided that the appellate authority may entertain an appeal against the order of revocation of approval of taxi meter after the expiry of the said period of thirty days, if it is satisfied that the appellant was prevented by good and sufficient cause from preferring the appeal in time.

112.

Procedure in appeal and revision.

- After the State Transport Appellate Tribunal has appointed a time and place for the hearing of an appeal under Section 89 or a revision application under Section 90, it shall give an intimation to the authority against whose orders the appeal or revision application is made and also to the appellant or applicant and such appellant or applicant shall within fourteen days of the receipt of intimation forward to the State Transport Appellate Tribunal a list of documents upon which he proposes to rely together with copies of such documents in duplicate, and may appear before the State Transport Appellate Tribunal in person or through a duly authorised representative on the appointed date and at subsequent hearings.

(2)

The other appellate authority prescribed under Rule 110, after giving an opportunity to the parties to be heard and after such further enquiry, if any, as it may consider necessary, may pass such orders as it thinks fit.

113.

Intimation of damage to or failure of stage carriage.

(1)

The holder of any stage carriage permit in respect of a particular vehicle by reference to the registration mark shall, within seven days of the occurrence, report in writing to the Transport Authority by which the permit was issued, any failure of, or damage to such vehicle or to any part thereof, of such a nature as to render the vehicle unfit for use in accordance with the conditions of the permit for a period exceeding three days.

(2)

The holder of any permit in respect of a service of stage carriages shall within twelve hours of the occurrence, report in writing to the Transport Authority by which the permit was issued, any failure of, or damage to, any vehicle used by him under the authority of the permit of such a nature as to prevent the holder from complying with any of the provisions or conditions of the permit for a period exceeding twenty-four hours.

(3)

Upon receipt of a report under the preceding sub-rule, the Transport Authority by which the permit was issued may, subject to the provisions of Rule 80:-

(i)

direct the holder of the permit within such period, not exceeding two months, from the date of the occurrence, as the authority may specify, either to make good the damage to or failure of the vehicle or to provide a substitute vehicle, or

(ii)

if the damage to, or failure of, the vehicle is such that in the opinion of the said authority it cannot be made good within a period of two months from the date of the occurrence, direct the holder of the permit to provide a substitute vehicle, and where the holder of the permit fails to comply with such a direction, may suspend, cancel or vary the permit accordingly.

(4)

The Transport Authority giving a direction or suspending, cancelling or varying a permit under sub-rule (3) shall send intimation of the fact to the Transport Authority of any other region in which the permit is valid by virtue of countersignature or otherwise.

114.

Stage carriage to ply on routes other than those specified in permit under special circumstances.

- If in special circumstances and for reasons to be recorded in writing the authority granting the permit if so directs, the holder of the permit granted in respect of a stage carriage, shall use the stage carriage on such route or in such area in the region other than that specified in such permit and during such period and at such timings as may be specified in the direction.

115.

Maintenance of complaint books.

(1)

A bound complaint book duly ruled, paged, signed and stamped with the seal of the stage carriage permit holder,

approved and countersigned by the Regional Transport Officer concerned, shall be maintained by the permit holder, in every stage carriage and also at such bus stands as may be directed by the Regional Transport Authority, to enable the passengers to record any legitimate complaint in connection with the stage carriage service.

(2)

Such complaint shall be written clearly and in an intelligible manner and the complaint shall also clearly and legibly record in the complaint book his full name, address and date on which such complaint is written.

(3)

The stage carriage permit holder shall promptly look into every complaint recorded in the complaint book, remove the cause of the complaint or of its recurrence and submit within a month of the recording of the complaint an explanation to the Regional Transport Authority which granted the permit together with a copy of the complaint stating the action taken by him in connection with the complaint. A copy of the report, shall be forwarded by the stage carriage permit holder, to the complainant.

(4)

The complaint book shall be so securely kept in the stage carriage and at the bus stands, as cannot be removed and shall at all times be made available by the permit holder, the driver and the conductor, of the stage carriage to any passenger desiring to record a complaint or to any officer of the Motor Vehicles Department of and the above the rank or an Assistant Inspector of Motor Vehicles, for the purpose of inspection.

(5)

If the complaint book is lost or destroyed, the stage carriage permit holder shall within one week of such loss or destruction intimate the fact in writing to the Regional Transport Officer concerned.

(6)

If the Regional Transport Authority is satisfied that adequate arrangements for recording complaints have been made in respect of any stage carriage service, it may, by a notification in the official gazette, direct that, subject to such terms and conditions as may be specified therein, the provisions of this rule shall not apply to such stage carriage service.

116.

Safe custody and disposal of property left in a public service vehicle.

(1)

Where a permit holder or any responsible person receives any article under clause (f) of Rule 16 or Clause (n) of Rule 29 he shall, keep that article for a period of seven days and shall, if the article is not claimed during that period, handover the same to the officer-in-charge of the nearest police station:

Provided that if the article is of a perishable nature, it may be handed over to the officer-in-charge of the nearest police station even before the expiry of seven days.

(2)

Where during the period mentioned in the preceding sub-rule-

(a)

the article is claimed by not more than one person the permit holder may after making such inquiries as he deems fit and if necessary after taking an indemnity agreement from the claimant handover the article to the claimant;

(b)

the article is claimed by two or more than two persons, then the permit holder may handover the same to the officer-in-charge of the nearest police station.

(3)

Where any article is received by an officer-in-charge of a police station under this rule, then the provisions in relation to unclaimed property will apply.

117.

Determination of passengers carrying capacity of public service vehicle.

- Notwithstanding anything contained in the Rules, no public service vehicle other than a motor cab shall be licensed to carry a number of passengers in excess of that number obtained by subtracting 90 kilograms from the difference in kilogram between the gross vehicle weight and unladen weight of the vehicle and dividing the resulting figure-

(i)

by 60, in the case of double decked vehicles and single decked vehicles operated exclusively within the municipal and cantonment areas; and

(ii)
by 70, in the case of other single decked vehicles.

118.

Conduct of persons using stage carriages.

(1)

If at any time a passenger or person using or intending to use a stage carriage-

(i)
obstructs any authorised employee of the permit holder in the execution of his duties, or

(ii)
has bulky luggage which obstructs, annoys, inconveniences another passenger or is likely to do so, or

(iii)
carries any animal bird, flesh or fish (other than tinned food in its original packing), any instrument, implement, substance or any other article which annoys or inconveniences or is offensive any other passenger likely to do, or be, so, or

(iv)
without lawful excuse occupies any seat exclusively reserved for female passengers, or

(v)
sings or plays upon any musical instrument, or

(vi)
rings without lawful excuse, or otherwise, interferes with any signal of the stage carriage, or

(vii)
is reasonably suspected to be suffering from any contagious or infectious disease, or

(viii)
knowingly or intentionally enters a stage carriage which is carrying the maximum number of passengers according to the seating capacity specified in the certificate of registration of the vehicle and any additional number of standees permitted under the terms of the permit, or

(ix)
has a dress or clothing, which is likely to soil or damage the seats or the dress or clothing of another passenger or which for any other reason is offensive to other passengers, or

(x)
commits or abets any breach of the provisions of the Act or the Rules made thereunder; the driver or the conductor may require such person to alight from the vehicle forthwith and may stop the vehicle or keep it stationary until such person has alighted. Such person shall not be entitled to a refund of any fare which he may have paid; and any person failing to comply forthwith with such a requirement may be forcibly removed by the conductor or the driver or any police officer on being requested by the driver or conductor or any passenger in that behalf, and shall also be guilty of an offence.

(2)
No passenger, or person using or intending to use a stage carriage shall-

(i)
refuse to pay the legal fare, or

(ii)
refuse to show any ticket on demand by any authorised person, or

(iii)
refuse to pay a fresh fare when he has altered or defaced his ticket so as to render the number or any portion thereof illegible, or

(iv)
behave in a disorderly manner, or

(v)
behave in a manner likely to cause alarm or annoyance to any female passenger, or

(vi)
use abusive language, or

(vii)

molest any other passenger, or

(viii)

spit, eject betel nut juice, or

(ix)

smoke, in any vehicle on which a notice prohibiting smoking is exhibited, or

(x)

enter or leave or attempt to enter or leave any stage carriage while it is in motion and except at a bus stop, or

(xi)

enter or attempt to enter into or alight or attempt to alight from a stage carriage except by the entrance or exit provided for the purpose, or.

(xii)

enter a stage carriage without first permitting passengers to alight in case separate exit is not provided, or

(xiii)

mount the driver's platform or talk with the driver or interfere with the driving of the vehicle or otherwise distract the attention of the driver of a stage carriage while he is driving, or

(xiv)

use or attempt to use a ticket other than the ticket valid for a particular journey or use or attempt to use a ticket which has already been used by another passenger or on another journey, or

(xv)

wilfully damage or soil or remove any fitting in or on the stage carriage or interfere with any light or any part of the stage carriage or its equipment, or

(xvi)

board a stage carriage unless he is an employee of the permit holder, or a bona fide passenger or an intending passenger; or hang on to any exterior part of a stage carriage, or

(xvii)

travel beyond the destination to which the fare he has paid entitles him to travel without informing and paying to the conductor the legal fare for the additional journey, sufficiently in advance or when so required refuse to get off the stage carriage in which he is travelling at the terminus of the route for which it is booked, or

(xviii)

on demand, being made by the driver or conductor or police officer or officer of the Motor Vehicles Department, when reasonably suspected or contravening any of the provisions of this rule, refuse to give his correct name and address to such driver or conductor, or officer, or

(xix)

on a request being made by the conductor refuse to declare to him, the journey he intends to take or has taken in the stage carriage, or before leaving the stage carriage, omit to pay to the conductor the legal fare for the whole journey.

(3)

If at any time a passenger or person, using a stage carriage is unable or fails to produce his ticket on demand by any authorised person, he shall be liable to pay the legal fare from the place where the stage carriage originally started or such portion thereof as may be required by that authorised person.

(4)

If at any time, a passenger in a bus occupies more than one seat either for himself or for another passenger the driver or the conductor, if any, shall request such passenger to desist from doing so, and on the passenger not complying, may require him to alight the bus forthwith and may stop and keep it standing until the passenger has alighted. Such passenger shall not be entitled to any refund of fare which he may have paid and any person failing to comply forthwith with such a requirement may be forcibly removed by the driver or conductor or on the request of the driver or conductor, or any passenger, by any police officer, and shall also be guilty of an offence.

(5)

No passenger or person shall leave or attempt to leave a stage carriage without paying the legal fare for the journey which he has undertaken and with intent to avoid payment thereof.

(6)

Any passenger or person contravening the provisions of sub-rule (5) may be removed from the vehicle by the driver or

conductor or any other person authorised in this behalf by the permit holder or on the request of the driver or conductor or any other person authorised in this behalf by the permit holder, by any police officer.

(7)

A passenger or person in or on a vehicle who is reasonably suspected by the driver or conductor or any person authorised by the permit holder for the purpose of sub-rule (6), of contravening the provisions of sub-rule (5) shall on demand, give his name and address to a police officer or to the driver, conductor or such person, as the case may be.

Explanation. - In this rule, the expression "ticket" includes an identity card, season ticket, pass or any authorisation issued by the permit holder authorising a person to travel on a stage carriage.

119.

Conduct of passengers using motor cabs and maxi cabs.

(1)

No passenger in a motor cab or maxi-cab shall-

(i)

wilfully or negligently damage the cab or any of its fittings, or

(ii)

on termination of the hiring, refuse or omit to pay the legal fare.

(2)

In the case of a dispute between the driver of a motor cab or maxi-cab and the passenger either party may required the other to proceed to the nearest police station, where the officer-in-charge shall, if the dispute is not settled amicably, record the names and address alongwith the substance of the respective contention of both parties and shall take necessary actions according to law.

120.

Carriage of personal luggage in private service vehicle.

(1)

Not more than 25 kilograms of luggage or personal effects per occupant may be carried in a private service, vehicle:

Provided that, if the conditions of the permit so provide, such vehicle may, in addition, carry the personal or household effect of such permit or office articles of such holder subject to the condition that the total weight of luggage or personal or household effect or office articles and persons does not exceed the permissible carrying capacity of the vehicle.

(2)

Nothing in sub-rule (1) shall be construed as authorising the carriage of general merchandise in a private service vehicle.

121.

Carriage of the passenger's luggage in stage carriages.

(1)

No luggage shall be carried in any stage carriage in such a way as to block an entrance or exit of the vehicle.

(2)

Subject to the provisions of sub-rule (3) of Rule 123 the luggage may be carried in boot, locker or compartment set aside for the purpose, but where the luggage is carried on the roof of a single decked stage carriage, adequate protection in the form of a guard shall be provided.

(3)

Except in the case of a stage carrier operated exclusively within municipal areas, a passenger in a stage carriage shall be entitled to carry free of charge not more than 15 kg. of luggage and personal effects.

122.

Carriage of children and infants in public service vehicles.

(1)

In relation to the number of persons that may be carried in a public service vehicles:-

(i)

a child of not more than twelve years of age be reckoned as one half, and

(ii)

a child not more than three years of age shall not be reckoned.

(2)

Notwithstanding anything contained in sub-rule (1) for the purpose of carrying school children excess children may be carried in a motor cab ordinarily known as an auto-rickshaw, subject to the following conditions:-

(i) additional seating arrangements shall be made in the passenger compartment of such vehicle, (ii) the seat-cushions shall have plane surface and not curved surface, (iii) the right side opening of the passenger compartment shall be permanently scaled by a grill of such design that no limb of a child can protrude through such grill, (iv) the left sides opening of the passengers compartments shall have a door, in the form of a grill as stated in clause (iii) above-which can be safely bolted, (v) the vehicle shall be fitted with a bulb horn and such horn shall always be in working condition, (vi) the vehicle shall be fitted above the front wind screen, with a board inscribed 'School Auto' thereon in red or a yellow back ground, (vii) no audio device, or any kind of car or motorcycle pattern, shall be fitted in the vehicle, (viii) the vehicle shall not be driven at a speed in excess of 20 kms. per hour, (ix) the vehicle shall not carry more than the number of school children as may have been permitted by the registering authority in respect of each individual vehicle depending on the seating arrangements provided in that vehicle.

(3) Save for the purpose of carrying children to or from the school, the vehicle described in sub-rule (2) shall not carry children in excess of the number mentioned in sub-rule (1).

123.

Carriage of goods in public service vehicle.

(1) No goods shall be carried on the top deck of a double decked stage carriage.

(2) No goods liable to foul the interior of the vehicle or to render it insanitary shall be carried at any time in any stage carriage or contract carriage.

(3) The Regional Transport Authority may specify in any permit the goods which shall not be carried in a stage carriage or a contract carriage or the conditions subject to which certain classes of goods may be so carried.

(4) Subject to the provisions of sub-rule (3), goods may be carried in a stage carriage at any time in accordance with the conditions specified in the permit provided that the obligation of the holder to carry passengers in accordance with the terms of the permit is discharged.

(5) Where goods are carried in a stage carriage in addition to passengers, the goods shall be of such a nature and shall be so packed and secured on the vehicles that no passenger, such number of seats as may be specified in the permit shall be kept free and unimpeded for the use of passengers and access to the entrance to and exit from the vehicle shall be unobstructed.

(6) The weight in kilograms of goods carried on a stage carriage shall not exceed $(N-X) \times 68$ where in relation to a single decked stage carriage or to the lower deck of a double decked stage carriage. N is the registered passenger seating capacity of the vehicle, and X is the number of passengers carried on the vehicle or the number of passengers for whom seats are kept free and unimpeded by goods, whichever is greater.

(7) Where the holder of a stage carriage permit uses vehicle authorised by the permit for the carriage of goods to detriment of the public convenience, by failing there by to meet the demand for passenger transport, the Regional Transport Authority, may after giving the holder of the permit an opportunity of being heard, declare that a breach of the conditions of the permit has occurred and thereafter, proceed under the provisions of Section 86 of the Act.

(8) The Regional Transport Authority shall not authorise the use of a contract carriage for the carriage of goods save for (a) special reasons in particular occasions and subject to conditions and restriction to be specified in the permit, or (b) the carriage of the personal, office or household effects of a hirer if so authorised by the permit but not the carriage of general merchandise.

(9)

Notwithstanding anything mentioned in sub-rule (8) the Regional Transport Authority may, subject to such conditions as it may think fit to impose, authorise the carriage of goods in any contract carriage, in addition to or to the exclusion of passengers:

Provided that the weight in kilograms of goods so carried shall not exceed $(N-X) \times 68$, where N is the registered passenger seating capacity of the vehicle and X is the number of passengers actually carried in the vehicle.

124.

Carriage of corpses or persons suffering from any infectious or contagious disease in public service vehicles and the disinfection of such vehicles.

(1)

No driver and conductor of a stage carriage or no driver of a contract carriage shall cause or allow to enter into or to be placed or carried in the vehicle, any person whom he knows or has reason to believe to be suffering from any such infectious or contagious disease, or the corpse of any person whom he knows or his reason to believe to have been suffering from any such disease:

Provided that nothing in this sub-rule shall be deemed to authorise the driver to refuse to allow to enter into or to be placed or carried in the vehicle, a person whom the driver suspects to be suffering from Tuberculosis if the person produces a certificate issued to him by a registered medical practitioner certifying that the person is not suffering from Tuberculosis or that the disease from which the person is suffering is not infectious or contagious.

(2)

Notwithstanding the provisions of sub-rule (1), the driver may, upon application in writing by a registered medical practitioner, allow a person suffering from an infectious or contagious disease to be carried in the vehicle, provided that no other person save a person or persons in attendance on the person so suffering shall be carried in the vehicle at the same time.

(3)

Where a person suffering from an infectious or a contagious disease, or the corpse of any such person has been carried in the vehicle the driver of the vehicle shall be responsible to report the fact of such carriage to the medical officer in charge of the nearest municipal, local board or Government dispensary, and to the owner of the vehicle: and neither the owner nor the driver shall cause or allow any person to use the vehicle until the driver and the conductor, if any, and the vehicle have been disinfected in such manner as the medical officer may specify and a certificate to this effect has been obtained from the said medical officer.

(4)

No person shall drive any public service vehicle and no owner of a public service vehicle shall cause or allow such vehicle to be used unless once in every two months it is disinfected with D. D. T. or any other liquid insecticide approved for the purpose by the Director of Medical Services.

(5)

The owner of a public service vehicle shall maintain, and on demand by an officer of the Motor Vehicles Department of and above the rank of an Assistant Inspector Of Motor Vehicle or a police officer not below the rank of a Sub-Inspector of Police, produce for inspection, a register showing the date on which the public service vehicle was disinfected from time to time and shall also satisfy him that a mechanical sprayer which shall be used for the purpose of such disinfection is in working order.

125.

Carriage of persons in goods carriages.

(1)

Subject to the provisions of this rule, no person shall be carried in a goods carriage:

Provided that the owner or the hirer or a bona fide employee of the owner or the hirer of the vehicle may be carried free of charge or a police officer in uniform travelling on duty, may be carried, in a goods carriage:

Provided further that the total number of persons so carried shall not be more than:-

- (i) one, in case of a light motor vehicle having gross vehicle weight less than 900 kilograms;
- (ii) three, in case of any other light goods vehicle,
- (iii)

five, in case of any medium goods vehicle.

(2)

Notwithstanding anything contained in sub-rule (1), but subject to the provisions of sub-rule (4), a Regional Transport Authority may, by an order in writing permit that a larger number of persons may be carried in the goods carriage on condition that no goods at all are carried in addition to such persons and such persons are carried free of charge in connection with the work for which the vehicle is used, and that such other conditions as may be specified by the Regional Transport Authority are observed and where the vehicle is required to be covered by a permit the conditions of the permission aforesaid are also made conditions of the permit.

(3)

Notwithstanding anything contained in sub-rules (1) and (2), but subject to the provisions of sub-rule (4):-

(a)

for the purpose of celebrations in connection with the Republic Day or Independence Day, the Regional Transport Officer,

(b)

for the purpose of enabling a co-operative society or class of cooperative societies owning or hiring a goods carriage to carry its members under its authority in such goods carriage when used for the ordinary course of its business, State Transport Commissioner,

(c)

where it considers expedient in public interest in respect of vehicles owned or hired by it, and in respect of other vehicles on such inescapable grounds of urgent nature to be specified in the order, the State Government may by general or special order, permit goods carriage to be used for the carriage of persons for the purposes aforesaid and subject to such conditions as may be specified in such order.

(4)

No person shall be carried in any goods carriage unless an area of not less than 0.37 square meters of the floor of the vehicle is kept open for each person, in such manner-

(i)

that such person when carried on goods carriage or otherwise is in danger of falling from the vehicle,

(ii)

that any part of his body, when he is in a sitting position is not at a height exceeding three meters from the surface upon which the vehicle rests.

(5)

No person other than an attendant or attendants, if any as required under sub-rules, (ii) and (iii) of this sub-rule shall be carried on a trailer which is a goods vehicle:

Provided that not more than four persons on a single axled trailer and six persons on a trailer having more than one axle may be carried in addition to such attendant or attendants, subject to the conditions that:-

(i)

the trailer has been fitted with fixed grab rails not less than 610 millimetres in height, on the said plank of the load body on all sides except the rear side, for the support of the persons so carried;

(ii)

when the trailer is being used in a public place, no part of the body of any person so carried in such a trailer is more than three meters above the ground level; and

(iii)

the gross laden weight of the trailer does not exceed the gross vehicle weight assigned to it.

(6)

No person shall travel in goods carriage in contravention of the provisions of this rule.

126.

Carriage of animals in goods carriage.

(1)

No cattle shall be carried in a goods carriage in a public place unless-

(i)

in case of goats, deer or pigs-

(a)
a minimum floor space of 0.19 square meter per head of such cattle is provided in the vehicle;

(b)
proper arrangements for ventilation, and protection from weather are made.

(ii)
in the case of any other cattle-

(a)
minimum floor space of 2 meters 1 meter per head of cattle and half of such floor space for a young one or cattle which is weaned is provided in the vehicle;

(b)
the load body of the vehicle is constructed of strong wooden planks or of iron sheets with a minimum height of 1.5 meter measured from the floor of the vehicle on all sides and the back;

(c)
floor battens are provided to prevent slipping of hoofs;

(d)
every projection likely to cause suffering to an animal is removed; and

(e)
the cattle are properly secured by ropes tied to the sides of the vehicle.

(2)
If the cattle are carried in a double-decked goods carriage then:-

(a)
the upper deck flooring is covered with metal sheets with a minimum height of 8 centimeters raised on all four sides so as to prevent the animal wastematter such as urine, litter etc. falling on the animals on the lower deck;

(b)
proper arrangements for drainage shall be made on each floor; and

(c)
wooden battens shall be provided on each floor to prevent slipping of hoofs of the animals:
Provided that only young ones of cow, buffalo, bull, horse, pony, or, ass etc. shall be carried, on the upper deck of the vehicle.

(3)
No animal belonging to or intended for a circus, menagerie or zoo shall be carried in a goods carriage in public place unless-

(i)
in the case of a wild or ferocious animal, suitable cage of sufficient strength, either separate from or integral with the load body of the vehicle is provided, to contain the animal securely at all times; and

(ii)
reasonable floor space for each animal is provided in the vehicle.

(4)
No goods carriage when carrying any cattle or animals, shall be driven at a speed in excess of 40 kilometers per hour,
Explanation "Cattle" for the purposes of this rule includes goats, sheep, buffalo, bull, ox, cow, deer, horse, pony, mule, ass, pig or the young ones thereof.

127.
Painting and marking of motor cabs in certain manner.

(1)
In case of the motor cabs ordinarily known as Autorickshaw, the hood of every such cab shall be painted in cream yellow and the rest of the body in black colour:

Provided that if the hood of such cab is collapsible or removable, a band of 75 millimetres wide shall be painted in cream yellow on the upper most metal part of the body.

(2)
Every motor cab other than those mentioned in sub-rule (1), and every maxi-cab shall be fitted with a rectangular box-like device of a size 30 cms in breadth and 10 cms in height, and made of any transparent material such device

shall be fitted at the centre on roof above the front wind-shield; and the word TAXI" shall be painted, on the front and rear sides of such device, in red on a white back ground, the word "TAXI" shall be in English and the letters shall be 7 cms in height and shall have uniform thickness of 1.5 cms. The interior of such device shall be equipped with lamp of similar power as of rear lamp, illuminating the word "TAXI" so as to render it legible from a distance of 15 meters from the front and rear of the vehicles.

(3)

A permit number allotted by the Transport Authority shall be painted on the motor cab at each of the following places namely:-

(i)

the left hand top portion of the wind screen,

(ii)

the rear boot;

(iii)

the left front door; and

(iv)

the right front door.

(4)

The permit number shall be painted in white in a red circle and the numerals shall be 50 millimetres high and 4 millimetres thick.

(5)

The number of the left hand portion of the windscreen shall be so painted as to be readable from inside; and the number on the rear boot, the left front door and the right front door shall be painted against the background.

(6)

No motor vehicle other than a motor cab ordinarily known as auto-rickshaw shall be painted in the manner prescribed in sub-rule (1).

(7)

Nothing in this rule shall apply to or in relation to any tourist vehicle.

128.

Prohibition of painting or marking of transport vehicle in certain manner.

(1)

No advertising device, figure or writing shall be exhibited on any transport vehicle save as may be specified by the Regional Transport Authority by general or special order.

(2)

A transport vehicle when regularly used for carrying Government mail by or under a contract with the Indian Posts and Telegraphs Department, shall be painted in postal red colour and shall exhibit in a conspicuous place upon a plate or on a plain surface of the motor vehicle the word "MAIL" in red colour on a white ground, each letter being not less than 15 centimeters in height and of a uniform thickness of 20 millimetres.

(3)

Same as aforesaid no stage carriage or contract carriage shall be painted in postal red colour or display any sign or inscription which includes the word "MAIL":

Provided that a stage carriage belonging to the State Transport Undertakings may be partly colour in red, if such colour is of a shade distinct from that used on vehicles carrying Government mail.

129.

Power to inspect tax meters.

- Any police officer in uniform not below the rank of a Sub-Inspector of Police or any officer of the Motor Vehicles Department, of and above the rank of an Assistant Inspector of Motor Vehicle, in uniform may, if he has reason to believe that a motor cab fitted with a meter has been or is being plied with the meter which is defective or have been tampered with, stop such motor cab and in order to test such meter direct this driver or the person-in-charge of such motor cab to proceed to the nearest testing institute and take or cause to be taken such other steps as he may consider proper for the purpose.

130.

Power to inspect transport vehicle and their contents.

(1)

Any police officer in Uniform not below the rank of a Sub-Inspector of Police or any Officer of the Motor Vehicles Department in uniform, may at any time when a goods carriage is in a public place call upon the driver of such vehicle to stop the vehicle and to keep it at rest for such time as may be necessary to enable such officer to make reasonable examination of the contents of the vehicle.

(2)

Notwithstanding anything contained in sub-rule (1) such officer shall not be entitled to examine the contents of any goods carriage unless:-

(i)

the permit in respect of the vehicle contains a provision or condition in respect of the goods may or which may not be carried in the vehicle;

(ii)

such officer has reason to believe that the vehicle is being used in contravention of the provisions of the Act or rules, made thereunder.

(3)

Any police officer in uniform or any officer of the Motor Vehicles Department, may at any time when a public service vehicle is in a public place call upon the driver of such vehicle to stop the vehicle and to keep it at rest for such time as may be necessary to enable such officer to make reasonable examination of the number of passengers and other contents of the vehicle so as to satisfy himself that the provisions of the Act and the Rule made thereunder and conditions of the permit in respect of the vehicle are being complied with.

(4)

Any police officer in uniform not below the rank of a Sub-Inspector of Police or any officer of the Motor Vehicles Department in uniform may at any time when a transport vehicle is in a public place, call upon the driver of such vehicle to stop the vehicle and to keep it at rest for such time as may be necessary to enable such officer to inspect the brakes of the vehicle so as to satisfy himself that the provisions of the Act or the Rules made thereunder regarding the brakes are complied with.

131.

Power to inspect business premises.

- Any officer of the Motor Vehicles Department, of and above the rank of an Assistant Motor Vehicles Inspector, or any other person authorised in this behalf by the State Government may, enter at all reasonable time any premises used by the permit holder for his business, for the purpose of inspection of such premises.

132.

Fixing the hours of work in advance.

- The State or a Regional Transport Authority may require persons employing any person for the purpose of driving a transport vehicle, to make, to the satisfaction of the said authority, such time-table, schedule or regulation, as may be necessary, fixing before hand, the hours of work of the persons employed by him, and upon approval by such authority of any time-table, schedule or regulation as aforesaid, it shall be the record of the hours of work fixed for the persons concerned for the purpose of sub-section (3) and sub-section (4) of Section 91.

Explanation. - (i) Any time spent by the driver of a vehicle on work other than driving in connection with the vehicle or with the load carried or to be carried in the vehicle including any time spent on the vehicle during a journey save as passenger in a public service vehicle shall not, and

(ii)

any time spent by, the driver of a vehicle on or near the vehicle when it is at rest, when he is at liberty to leave the vehicle for rest and refreshment although required to remain within sight of the vehicle shall be deemed to be an interval of rest for the purposes of clause (a) of sub-section (i) of Section 91.

133.

Record to be maintained and the returns to be furnished by the owners of Transport Vehicles.

(1)

The Regional Transport Authority may by general or special order, require the owner of a Transport Vehicle. -

(a)

to issue a delivery note in duplicate to each consignor in respect of every consignment accepted by the owner for Transportation, and

(b)

to maintain records and submit returns in respect of such transport vehicle in such forms as the Regional Transport Authority may specify and such records and returns may include in respect of daily or trip-wise use of such transport vehicle the particular of-

(i)

the name and licence number of the driver and conductor other attendant, if any;

(ii)

the route upon which or the area within which the transport vehicle was used;

(iii)

the number of kilometers travelled;

(iv)

the time of commencement and termination of a journey and every halt thereon;

(v)

the names and address of each consignor and consignee, the number of packages or goods received from each consignor and the number and date of a delivery note issued to the consignor under clause (a) the nature and weight of the goods contained in each consignment, the total weight of goods carried in the transport vehicle, the freight chargeable in respect of each consignor or consignee and the names and addresses of the forwarding agents, if any, through whom the goods are consigned;

(vi)

in the case of goods carried in a stage carriage, number of trips and kilometers travelled when the goods were carried to the exclusion of passengers, and when goods were carried in addition to passengers the number of seats available for passengers.

(2)

No owner or other person shall cause or allow any person to drive a transport vehicle unless the owner or other person has in his possession a record in writing of the name and address of the driver as set forth in his driving licence, the number of the licence and the name of the authority by which it was issued.

(3)

No person shall drive a goods carriage and no owner or other person shall cause or allow any person to drive such vehicle unless the driver carries a way bill containing all or any of the particulars which may be specified by the Regional Transport Authority under sub-rule (1).

(4)

The records required to be maintained under this rule shall be produced for inspection on demand by any police officer not below the rank of a Sub-Inspector of Police or by any officer of the Motor Vehicles Department of and above the rank of an Assistant Inspector of Motor Vehicles.

Chapter-VI Special Provisions Relating to State Transport Undertaking

134.

Form of scheme for State Transport Undertaking.

(1)

The proposal of a scheme or modification of approved scheme to be prepared by the State Government under the provisions of Section 99 or Section 102, shall be in Form S. S.T.U. containing all the particulars specified in the said form and shall be published in that form.

(2)

The State Government shall publish a proposal of a scheme or modification of approved scheme by notification in the Official Gazette and also in not less than one newspaper in Hindi language, and in such newspaper or newspapers as the State Government may deem fit. Such publications shall be accompanied by a notice stating that any person may, within 30 days from the date of the publication of the scheme in the official Gazette file objections thereto before the State Government as provided in Section 100 or Section 102 of the Act.

135.

Manner of filing objections to the proposal of a scheme.

- Any person, association or authority desiring to file any objection to the proposal of a scheme or to the modification of approved scheme shall do so in the form of a memorandum addressed to the Secretary to the State Government in Transport Department. The memorandum shall set forth concisely the grounds for the objections to the scheme, and shall in addition contain the following particulars namely-

(a)

the name and address of the objector;

(b)

whether the said person is a holder of any permit or permits under the provisions of Chapter-V of the Act, together with particulars of the route or routes or area specified in such permits;

(c)

the manner in which the objector is affected by the scheme;

(d)

details of any alternative route or area for which he desires to have permit in accordance with sub-section (2) of Section 105.

136.

Manner of considering objections.

(1)

The Secretary to Transport Department may consider the proposal of a scheme or modification of approved scheme and the objections at a hearing of which at least 7 days notice shall be given to every objector and the State Transport Undertaking.

(2)

The notice shall be sent at the address of the object for by ordinary post under certificate of posting, provided that where the number of objectors is considerable or the addresses of objectors are illegible the State Government may instead of giving individual notice to every objector, give notice by publication in a local newspaper having wide circulation in the area in which the objectors reside.

137.

Publication of the scheme or the modification of approved scheme.

- The scheme to be published under sub-section (3) of Section 100 of the modification thereof shall, as far as may be practicable, be in Form A. S. S. T. U.

138.

Manner of service of orders under Chapter-VI.

- Every order under Chapter-VI of the Act shall be served:-

(a)

by tendering or delivering a copy thereof to the person on whom it is to be served or his agent, if any; or

(b)

by sending it by registered post at the last known address of the person on whom it is to be served; or

(c)

by fixing it to some conspicuous place of his last known residence or place of business in case the above two methods are considered impracticable.

139.

Unclaimed articles.

- When at the conclusion of any journey any unclaimed article is found in any transport vehicle operated by the State Transport Undertaking the same shall be disposed of in accordance with the provisions of Rule 116.

140.

Application for permit under Chapter-VI of the Act.

- Every application for permit shall be made in the form prescribed under Rule 73 and shall be accompanied by a fee prescribed under Rule 74 and shall be made not less than two weeks before the date on which it is desired that the permit shall take effect.

Chapter-VII Construction, Equipment and Maintenance of Motor Vehicles

141.

General.

(1)

No person shall use and no person shall cause or allow to be used or to be in any public place any motor vehicle which does not comply with the rules contained in this chapter, or with the rules made by the Central Government under Chapter-VI I of the Act or with any order made thereunder by a competent authority:

Provided that any officer of the Motor Vehicles Department of and above the rank of an Assistant Motor Vehicle Inspector may not permit the use of a motor vehicle with defective brakes or lights, if in the opinion of such officer, the use of such defective vehicle constitutes the danger to the public, until the defect is remedied.

(2)

Any person who drives or causes or allows to be driven in any public place, any motor vehicle which does not comply with rules contained in this chapter or with rules made by the Central Government under Chapter-VI I of the Act or with any order made thereunder by a competent authority shall be deemed to be using such vehicle in unsafe condition for the purposes of Section 190.

142.

Rear view Mirror.

- Every motor vehicle shall be fitted with a mirror, so placed that the driver shall be able to a clear and distinct vision of vehicles approaching from the rear.

143.

Springing.

- Every motor vehicle and every trailer drawn thereby shall be equipped with suitable and sufficient system between the road, wheels and the frame of the vehicles, and it shall be adequately maintained in good and sound condition. Provided that this rule shall not apply to:-

(i)

any tractor;

(ii)

any agricultural single axle trailer having axle weight not exceeding 4000 kgs. or tandem axle trailer having axle weight not exceeding 8000 kgs; or

(iii)

any trailer or semi-trailer used solely for the carriage or indivisible loads of exceptional length or such other loads as cannot be carried on springs.

144.

Mudguards.

(1)

Every motor vehicle other than a tractor, shall be provided with mudguards or mud flaps or both to catch so far as practicable mud or water thrown up by the rotation of the wheels, unless adequate protection against such mud or water being thrown up, is afforded by the body of the motor vehicle.

(2)

Such mudguard or mud flap shall cover at least 2/3rd of the diameter when measured vertically and the total breadth of the rear wheel or wheels.

145.

Display of fluorescent strips.

- On every transport vehicle, there shall be display on the front and rear bumper and where no rear bumper is provided, on the lower part of the rear of the vehicle, three red fluorescent strips, being each strip 30 centimeters long and 2.5 centimeters wide, with even spacing between the strips.

146.

Attachments to Motorcycle.

(1)

Every side-car attached to a motorcycle shall be so attached at the left hand side of the motorcycle, that the wheel thereof is not outside the perpendicular planes at right angles to the longitudinal axis of the motorcycle passing through the extreme projecting points in front and in the rear of the motorcycle.

(2)

No pillion seat shall be attached to a motorcycle fitted with an engine having capacity of less than forty eight cubic

centimeters.

147.

Particulars to be exhibited on vehicles with left hand control.

(1)

A motor vehicle fitted with a left hand steering control shall exhibit the words "Left Hand Drive" in red on a white background, on a plane plate or a plane surface of the vehicle, at a conspicuous place on the rear of such vehicle.

(2)

The letters contained in such words shall be 70 mm high and 10 mm thick.

148.

General maintenance.

- Every public service vehicle, and all parts, mechanisms and system thereof, including paintwork, varnish and upholstery, shall be maintained in a clean, sound and reliable condition.

149.

Body Construction.

- The body of every public service vehicle shall be constructed and fastened to the frame of the vehicle in compliance with such directions as may from time to time be issued by the State Transport Authority.

150.

Body dimensions.

(1)

Every public service vehicle shall have an enclosed body and shall be so constructed that (a) the height of the sides of the body from the floor or the height to the sills of the window, as the case may be, shall not be less than 715 millimetres; (b) if the height of the sides of the body or the sills of the windows, as the case may be, above the highest part of any seat is less than 460 millimetres, provision is made by means of guard rails or otherwise, to prevent the arms of seated passengers being thrust through and being injured by passing vehicles, or to the extent to which side window or Venetians when lowered, their top edge is not less than 460 millimetres above the highest part of any seat.

(2)

For the purpose of this Rule the seat back shall not be deemed to be a part of the seat.

151.

Stability.

(1)

The stability of a double decked public service vehicle shall be such that when loaded with weights of 50 kilograms per person placed in the correct relative position, to represent the driver and conductor (if carried), and a full complement of passengers on the upper deck only, if the surface on which the vehicle rests were tilted to either side to an angle of 28 degrees from the horizontal, the point at which over turning occurs would not be reached.

(2)

The stability of a single-decked public service vehicle other than a motor cab and maxi cab: shall be such that under any conditions of load at an allowance of 68 kilograms per passenger and his personal luggage, for which the vehicle is registered, if the surface on which the vehicle rests was tilted to either side to an angle of 35 degrees from the horizontal, the point at which over turning occurs would be reached.

(3)

For the purpose of conducting the test of stability the height of any stop used to prevent a wheel of the vehicle from slipping sideways, shall not be greater than two-third of the distance between the surface upon which the vehicle rests before it is tilted and that part of the rim of that wheel which is then nearest to such surface when the vehicle is loaded in accordance with the requirement of this rule.

152.

Driver's seat.

(1)

Every public service vehicle shall be so constructed that there shall be proper and sufficient sitting accommodation for the driver.

(2)

Every public service vehicle shall be so constructed that, save from the pillar of the body, the driver shall have a clear

vision both to the front and through an angle of 90 degrees to his right hand side. The front pillar of the body shall be so constructed that the vision of the driver is obstructed to the least possible extent.

(3)

No motor cab shall be permit to carry more than one passenger by the side of the driver if it is fitted with gear shift lever on the floor.

153.

Communication with driver.

- Every public service vehicle in which the driver's seat is separated from passenger's compartment by fixed partition which is not capable of being readily opened shall be furnished with efficient means to enable the passengers and the conductor, if any to signal to the driver to stop the vehicle.

154.

Carriage of Standees.

(1)

Subject to the provisions of sub-rule (2) no passenger shall be permitted to be carried standing in any public service vehicle.

(2)

Notwithstanding anything contained in sub-rule (1), (i) Passengers may be carried standing in the single decked stage carriage or on the lower deck of any double decked stage carriage if a fixed grab bar with hanger straps is provided in the roof over the gangway, (ii) Where such stage carriage is operated within the limits of a municipal corporation or a municipality constituted under any law for the time being in force in the State including an area within a radius of such kilometers from such limits, the Regional Transport Authority may direct that passengers may be carried standing in such public service vehicle if there is a clear space serving as a gangway of such greater width than that prescribed in Rule 156, as the Regional Transport Authority may specify in this behalf.

(3)

The number of standees shall in no case exceed the number arrived at by dividing by 40, the length of the gangway in centimeters measured from the foremost seat south to the front exit to the rearmost of the seat north of the entrance door.

155.

Seating arrangements.

(1)

In every motor cab, there shall be provided a reasonably comfortable seating space for each passenger.

(2)

In every public service vehicle other than a motor cab there shall be provided for each passenger except those permitted to be carried as standees, a seating space of not less than 400 millimetres square measured on straight lines along and at right angles to the front of each seat, and (i) Where seats are placed along the vehicle, the backs of the seats on one side shall be at least at a distance of 1370 millimetres distance from the backs of the seats on the other side, (ii) Where seats are placed across the vehicle and are facing in the same direction, there shall be a clear space 280 mm between back of the front seat and the foremost part of the rear seat when measured horizontally.

"2(iii) where seats are placed across the vehicle and are facing each other, there shall be a clear space not less than 510 mm. before the foreword part of the facing seats when increased horizontally."

(3)

The backs of all seats shall be closed to a height of 500 mm. above seat level.

156.

Gangway.

(1)

In every public service vehicle other than a motor cab there shall be a gangway by which passengers may enter or leave the vehicle, (i) Where seats are placed along the sides of the vehicle there shall be a gangway of a clear space of not less than 620 mm. measured between the fronts of the front of the seats, and (ii) Where seats are placed across the vehicle there shall be a gangway of a clear space of not less than 310 mm. measured between any part of adjoining seats or their supports.

(2)

Where the vehicle has seats across the full width of the body with separate doors to each seat, a gangway from front to rear of the vehicle shall not be required.

157.

Head room.

- Every public service vehicle other than a motor cab shall have the following internal height or head room measured along the centre of the vehicle from the top of the floor boards or battens to the underside of the roof supports:-(i) in the case of single decked vehicle and lower deck of double decked vehicle, not less than 1.75 meters and not more than 2 meters, (ii) in the case of upper deck of a double decked vehicle not more than 1.7 meters, (iii) in the case of a vehicle having capacity to carry not more than 15 passengers, not less than 1.30 meters.

158.

Doors.

(1)

Every entrance and exit of a public service vehicle other than a motor cab shall be at least 540 millimetres in width and of sufficient height.

(2)

Every stage carriage operating within the limits of a municipal borough, municipality, municipal corporation or cantonment constituted under any law for the time being in force in the State or such other area as may be specified by a Regional Transport Authority, shall have separate entrance and exit.

(3)

(a)

Every public service vehicle other than a motor cab and a maxi cab shall have an emergency exit in the form of a door on the off side of the vehicle or from the rear wind screen, capable of being bolted from inside.

(b)

Such door shall have clear opening of not less than 660 mm.

(c)

Such door shall be prominently identified in red letters 'Emergency Exit' from inside and outside of the vehicle: Provided that, where windows are at least 1720 mm. wide, a separate emergency exit shall not be necessary.

(4)

Every entrance and exit of every public-service vehicle, except those mentioned in sub-rule (2) shall be fitted with doors, capable of being opened and bolted from inside and outside of the vehicle.

159.

Step.

- In every public service vehicle other than a motor cab the tops of the tread of the lowest step for any entrance or exit, other than an emergency exit, shall not be more than 520 millimetres or less than 250 mm above the ground when the vehicle is empty. All steps shall be fitted with non-slip treads. Fixed steps shall not be less than 230 mm inside and shall in no case project laterally beyond the body of the vehicle unless they are so protected by the front wings otherwise that they are not liable to injure pedestrians.

(2)

In the case of a double decked vehicle. - (i) the risers of all steps leading from the lower to the upper deck shall be closed and no unguarded aperture shall be left at the top landing ground, (ii) all steps leading from the lower to the upper deck shall be fitted with non-slip treads, (iii) the horizontal distance from the nearest point of the riser of the top step to the vertical line passing through the nearest point of the seat opposite to the top tread of the staircase, excluding any grab rail which does not project more than 75 mm from the back of the seat, shall not be less than 660 mm millimetres, (iv) the outer stringer of an outside staircase shall be so constructed or a band shall be so placed as to screen the persons ascending or descending and the height of the outer guard rail shall not be less than 990 mm above the front of the tread of each step.

160.

Grab rail.

- Grab rail shall be fitted to every entrance or exit, other than an emergency exit, of a public service vehicle other than a motor cab and a maxi cab to assist passengers in boarding or alighting from the vehicle.

161.

Cushions.

- The seats of a public service vehicle shall be provided with fixed or movable cushions, and the cushions shall be covered with leather cloth of good quality or other suitable material so that they are capable of being kept in a clean and sanitary condition.

162.

Floor boards.

(1)

The floor boards of every public service shall be strong and closely fitted so as to exclude as far as possible draughts and dust.

(2)

The floor boards may be pierced for the purpose of drainage but for no other purpose.

(3)

The floor board of motor cabs shall be covered with suitable matting.

163.

Exhaust gas.

- Every public service vehicle shall be so maintained that the engine exhaust fumes do not enter the passenger compartment.

163A.

[Pollution control certificate.

[Inserted by Notification No. 3144 dated 5.8.2004.]

- From the date of commencement of these Rules no vehicle shall be kept or maintained, operated or plied in the whole State of Bihar without of pollution control certificate.]

163B.

Agency to issue under control certificate.

(1)

Every Registering Authority, every Motor Vehicles Inspector and Pollution Testing Station authorised by the Licensing Authority shall be the competent agency to issue pollution control certificate.

(2)

Validity of Pollution Control Certificate. - The period of validity of pollution control certificate shall be one year for commercial vehicles or 3 years for private vehicle from the date of issue.

(3)

Format of the Pollution under control certificate. - The format of pollution under control certificate in triplicate shall be in Form PUC. It shall be rectangular in shape, with a measurement of 102 mm x 76 mm, colour shall be green with letters printed in red.

(4)

The Format of Pollution Control Notice shall be in Form PON.

(5)

The Format of Pollution Testing Notice shall be in Form PTN it will be printed and provided by the pollution testing station agency concerned.

163C.

Fees for testing of vehicle and issue of pollution control certificate shall be as follows:-

1

2

3

4

Type

Fixed rate of Fee

Amount payable to Testing Station from the fixed fee

1.

Two wheelers and Auto Rickshaw

Rs. 30.00

Rs. 5.00

2.

Light Motor Vehicle

Rs. 50.00

Rs. 10.00

3.

Other Vehicles

Rs. 75.00

Rs. 15.00

The State Government by a notification in the Official Gazette may revise the rate of abovementioned fees from time to time.

If emissions level of gases and smokes of any vehicle are found to exceed specified limits at the time of testing, the P.T.S. or any other authorised agency shall direct the Owner/Driver of the Vehicle to get the defect removed if it is major in nature, so as to comply with the provisions, by issuing a notice in Form P.T.N.

163D.

Establishment of Pollution Testing Station.

- No person shall establish or maintain any Pollution Testing Station for testing emission levels of gases and smoke of Motor Vehicle as specified under sub-rules (2), (3), (4) and (5) of Rule 115 of the Central Motor Rules, 1989 for the purpose of issuing a pollution under control certificate if he has not obtained a licence in Form L.T.S. from the licensing authority.

163E.

Issue and Renewal of licence.

(1)

An application for the grant or renewal of a licence shall be made in Form L.T.S. or Form L.T. SAR as the case may be, to the licensing authority.

(2)

(i)

The application for grant of license shall be accompanied with a receipt showing fees as specified in sub-rule (4) of Rule 163G.

(ii)

The application for renewal of license shall be accompanied with a receipt showing fees as specified in Rule 163G.

(3)

Licensing Authority shall have regard to the following facts while considering an application for the grant or renewal of license, under these Rules namely:-

(i)

The applicant is engaged in the business of maintenance, servicing, etc., of Motor Vehicles. The applicant or any member of his staff must be Mechanical/Electrical Automobile Engineering degree or Diploma holder.

(ii)

The applicant or any member of staff employed by him for testing the vehicle should be able to operate the gas analyser and the smoke meter available with the Testing Station and he should also be able to rectify minor defects of the vehicle.

(iii)

The premises where the testing of vehicle is proposed to be conducted should be owned by the applicant or is taken on lease by him or is hired in his name, and adequate infrastructure, as required for carrying out the testing work is available in the premises.

(iv)

The applicant should be in possession of at least one smoke meter or one gas analyser or both approved under sub-rule (3) of Rule 116 of Central Motor Vehicle Rules, 1980.

(v)

The Bihar Pollution Control Board will also be responsible for testing the calibration of equipments established at the Testing Station.

(vi)

The applicant should be financially sound to maintain the Pollution Testing Station.

(4)

The Licensing Authority may, on receipt of an application under sub-rule (1) of Rule 163E and after being satisfied that the applicant has complied with the requirements under sub-rules (2) and (3) of this Rule may grant or renew a Licence.

(5)

No application for licence shall be refused by the Licensing Authority unless the applicant is given a reasonable opportunity of being heard and reasons for such refusal recorded in writing by the Licensing Authority.

(6)

(i)

A licence granted in Form L.T.S. shall remain valid for a period of two years and may be renewed for a further period of two years if an application is submitted in Form L.T.A. to the Licensing Authority who granted the licence not less than thirty days before the date of its expiry of the original licence.

(ii)

No application for renewal of the licence shall be refused by the Licensing Authority unless the reasons, for such refusal in writing by the Licensing Authority has been communicated to the applicant.

(7)

(i)

If at anytime, the licence granted under sub-rule (3) of this Rule 163G is lost or destroyed, the holder of the licence shall forthwith intimate the loss of licence to the licensing authority and shall apply, in writing to the said authority for use of a duplicate licence.

(ii)

On the receipt of an application alongwith receipt of the deposit of appropriate fee specified in sub-rule 4(C) of Rule 163G the Licensing Authority shall issue a duplicate licence clearly marked, 'Duplicate'.

(iii)

After issue of a duplicate licence, if the original is found, the same shall be surrendered forthwith to the Licensing Authority.

(8)

The holder of a licence, granted under sub-rule (4) of this Rule shall abide by the following terms and conditions:-

(a)

To maintain an annual register in which particulars of the vehicles tested for Pollution emission levels shall be mentioned-

(i)

Pollution under control certificate number.

(ii)

The registration number, make, model and years of registration of the vehicle tested.

(iii)

Gas/Smoke levels/percentage of Carbon Monoxide at the time of inspection.

(b)

To submit monthly return by 5th day of the succeeding month to the Licensing Authority, furnishing information as to the number of vehicle inspected, result of inspection and the number of Pollution under control certificate issued.

(c)

To make open for test his station available for inspection by Motor Vehicle Inspector or any other officer of the higher rank of Transport Department alongwith the equipment and records maintained by the station.

(d)

To remove any defect of the motor vehicle to comply with the provisions of sub-rule (2) of Rule 115 of Central Motor Vehicles Rules, 1989.

(e)

Not to charge for more than prescribed under Rule 163D of these Rules.

(f)

Not to shift the testing station from premises mentioned in the licence without the prior approval in writing of the

Licensing Authority.

(9)

(i)

Pollution testing of the vehicle, submitted by the owner/driver, shall be done by owner of Testing Station shall issue a Pollution Control Certificate essentially to them soon.

(ii)

The owner of Pollution Testing Station shall put a Sign Board, named 'Pollution Testing Station' at the conspicuous place in which his name, Licence No. and place shall be mentioned.

(iii)

The owner of Pollution Test Station shall maintain pollution under control of certificates in a bound book of 100 pages in Triplicate each shall be serially numbered and each book shall be authenticated by the Licensing Authority or an officer authorised by him in his behalf.

163F.

Power of the licensing authority to suspend or cancel a license.

(1)

The Licensing Authority may, by an order in writing suspend or cancel the licence granted under sub-rule 4 of Rule 163E after giving the holder of the licence an opportunity of being heard, if the licence holder has-

(a)

failed to comply with the requirements specified in sub-rule (3) of Rule 163E.

(b)

failed to maintain the testing equipments in good condition, or

(c)

violated any other provisions of sub-rule (8) of Rule 163E.

(2)

The licence suspended or cancelled under sub-rule (1) of Rule 163F, shall be surrendered to the licensing authority by the holder of the licence.

(3)

Licensing Authority for issuing licence to a Pollution Testing Station shall be the State Transport Commissioner, Bihar.

163G.

Procedure and Fees for Appeal.

- Any person aggrieved by an order of the Licensing Authority under sub-rules (5), (6) of Rule 163E or Rule 163F may file an appeal to the Secretary, Department of Transport within thirty days from the date of the order.

(2)

An appeal under sub-rule (1) of this rule shall be preferred in duplicate in the form of memorandum stating the grounds of objections to the order of the Licensing Authority and shall be accompanied by a certified copy of the order appealed against and a receipt of deposit of the appropriate fees as specified in clause (a) of sub-rule (4) of this Rule.

(3)

The Appellate Authority, shall after giving a reasonable opportunity to the parties to be heard and after such further enquiry, as he may deem necessary pass appropriate order.

(4)

Rate of the Fees payable to the Transport Commissioner under this Rule shall be following:-

In respect of issue of Licence of Pollution:-

(a)

Testing station for testing vehicle

-

Rs. 5000/-

(b)

In respect of renewal of licence to a Pollution Testing Station for testing vehicles

-

Rs. 5000/-

(c)

In respect of 'Duplicate' licence to the testing station for testing vehicles

-

Rs. 200/-

(d)

In respect of appeal against the order of the Licensing Authority referred to in Rule 163G

-

Rs. 500/-

(e)

All fees shall be paid through a Bank Draft payable to the State Transport Commissioner, Bihar, Patna.

Form-PUC

[Rule 163B(3)]

Pollution under control certificate

Name of the Pollution Testing Station

Serial No.

Licence No.

Code No.

The Motor Vehicle Registration No.....

type.....was tested and found fit in accordance with the provisions of Rule 115(2) of Central Motor Vehicles Rules, 1989. On testing the quantity of carbonmonoxide in the smoke emitted by the vehicle was found-

Present.....

Validity Period fromto

Place

Dated

Signature

Form-PUN

[Rule 163B(4)]

Information of Pollution Control

Rule 116(1) of Central Motor Vehicles Rules, 1989

Date

Time

Place

(1)

Registration No. and Type of Vehicle

(2)

Name and Address of Registered Owner.

(3)

Name and Address of the Driver and his Licence No.

The undersigned has reasons to believe that the Motor Vehicle is not in accordance with the provisions of Rule-115(2) or (7) of Central Motor Vehicles Rules, 1989.

Owner/Driver of the motor vehicle is directed to place his vehicle at the authorised Pollution Testing Station and submit the Pollution under control certificate to the officer noted below within 7 days from the date of issue of this information.

District Transport Officer

Signature, Name and

Designation of the testing Officer

Form-PTN

[Rule 163B(5) and 163(C)]

Information for Pollution Test

Date

Time

Place

1. Registration No. and Type of the Motor Vehicle-

2. Name and Address of the Regd. Owner-

3. Name and address of the Driver and his Licence No.

The Owner/the Driver is directed to get the defects of the Motor Vehicle rectified to comply with Rule 115(2) of Central Motor Vehicles Rules, 1989, as the level of smoke emission exceed specified limits as below:-

(a)

Petrol Vehicle

(b)

Diesel Vehicle

Authorised Agency Name and Licence No.

Form-LTS A

[Rules 163(1) and 163(7)]

Form of Application for Licence to establish Motor Vehicle Pollution Testing Station

To,

Licence Authority, Bihar, Patna

1. Full Name

2. Father's/Husband's Name (in case of individual)-

3. Full Address

4. Details of the place where the applicant intends to establish Station.

5. Details of Smoke Meter, Gas Analyser and other equipment available to the applicant.

6. Educational Technical qualification of employees of the Testing Station.

7. Details of Fees deposited.

8. Two specimen signature of applicant.

Date

Signature of Applicant

Form-LTS R

[Rule 163E(1)]

Form of application for Renewal of Licence of Pollution Testing Station.

To,

Licence Authority, Bihar, Patna

1. Full Name

2. Father's/Husband's Name (in case

3. Full Address of individual)

4. Place of the Testing Station

5. Licence No.

6. Date of Issue

7. Validity Period

8. Has the applicant applied before the expiry of the validity period of the Licence? If not, cause of delay.

9. If the previous licence has been suspended, cancelled, details of cause of suspension and cancellation with date.

10. Details of Fees deposited.

Date

Signature of Applicant

Form-LTC

[Rule 163 E (6)]

Form of Licence to establish Pollution Testing Station

Licence No.

1. A Licence is hereby granted to Srito establish Pollution Testing Station. The P.T.S. will be established at Place/Building.

2. The PTS is authorised to test the following types of vehicles:-

(a)

Petrol

(b)

Diesel

(c)

Petrol, Diesel both

Under Motor Vehicles Act 1988, Central Motor Vehicles Rules, 1989 and Bihar Motor Vehicles Rules, 1992.

3. The licence will be valid from.

To,

Date

Signature of Licensing Authority

Seal

The licence is hereby renewed from to

Signature of Licensing Authority.

164.

Internal lighting.

- Every public service vehicle shall be furnished with one or more electric light adequate to give reasonable illumination throughout the passenger's compartments including the entrance and exit but of such power or so screened as not to impair the forward vision of the driver.

165.

Ventilation.

- Every public service shall be provided with adequate means of ventilation so that there shall be proper ventilation even when the windows, are not opened. If the vehicle is provided with opening windows, suitable provisions shall also be made so that the opening of the windows could be adjusted.

166.

Protection of passengers from weather.

(1)

Every public service shall have a fixed and water-tight roof.

(2)

Every public service vehicle shall have suitable Venetians or screens on its windows, capable at all times of protecting the passengers from the weather without preventing adequate ventilation of vehicle. When the screens are made of fabric, all of them shall at all times be fastened securely to the vehicle.

(3)

Where glass windows or Venetians are used they must be provided with effective means to prevent their rattling.

167.

First-Aid-Box.

- Every public service vehicle other than a motor cab and a maxi cab shall carry a dust-proof first aid box containing the following articles, namely:-

(1)

A leaflet containing first aid instructions,

(2)

Twenty four sterilized finger dressings, (3) Twelve sterilized hand or foot dressings, (4) Twelve sterilized large or body dressings, (5) One extra large, two large and three small sterilized dressings for burns or cuts, (6) Two half-ounce packet of sterilized cotton wool, (7) A bottle of two percent tincture of iodine or a tube of antiseptic cream containing 0.5 percent-greasy base, (8) A bottle of Sal Volatile, (9) Empty bottle fitted with cork and camel hair brush for eye drops, (10) Two-ounce medicine glass.

168.

Locking of motors of nuts.

- All moving parts of every public service vehicle and all parts subject to severe vibration connected bolts or studs and nuts, shall be fastened by locking of nuts with efficient spring or lock nut washers or by castellated nuts and split pins or

by some other efficient devices so as to prevent them working or coming loose.

169.

Approval of locally manufactured trailer.

(1)

No locally manufactured trailer intended to be used as a transport vehicle within the State shall be registered as transport vehicles unless the design of such trailer is approved, provided that this rule shall not apply to trailers manufactured outside India.

(2)

No trailer, the design of which is approved shall be altered so that it does not comply with the approved design.

(3)

An application for the approval of a design of a trailer shall be made to the State Transport Commissioner alongwith the report of verification of design and recommendations of maximum laden weight and axle weight in respect of the trailer obtained from the testing institute and a fee of one hundred rupees.

(4)

An application for obtaining a report of verification of design and recommendation of maximum laden weight and axle weight in respect of a trailer shall be made to the testing institute, in triplicate. Such application shall also be accompanied by three copies of each of the following documents duly certified by a mechanical engineer, having minimum qualification of bachelor's degree in mechanical engineering of a recognized university, namely. - (i) full specifications, (ii) drawings giving all dimensions and details, and (iii) set of design calculations of (a) axles and their supports, (b) springs and their supports, (c) long bearers, (d) cross-bearers, (e) platform, tank or anything that may be carried on the cross bearers and their supports, (f) low bar or king pin, (g) turn table or any other scribbling devices for the front axle if provided, (h) brakes and braking arrangement, (i) any other item such as shock absorbers, tipping devices etc, if included, (j) wheels and tyres.

(5)

The testing institute shall, upon the receipt of such application scrutinize the design and calculations and if the design is found satisfactory, it shall certify what would be in its opinion, maximum laden weight and axle weight in respect of the trailer, which is compatible with reasonable safety.

(6)

The testing institute may call upon the applicant to furnish further details, if required.

(7)

In case the design is not found satisfactory, the testing institute may reject the design.

(8)

When design is found satisfactory, the testing institute shall forward one copy of the approved design, specifications and calculations with its recommendations as to the maximum laden weight and axle weight, to the State Transport Commissioner and one copy to the applicant.

(9)

The applicant, on approval of the design, shall supply the State Transport Commissioner with as many extra copies of the approved design, as may be required by him for sending them to different registering authorities for their record.

(10)

The fees which may be charged by the testing institute for such checking of a design shall be five hundred rupees, for the design of a trailer having maximum laden weight upto 10 metric tonnes and one hundred rupees extra for additional metric tonne, or part thereof, subject to a maximum of one thousand rupees, and shall be paid by the applicant to the testing institute on demand by it, and shall not be refunded once the design is checked irrespective of whether the design is approved or not.

(11)

Notwithstanding anything contained in this rule, the approval of the design of a trailer manufactured in India by a competent authority in any other State in India shall be deemed to be an approval accorded under these rules, provided that there is in force in that other State, rules conforming to or containing substantially the same provisions as in this rule.

170.

Body and loading platform.

- Every good vehicle including a trailer shall be equipped with strong platform or body so constructed as to be capable of carrying the load for which it is used without danger to other road users and such that the load can be securely packed within or fastened to the body or platform.

171.

Driver's compartment.

- No transport vehicle shall be so constructed, that any person can sit, or any luggage or goods can be carried between the driver's seat and his door.

172.

Spare wheel and tools.

(1)

Save as otherwise specified by the Regional Transport Authority in respect of municipal or cantonments areas, every transport vehicle shall at all times be equipped with a spare wheel or rim fitted with a pneumatic tyre in good, sound and readily inflated condition and mounted in such a way that it can be readily dismantled and fitted to the vehicle in the place of any one of the wheels.

(2)

Sub-rule (1) shall not apply to a transport vehicle during the completion of any journey during which it has been necessary to bring the spare wheel or rim and tyre into use.

(3)

Every transport vehicle shall at all times be furnished with an efficient jack and other tools necessary to change a wheel.

(4)

Every transport vehicle shall at all times be furnished with one screw and at least with one spare fuse, one side-light bulb and one head-light bulb.

173.

Fitment of audio or audio-visual devices.

(1)

No motor vehicle shall be fitted with an audio or audio-visual device in such a position so that, it distracts the attention of driver.

(2)

Such audio-visual device or radio or tape-recorder shall be fitted in such a position that its operation is not accessible to driver.

(3)

No loudspeaker attached to any of such devices shall be fitted in the driver's cabin in case of a stage carriage or a contract carriage.

(4)

No person, while driving, shall operate or attempt to operate any of such devices.

(5)

No person, while driving, shall put on the head-phones whether such device is in operation or not.

174.

Sound signals.

- Restriction on use of:-(i) No driver of a motor vehicle shall sound the horn or other device for giving audible warning with which the vehicle is equipped, or shall cause or allow any other person to do needlessly or continuously or to an extent beyond that which is reasonably necessary to ensure safety.

(ii)

The District Magistrate may by notification published in one or more newspapers circulating in the area in question and by the erection in suitable places of traffic Sign No. M18 as set forth in the Schedule to the Act, prohibit the use by drivers of motor vehicle of any horn, gong or other device for giving audible warning in any area within the city or district and during such hours as may be specified in the notification:

Provided that, when the District Magistrate, prohibits the use of any horn, gong or other device for giving audible warning during certain specified hours, he shall cause a suitable notice, in English and in the script of the city or district setting forth the hours within which such use is so prohibited to be affixed below the traffic sign.

175.

Prohibition in respect of wind-screen.

(1)

No coloured film or such other device shall be attached or affixed on the front wind screen of any motor vehicle so that it obstructs the driver in having a clear vision to the front.

(2)

No curtain, Venetians, coloured film or any sub-control reflecting or nonreflecting polyester film or such other device shall be attached or affixed on the rear of the vehicle in having a clear vision to the front of that vehicle through its rear and front wind screens.

(3)

No wind-screen or part of it of any motor vehicle shall show a mirror finish which can reflect the sun-rays or other light.

176.

Application of certain provisions to private service vehicles and educational institution bus.

- The provisions of Rules 148 to 166 and 175 shall, as far as may be, apply to private service and educational institution bus.

177.

Distinguishing board for contract carriage.

- Every contract carriage other than a motor-cab and a maxi cab shall carry in a prominent place on the front of the vehicle a distinguishing board in the regional language or in English with letters a 'CONTRACT CARRIAGE' painted in black on white background. The height and the thickness of each letter shall be not less than 65 mm and 15 mm respectively.

178.

Exemption of Military vehicles.

- Nothing contained in this chapter shall apply to military vehicles registered under Section 60 of the Act.

179.

Exemption of road rollers, graders etc.

- Nothing contained in these rules shall apply to road rollers, graders and other vehicles designed and used solely for the construction, repair and cleanings of road or for the construction and maintenance of dams.

180.

Exemption from the provisions of Chapter-VII of the Act.

- Subject to such conditions as may be prescribed by the Central Government, the State Government may, by general or special order or by notification in the official Gazette, exempt any motor vehicle or class of motor vehicles from all or any of the provisions of the rules made under Chapter-VII of the Act, either generally or in such area or areas or on such route or routes and subject to such conditions, if any, as may be specified therein, if it is satisfied that-

(i)

such vehicles or class of vehicles, can be used in any public place without any danger to public safety, or

(ii)

such vehicle or class of vehicles are suitable for carrying out any work of public purpose, or

(iii)

such vehicles or class of vehicles are required to be used in the public interest, or

(iv)

having regard to the construction and the use of such vehicle or class of vehicles, the requirement of any particular rule or Rules does not serve any useful purpose, or

(v)

having regard to the availability and utility of such vehicle or class of vehicles, their use in public interest is expedient, or

(vi)

it is necessary to do so.

181.

Conditions for exemption in respect of imported or military disposal vehicles including trailer.

- The exemption from the provisions of Rule 96 of the Central Motor Vehicles Rules, 1989, in respect of any imported or military disposal tractor-trailer in combination, articulated units, full trailer or semi-trailer or any other motor vehicle, shall be subject to the following conditions:-

- (a)
that the vehicle is moved on the public roads during the period between half an hour after sunrise and half an hour before sunset only;
- (b)
the vehicle is not driven at a speed exceeding the maximum fixed for the vehicle under the notification;
- (c)
that the vehicle is provided with red flags on its four corners indicating the full width thereof, both in the front and in the rear;
- (d)
that the vehicle is provided with an attendant or attendants to warn other vehicular traffic on the road;
- (e)
that the movement of the vehicle is restricted to the roads in the cities and on the State and National Highway subject to any restriction specified under Section 115 of the Act or under any law for the time being in force;
- (f)
that the prior permission of concerned authorities is obtained each time the load carried exceeds the limit specified under Section 115 of the Act on the particular route or routes;
- (g)
that the prior permission of the police authorities is obtained when heavy and odd-dimensioned materials are carried and also when the vehicle is moved on the ghat roads;
- (h)
that the sketch of the vehicle together with overall dimensions certified by registering authority is always carried with the vehicle when in public place.

182.

Restriction of use of trailer.

- No trailer other than a semi-trailer shall be used as a public service vehicle.

183.

Prohibition of drawing of trailers.

- No motor vehicle, other than a tractor or a prime motor of articulated vehicle and truck-trailer combination, shall draw a trailer or a semi-trailer.

184.

Restriction on number of trailers to be drawn.

(1)

Subject to the provisions of Rule 185, a tractor may draw more than one trailer:

Provided that no tractor shall draw on a public road-

(i)

a trailer exceeding $\frac{1}{2}$ metric tonne in weight unladen and fitted with solid steel wheels less than 60 centimeters in diameter, or

(ii)

a disc harrow without trolley wheels used as trailing implements behind a tractor.

(2)

No agricultural tractor shall draw more than one trailer or semi-trailer.

185.

Restriction on length of train or vehicle and trailers.

- The sum-total of the length of any vehicle and its attached trailer or trailers shall not exceed 18 meters.

186.

Distinguishing mark for trailers.

(1)

No person shall drive and no person shall cause or allow to be driven, in any public place any motor vehicle to which a trailer is or trailers are attached unless there is exhibited on the front of such motor vehicle and on the back of the trailer or of the last trailer in train, as the case may be, a distinguishing mark in the form set out in the diagram contained in the Fourth Schedule to these rules, in white on a black ground.

(2)

The mark shall be kept clean and unobscured and shall be so fixed to the trailer that-

- (i)
the letter on mark is vertical and easily distinguishable from the rear of the trailer,
- (ii)
the mark is either on the centre or to the right hand side or the back of the trailer, and
- (iii)
no part thereof is at a height exceeding 120 centimeters from the ground.

Chapter-VIII Control of Traffic

187.

Other authorities or person under Chapter-VIII of the Act.

- The officers mentioned in column 2 of the following Appendix for the purposes of the provisions specified against them in column 3 of the Appendix shall be the authorities authorised or empowered, as the case may be, for the said purposes.

Appendix

Sl. No.

Authority or person

Provisions of the Motor Vehicles Act, 1988

1

2

3

1.

The District Magistrate

Sub-section (2) of Section 112, Section 115, clause (a) and clause (b) of sub-section (1) of Section 116, sub-section (2) of Section 116 and Section 117

2.

Any Police Officer of and above the rank of a Superintendent of Police.

Sub-section (4) of Section 117

3.

Any Magistrate, any officer of the Transport Department of and above the rank of Assistant Motor Vehicle Inspector/ any Police Officer of and above the rank of Sub-Inspector

Sub-section (1) of Section 114, sub-section (3) of Section 130, Section 133 and Section 136

188.

Extent of application of Section 130.

- No person shall be liable to be convicted of an offence under Section 130, if at the time when the document referred to in the said section is required to be produced on demand by the checking officer, he has-

- (i)
submitted the document in the office of any authority for such work which requires the submission of such document to such authority, or
- (ii)
reported the loss, destruction or mutilation of the document to the prescribed authority, and a duplicate copy has not been delivered to him by such authority.

189.

Weighing device.

(1)

A weighing device for the purpose of Section 114 may be a weigh bridge installed and maintained at any place by or under the orders of the Government or a local authority or railway administration or by any other person:

Provided that such weighing device is certified and stamped in accordance with the provisions of the Bihar Weights and Measures (Enforcement) Act, 1959 and the Rules made thereunder.

(2)

The driver of any motor vehicle shall, upon demand by a competent authority so drive and manipulate the vehicle as to place it or any wheel or wheels thereof, as the case may be, upon any weigh bridge in such a manner that the weight of the vehicle or the weight transmitted by any wheel or wheels may be exhibited by the weigh-bridge.

(3)

If the driver of a motor vehicle fails within a reasonable time to comply with a requisition under sub-rule (2), a person authorised under Section 114 may cause any person, being the holder of a licence authorising him to drive the vehicle, so as to drive and manipulated the vehicle.

(4)

When the weight or axle weight of a motor vehicle is determined by separate and independent determination of the weight transmitted by any wheel or wheels of the vehicle the axle weight and the laden weight of the vehicle shall be deemed, to be the sum of the weight transmitted by the wheels of any axle by all the wheels of the vehicle, as the case may be.

(5)

Upon the weighment of a vehicle in accordance with Section 114 and this rule, the person who has required the weightment or the person in charge of the weighing device shall deliver to the driver or other person incharge of the vehicle a statement in writing of the weight of the vehicle and of any axle, the weight of which is separately determined.

(6)

The driver or other person incharge of, or the owner of, a vehicle which has been so weighed may within 24 hours of the weighment of the vehicle challenge the accuracy of the weighing device by a statement in writing to the Inspector of Weights and Measures in whose jurisdiction such weighing device is situated, alongwith a deposit of one hundred rupees.

(7)

Upon receipt of such statement, the Inspector of Weights and Measures may test such weighing device and the certificate of such Inspector regarding the accuracy of the weighing device shall be final.

(8)

If, upon the testing of a weighing device under sub-rule (7), the weighing device is certified to be accurate or to be inaccurate to an extent less than any weight by which the laden weight or unladen weight of the vehicle is shown in the statement referred to in sub-rule (5) to have exceeded the registered gross vehicle weight or unladen weight, as the case may be, a contravention of sub-section (3) of Section 113 shall be deemed to have been proved.

(9)

If, upon the testing of a weighing device as aforesaid the weighing device is certified to be inaccurate to an extent greater than any weight by which the laden weight or unladen weight of the vehicle as shown in the statement referred to in sub-rule (5) to have in excess of gross vehicle weight or unladen weight, as the case may be, no further proceedings shall be taken in respect of any such laden weight or unladen weight.

(10)

No person, shall by reason of having challenged the accuracy of any weighing device under sub-rule (6), be entitled to refuse to comply with any order in writing under Section 114.

190.

Fees for storage of goods removed from over-loaded vehicles.

(1)

The fees to be charged by the godown-keeper, in respect of goods removed under sub-section (1) of Section 114, shall be Rs. 5/- per day for every 100 kilograms or part thereof.

(2)

Such fees shall be in addition to whatever actual labour charges are required to be paid for unloading or loading of goods.

(3)

Such fees shall be recoverable from the driver or the owner or other person incharge of the vehicle from which the goods is removed.

191.

Parking places and halting stations.

(1)

In consultation with local authorities having jurisdiction in the area concerned and in the city where there is Commissioner of Police, in consultation with such Commissioner of Police and elsewhere, with the District Magistrate, the Regional Transport Authority may, by notification in the Official Gazette or by the election of traffic signs which are permitted for the purpose, under sub-section (1) of Section 116, or both, in respect of picking up or setting down of passengers or both, by public service vehicles or by any specified class of public service vehicle:-

(i)

conditionally or unconditionally prohibit the use of any specified place or of any place of a specified nature or class, or

(ii)

require that within the limits of any municipal corporation, municipality, notified area or cantonment, or within such other limits as may be specified in the notification, certain, specified stands or halting places only shall be used:

Provided that no place which is privately owned shall be so notified except with the previous consent in writing of the owner thereof.

(2)

Whether a place has been notified or has been demarcated by traffic signs, or both, as being a stand or halting place for the purpose of this rule, then notwithstanding that the land is in possession of any person, the place shall, subject to the provisions of these rules, be deemed to be a public place within the meaning of the Act; and the Regional Transport Authority may enter into an agreement with, or grant a licence to any person for the provision or maintenance of such place including the provision or maintenance of the buildings or works necessary thereto, subject to the termination of the agreement or licence forthwith upon the breach of any condition thereof and may otherwise make rules or give directions for the conduct of such place including rules or direction:-

(i)

prescribing the fees to be paid by the owners of public service vehicles using the place and providing for the receipt and disposal of such fees;

(ii)

specifying the public service vehicles, or the class of public service vehicles which shall use the place or which shall not use the place;

(iii)

appointing a person to be the manager of the place and specifying the powers and duties of the manager;

(iv)

requiring the owner of the land, or the local authority, as the case may be, to erect such other works as may be specified in the rules or in the direction, and to maintain the same in a serviceable, clean and sanitary condition;

(v)

requiring the owner of the land or the local authority, as the case may be, to arrange for the free supply of drinking water for passengers including intending passengers;

(vi)

prohibiting the use of such place by specified persons or by other than specified persons.

(*) Nothing in sub-rule (2) shall require any person owning the land, which has been appointed as a stand or halting place to undertake any work or incur any expenditure in connection therewith without his consent and, in the event of any such person declining to carry out such work or to incur such expenditure or failing to comply with any rule or direction made or given to him under this rule, the competent authority may prohibit the use of such a place for the purposes of the rule.

192.

Traffic control signals.

- For the purpose of Section 119, signals or directions given by the police officer shall be as illustrated as in the fifth schedule.

193.

Stationary motor vehicle on road.

(1)

If any motor vehicle is stationary, abandoned or left unattended in any place other than a duly appointed parking place in such a way as to cause obstruction to traffic or danger to any person or creating a traffic hazard, any police officer shall:-

- (i) forthwith cause the vehicle to be moved under its own power or otherwise to the nearest place where the vehicle will not cause undue obstruction or danger;
- (ii) unless it is moved to a position where it will not cause obstruction or danger or hazard, cause to be taken all reasonable precautions to indicate, the presence of the vehicle, and
- (iii) if the vehicle has been stationary, abandoned or left unattended for a continuous period of ten or more hours, take action under the provisions of Section 127 of the Act.

(2)
If a motor vehicle has been stationary in a duly appointed parking place for a period exceeding that specified by a competent authority in respect of the said place or, if no such period has been specified for a period exceeding six hours, any police officer may remove the vehicle to the nearest place of safe custody.

(3)
Notwithstanding any fine or penalty which may be imposed upon any person upon conviction for the contravention of the provisions of Section 426 or of the regulations made by a competent authority in relation to the use of duly appointed parking places, the owner of the motor vehicle or his heirs or assignees shall be liable to make good any expense incurred by any police officer in connection with the moving, lighting, watching or removal of a vehicle or its contents in accordance with sub-rules (1) and (2), and any police officer or any person into whose custody the vehicle has been entrusted by any police officer shall be entitled to detain the vehicle until he has received payment according and shall upon receiving such payment, give a receipt to the person making the payment.

194.

Use of lamps on stationary vehicles.

(1)
On every motor vehicle while it is stationary on a public road during the period between half an hour after sunset and half an hour before sunrise and at any other time when there is not sufficient light the parking lights shall be kept lighted if the vehicle is in such position as to cause danger or undue inconvenience to other road users.

(2)
If, within the limits of any municipal corporation, municipality or cantonment, a motor vehicle is at rest within the hours during which lights are required, at the left-hand side of any road or street or elsewhere in any duly appointed parking place, it shall not be necessary for the motor vehicle to exhibit any light save as may be required generally or specifically by the District Magistrate.

(3)
Outside the limits of any municipal corporation, municipality or cantonment, if a motor vehicle is at rest within the hours during which lights are required in such a position as not cause danger or under inconvenience to other users of the road, it shall not be necessary for the motor vehicle to display any lights.

195.

Removal of goods abandoned on road.

- Where a goods carriage has been incapacitated to move due to accident, mechanical break down or due to any other reason, and where the goods carried by such goods carriage is lying outside the vehicle in such condition as to cause traffic hazard or to obstruct the free flow of traffic or to endanger the life and property of other users of road, any police officer in uniform may require the driver or the other person incharge of such goods carriage, to remove the goods immediately to a place where it will not cause any hazard, obstruction or danger.

(2)
If such vehicle and the goods, abandoned or left unattended are not removed within reasonable time the police officer may cause the removal of goods to the nearest place of safe custody, as he thinks fit.

(3)
Where the actions have been taken by any police officer under sub-rule (2), then notwithstanding any fine or penalty which may be imposed upon any person under any of the provisions of the Act, or of any rules or regulations made by a

competent authority, the provisions of Rule 190 and sub-rule (3) of Rule 193, shall as far as may be, apply to removal of goods under this Rule.

196.

Use of protective head gear.

- Every person driving or riding (otherwise than in a side car) on a motorcycle shall wear a protective head gear, that is, a helmet which by virtue of its shape, material and construction could be expected to afford to the person driving a motorcycle, a degree of protection from injury in the event of an accident:

Provided that the following shall operate as an exception to the provisions of Section 129, of the Act-

(i)

any pillion rider.

(ii)

the person driving a motorcycle fitted with an engine having capacity upto 50 cubic centimeters.

197.

Prohibition of erection or placing of sign or advertisements on roads.

- No person shall place or erect or cause or allow to be placed or erected, on any road, any sign or advertisement-in such a way as to obscure any traffic signs from view or any sign or advertisement which is so similar in appearance to a traffic sign as to be misleading.

198.

Prohibition of driving down hill with the gear disengaged.

- No person shall drive a motor vehicle with the engine free, that is to say: with the gear lever in neutral the clutch lever depressed, or with any free wheel or other device in operation which free the engine from the driving wheels and prevents the engine from acting as a brake when the vehicle is travelling down an incline.

199.

Prohibition of taking hold of or mounting a motor vehicle in motion.

(1)

No person shall mount or attempt to mount on, or the down from any motor vehicle when the motor vehicle is in motion.

(2)

No person shall take hold of, and no driver of a motor vehicle shall cause or allow any person to take hold of, any motor vehicle when in motion for the purpose of being towed or drawn upon some other wheeled vehicle or otherwise.

200.

Prohibition of driving on foot-path or cycle tracks.

- Where any road or street is provided with foot-path or tracks reserved for cycle or specified classes of other traffic, no person shall, save with the sanction of Police Officer in uniform, drive any motor vehicle or cause or allow any motor vehicle to be driven on any such foot-path or track.

201.

Prohibition of driving of certain vehicle.

(1)

No tractor of the following type shall be driven on any public road unless-

(a)

in the case of a crawler tractor or chain type every alternate rib of the track chain called "grouser plate", is, fitted with a street plate; or

(b)

in the case of a wheeled tractor fitted with steels wheels, protective road bands made of steel or rubber, are fitted over the steel wheels; or

(c)

in the case of a half track tractor; the rear wheels thereof are fitted with street plates, and the front wheels if they are steel wheels are fitted with street bands;

Provided that the provisions of clause (c) so far as they relate to the fitment of street shall not apply to any tractor the track of which without grouser plates presents a flat surface in contact with the road surface.

(2)

No tractor when fitted for being driven on a public road under sub-rule (1) shall be driven on such road at a speed

exceeding 10 k.m. per hour and no such tractor shall take sharp turns on such road:

Provided that if such tractor is a crawler tractor it shall not be driven on an asphalt road between 9A.M. and 9 P.M.

(3)

Every such tractor, when driven on a metalled road shall be driven as far as possible on the side strips of such road.

202.

Projection of loads.

(1)

Nothing shall be placed or carried upon the outside of the road of a double-decked public service vehicle.

(2)

No person shall drive, and no person shall cause or allow to be driven, in any public place, any motor vehicle which is loaded, in a manner likely to cause danger to any person or in such a manner that the load or any part thereof or any extends:-

(i)

laterally beyond the side of the body or beyond a vertical plane in prolongation of the side of the body,

(ii)

to the front beyond the foremost part of the vehicle,

(iii)

to the rear to a distance exceeding 122 centimeters beyond the rearmost part of the vehicle excluding any luggage carrier, and

(iv)

in the case of single-decked vehicle to a height exceeding 355 centimeters from the surface upon which the motor vehicle rests.

(3)

Clause (iii) of sub-rule (b) shall not apply to a goods motor vehicle when loaded with any pole or other projecting thing so long as:-

(i)

the projecting load falls within the limits of the body of a trailer being drawn by the goods vehicle, or

(ii)

the distance by which the pole or other thing projects beyond the rearmost point of the motor vehicle does not exceed 183 centimeters, and

(iii)

there is attached to the rear of such pole or other thing in such a way as to be clearly visible from the rear at all times a white disc of not less than 38 centimeters, in diameter, and at night a lamp, in addition to the prescribed lamps on the vehicle so arranged as to show a red light to the rear.

(4)

The Registering Authority may, by order in writing, exempt any motor vehicle, for such a purpose, for such period and subject to such conditions as he may specify from any or all of the provisions of this Rule.

203.

Cut-outs-prohibition of the use of.

- No driver of a motor vehicle, shall, in public place, make use of any cut-out or other device by a means of which the exhaust gases of the engine are released save through the silencer.

204.

Restriction on travelling backwards.

- No driver of a motor vehicle shall cause the vehicle to travel backward without first satisfying himself that he will not thereby cause danger or undue inconvenience to any person or in any circumstances, save in the case of a road roller, for any greater distance or period of time than may be reasonably necessary in order to turn the vehicle round.

205.

Visibility of lamps and registration marks.

(a)

No load or other thing shall be placed on any motor vehicle so as at any time to mark or otherwise interrupt vision of any lamp, registration mark or other mark required to be carried by or exhibited on any motor vehicle by or under provisions

of the Act, unless a duplicate of the lamp or mark so marked otherwise obscured is exhibited in the manner required by or under the Act for the exhibition of the mark or obscured lamp mark.

(b)

All registration and other mark required to be exhibited on a motor vehicle by or under the provisions of the Act shall at all times be maintained as far as may be reasonable by possible, in a clear and legible condition.

206.

Stop sign on road surface.

(1)

When any line is painted on or inlaid into the surface of any road at the approach to a road junction or to a pedestrian crossing or otherwise, no driver shall drive a motor vehicle so that any part thereof projects beyond that line at any time when a signal to stop is being given by a police officer or by means of traffic control lights or by a traffic sign.

(2)

A line for the purpose of this Rule shall be not less than 51 millimetres in width at any part and shall be either in white, black or yellow.

207.

Restriction on carriage of dangerous substances.

- Notwithstanding any other action which may be taken under the Act or under any other law for the time being in force for contravention of any condition for carriage of inflammable or explosive, substances, any police officer or any officer of the Motor Vehicles Department, in uniform, may remove or cause to be removed from the vehicle, any inflammable, explosive or dangerous substance carried in any public service vehicle.

208.

Restriction on use of sound signals.

- The District Magistrate, may, by notification published in the Official Gazette or in one or more newspaper, and by the erection of traffic sign in suitable places, prohibit the use of any horn or such other device, in any area under his jurisdiction during such hours as may be specified in the notification.

209.

Restriction on dazzling light.

(1)

The driver of a motor vehicle shall at all times when the light of the motor vehicle are in use, so manipulate them that danger or undue inconvenience is not caused to any person by dazzle.

(2)

Subject to the provisions of Rule 106 of the Central Motor Vehicles Rules, 1989, the State Transport Commissioner of the whole State may by notification in the official Gazette require the owners of the motor vehicles to employ such device or contrivance as may be specified in the notification to prevent the lights of such vehicle when in use from causing danger or undue inconvenience to any person by dazzle.

(3)

The District Magistrate may, by notification published in the official Gazette or in one of or more newspaper prohibit the use of lamps giving a powerful or intense light, within such areas or in such places under his jurisdiction, as may be specified in the notification.

210.

Attendant.

(1)

In every transport vehicle other than a motor-cab, maxi-cab or a private service vehicle, there shall be an attendant who shall be in such position as to give warning to the driver of any vehicle approaching from the rear.

(2)

Attendant carried on the trailer shall also be responsible to apply the brakes of the trailer.

(3)

The age of any such attendant shall not be less than 20 years.

211.

Securing of goods in open goods carriage.

(1)

Goods transported in an open goods carriage shall be properly secured within the body of such vehicle in such a manner so as to prevent the goods from falling from such vehicle.

(2)

Any loose material, transported, in an open goods carriage, shall be so covered and secured by the tarpaulin that there shall not be emitted therefrom any loose particulars, the omission of which might cause, damage, injury, or annoyance to the public or any person, or danger or injury, to property of the public or any person.

212.

Exhibition of reflect or boards.

(1)

And each such carriage shall carry three reflector boards, and each such board-

(i)

shall have the width of 75 cms. and the height of 15 cms.;

(ii)

shall be fitted with two red reflectors at both the ends and one white reflector in the middle, and

(iii)

shall be provided with a metal chain or wire of sufficient length and strength.

(2)

Each reflectors shall be of a diameter not less than 80 mm.

(3)

If any goods carriage is stationary, on or near a road in any place, due to mechanical breakdown, accident or any reason whatsoever, in such a way as to cause obstruction to traffic or danger to other road users, there shall be exhibited on or near such vehicle:-

(i)

one reflector board in the front,

(ii)

second such board on the right side and,

(iii)

third such board at the rear.

(4)

All such boards shall be exhibited on such vehicle, during the period between the sunset and sunrise, and shall be placed, in the direct line of approaching vehicles.

213.

Exemption from the provisions of Chapter-VIII of the Act.

(1)

The State Government may by general or special order, in the official Gazette, exempt fire brigade vehicles, ambulance or other special classes or descriptions of vehicle from all or any of the provisions of the rules made under Chapter-VIII of the Act, either generally or in such area or areas or on such route or routes and subject to such conditions, as may be specified therein.

(2)

The State Government may, by general or special order, in the official Gazette, exempt any person or class of persons, from any of the provisions of the rules made in this chapter.

214.

Public parking place and stand.

- The District Magistrate, may, in consultation with the local authorities having jurisdiction in the area concerned notify-

(i)

any place as a parking place or a stand,

(ii)

the class of motor vehicle that can be parked at such parking place or stand,

(iii)

maximum period of time for which a motor vehicle can be parked,

(iv)

the fee that can be levied and collected by the local authority for such parking, and

(v)

the manner in which such parking place or stand shall be managed and maintained, by publication in the local newspaper and by creating appropriate traffic signs.

(2)

On the parking places and stands so notified under sub-rule (1), no public service vehicle shall be allowed to pick up or set down any passengers.

215.

Inspection of motor vehicle involved in fatal accident.

(1)

Upon a requisition made by any police officer of and above the rank of a Sub-Inspector of Police, any officer of and above the rank of an Assistant Motor Vehicles Inspector may inspect any motor vehicle involved in fatal accident.

(2)

The requisition referred to in sub-rule (1) shall contain, as far as possible all time being in force for contravention of any condition for carriage of inflammable or explosive, substances, any police officer or any officer of the Motor Vehicles Department, in uniform, may remove or cause to be removed from the vehicle, any inflammable, explosive or dangerous substance carried in any public service vehicle.

(3)

The Inspection of a motor vehicle involved in fatal accident shall not be carried out by the officers of the Motor Vehicles Department after sunset and before sunrise and at any other time when there is no sufficient light to render clearly visible different parts of the vehicle.

(4)

On completion of inspection, an inspection report in Form M. V. Accident shall be issued, as far as possible, on the spot, by the Inspecting Officer, and such report shall contain the name and designation of the Inspecting Officer besides his signature.

216.

Towing.

(1)

No vehicle, other than a mechanically disabled or incompletely assembled as motor vehicle a registered trailer or a side car, shall be drawn or towed by any motor vehicle.

(b)

No motor vehicle shall be drawn by any other motor vehicle unless there is in the driver's seat of the motor being drawn or towed a person holding a licence authorising him to drive the vehicle or unless the steering wheels of the motor vehicle being towed are firmly and securely supported clear of the road surface by some cranes or other device on the vehicle or attached to the vehicle which is drawing or towing it.

(c)

When a motor vehicle is being towed by another motor vehicle, the clear distance between the rear or the front vehicle and the front of the rear vehicle shall at no time exceed 457 centimetres. Steps shall be taken to render the tow rope or chain easily distinguishable by other users of the road, there shall be clearly displayed on the rear of the vehicle being towed in black letters not less than 8 centimeters high and on a white ground the words 'ON TOW':

Provided that no person shall be liable to be convicted for the contravention of this sub-rule for failure to display the words 'ON TOW' if the motor vehicle which is towing the other is not a motor vehicle adopted and ordinarily used for the purpose and so long as the vehicle is being towed between the place of the breakdown and the nearest place on the route at which the necessary materials can be obtained.

(d)

No motor vehicle when towing another vehicle, other than a trailer or sidecar, shall be driven at a speed exceeding 24 kilometers per hour.

(e)

No motor vehicle shall tow cyclist or motor cyclist and no cyclist or motor cyclist shall allow himself to be towed by a cyclist.

217.

Trailer prohibited with motorcycles and invalid carriage.

(a)

No motorcycle shall draw a trailer exceeding 265 kilograms, in weight unladen or 152 centimeters, in overall width.

(b)

No invalid carriage shall draw a trailer.

218.

Prohibition of attachment of trailer to certain vehicles.

- No motor vehicle which exceeds 792 centimeters, in length shall draw a trailer:

Provided that this rule shall not apply to any disabled motor vehicle being towed in consequence of disablement.

219.

Attendants on trailers.

(1)

When a trailer is or trailers are being drawn by a motor vehicle, there shall be carried in the trailer or trailers or on the drawing motor vehicle, as the case may be, the following person, not being less than twenty years of age and competent to discharge their duties, that is to any:-

(a)

if the brakes of the trailer or trailers cannot by the driver of the drawing motor vehicle or by some other persons carried on that vehicle:-

(i)

one person on every trailer competent to apply the brakes, and

(ii)

one person placed at or near the rear of the last trailer in train in such a position as to be able to have a clear view of the road in rear of the trailer, to signal to the drivers of overtaking vehicles and to communicate with the driver of the drawing motor vehicle,

(b)

if the brakes of the trailer can be operated by the driver of the drawing motor vehicle or by some other person carried on that vehicle, such other person in addition to the driver shall be carried on that vehicle and one person on the last trailer in train in accordance with the provisions of sub-clause (ii) of clause (a),

(c)

if the trailer is or trailers are being drawn by a locomotive, notwithstanding the brakes of the trailer or trailers can be operated by the driver of some other person on the locomotive, not less than one person on such trailer and not less than two persons on the last trailer in train, one of whom shall be the person required by the provisions of sub-clause (ii) of clause (a).

(2)

This, rule shall not apply-

(a)

to any trailer having not more than two wheels and not exceeding 771 kilograms in weight laden when used singly and not in a train with other trailers,

(b)

to the trailing half on an articulated vehicle,

(c)

to any trailer used solely for carrying water for the purposes of the drawing vehicle, when used singly and not in a train with other trailers,

(d)

to any agricultural or road-making or road repairing or road-cleaning implement drawn by a motor vehicle,

(e)

to any closed trailer specially constructed for any purpose and specifically exempted from any or all of the provisions of this rule by an order in writing made by the authority, to the extent so exempted,

(f)

to any trailer specially constructed or adopted from any purpose upon which an attendant cannot safely be carried.

220.

Distinguishing mark for trailers.

(a)

No person shall drive, or suffer or cause to be driven, in any public place any motor vehicle to which trailer is or trailers are attached unless there is exhibited on the back of trailer or of trailers or of the last trailer in train, as the case may be, a distinguishing mark in the form set out in the diagram contained in the fifth schedule to these rules in white on a background.

(b)

The mark shall be kept clean and unobscured and shall be so fixed to the trailer, that-

(i)

the letter on the mark is article and easily distinguishable from the rear of the trailer,

(ii)

the mark is either on the centre or to the right hand side or the back of the trailer, and

(iii)

no part thereof is at a height exceeding 122 centimeters, from ground.

(c)

This rule shall not apply to the case referred to in clauses (a), (b), (c), (d) and (f) of sub-rule (2) of Rule 219.

Special Rules for locomotives

221.

Attendant.

- Every locomotive shall carry not less than one attendant, being a competent person of over twenty years in age, in addition to the driver, to assist the driver in the management of the locomotive.

Chapter-IX Insurance of motor vehicles against third party risk

222.

Other authority under Section 147(4).

- The other authority to whom the Insurer is required to notify under sub-section (4) of Section 147, shall be the Registering Authority in whose jurisdiction the owner of the vehicle to which cover note relates, has the residence or place of business where the vehicle is normally kept.

223.

Production of certificate of Insurance under Section 159.

- The owner of a motor vehicle applying to pay tax on the vehicle or in the case of a vehicle which is exempted from payment of tax under the Act, when applying for exemption, shall forward with the application a valid certificate of insurance of sub-section (4) of Section 147 of Act relating to the vehicle and complying with the requirements of Chapter-XI of the Act and valid-

(a)

if the application is made before the commencement of the period for which tax is tendered, on the first day of that period, or

(b)

if the application is made during the period for which tax is tendered, on the date on which the application is made:

Provided that in case, the vehicle is a vehicle to which Section 146 does not apply, such evidence in Form 53 prescribed under the Central Motor Vehicles Rules, 1989, shall be forwarded with such application.

224.

Insurance certificate : requisite condition for issue of permit.

- No permit shall be issued in respect of any transport vehicle unless it is covered with a valid certificate of insurance and satisfied the requirements of Chapter-XI of Act.

225.

The power exercisable by a Police Officer under Section 158.

- Shall be exercisable also by any officer of the Transport Department not below the rank of an Assistant Motor Vehicle Inspector.

Chapter-X Claims Tribunals

226.

Procedure regarding compensation arising out of accident.

(1)

An application for compensation under sub-section (1) of Section 166 shall be made to the Claims Tribunal in Form Comp. A. and shall contain the particulars specified in that Form.

(2)

Every such application shall be sent to the Tribunal or to the Chairman in case the Tribunal consists of more than one member, by registered post or may be presented to such member of the staff of the Tribunal as the Tribunal, or as the case may be, the Chairman may authorise for the purposes and if so sent presented, shall, unless the Tribunal or Chairman otherwise, direct, be made in duplicate and shall be signed by the applicant.

(3)

There shall be appended to every such application a certificate which shall be signed by the applicant to the effect that the statement of facts contained in the application is to the best of his knowledge and belief, true.

(4)

If the claim in the application does not exceed Rs. 10,000/- then every such application shall be accompanied by all the documents and affidavits, for the proof of those documents and of all facts on which the applicant relies in support of his Claim, entered in a properly prepared list of documents and affidavits. The Claims Tribunal may not allow the applicant to rely in support of his claim on any documents or affidavits not filed alongwith application, unless he satisfied the Claims Tribunal that for good or sufficient cause, he was prevented from filing such documents or affidavits, as the case may be, alongwith his application.

(5)

There shall be appended to every such application, the following documents namely:-

(i)

First information report in respect of the accident.

(ii)

Medical Certificate of injuries or Post-mortem Report, or death certificate, and

(iii)

A certificate regarding ownership and insurance particulars of vehicles involved in the accident from the Regional Transport Officer or the Police Station, concerned.

227.

Fees.

(1)

An application for compensation under Rule 226, where a claim is for an amount not exceeding Rs. 9,999/- shall be accompanied by an amount of ten rupees:

Provided that if the person making the application succeeds he shall be liable to pay by way of fee an amount equal to the full fee leviable on the amount at which the claim is awarded by the Tribunal according to the following scale:-

(i)

If the amount at which the claim is awarded exceeds one hundred rupees, Ten rupees.

(ii)

If the amount of which the claim is awarded exceeds one hundred rupees, for every ten rupees or part thereof in excess of one hundred rupees, upto one thousand rupees, Rs. 1.

(iii)

If amount of which the claim is awarded exceeds one thousand rupees, for every one and twenty hundred rupees or part thereof in excess of five rupees. One thousand rupees, upto five hundred rupees, Six rupees and twenty five rupees.

(iv)

If the amount at which the claim is awarded exceeds five thousand rupees, for every two hundred and fifty rupees or part thereof, in excess of five thousand rupees, upto nine thousand nine hundred and ninety rupees. - Twenty rupees.

(2)

An application or compensation under Rule 226 in respect of a claim of an amount exceeding Rs. 9,999/- shall be accompanied by an amount equal to one-half of the fee leviable on the amount at which the claim is valued, in the application according to the following scales:-

(i)

If the amount at which the claim is valued does not exceed ten thousand-Rs. 750/-.

(ii)

If the amount at which the claim valued exceeds ten thousand rupees, for every five hundred rupees, or part thereof in excess of ten thousand rupees, upto twenty thousand rupees, Thirty five rupees.

(iii)

If the amount at which claim is valued exceeds twenty thousand rupees, for every one thousand rupees, or part thereof in excess of twenty thousand rupees, upto thirty thousand, Forty five rupees.

(iv)

If the amount at which the claim is valued exceeds thirty thousand rupees, for every two thousand rupees, or part thereof in excess of thirty thousand rupees upto fifty thousand rupees, Sixty rupees.

(v)

If the amount at which the claim is valued exceeds fifty thousand rupees for every five thousand rupees, or part thereof, in excess of fifty thousand rupees, upto one lakh of rupees, Eighty rupees.

(vi)

If the amount at which the claim is valued exceeds one lakh rupees for every ten thousand rupees, or part thereof, in excess of one lakh of rupees, subject to a maximum fee of fifteen thousand rupees, One hundred rupees:

Provided that if the person making the application succeeds, he shall be liable to make good the deficit if any, between the full fee payable on the amount at which the claim is awarded by the Tribunal according to the said scale and the fee already paid by him.

(3)

The fees payable under this Rule shall be paid in the form of Court fee stamps.

228.

Exercise of powers of Civil Court.

- The Claims Tribunal may exercise all the powers of a Civil Court save in so far as the same are not inconsistent with the provisions of the Motor Vehicles Act, 1988 and the Rules made thereunder.

229.

Diary of the proceedings.

- The Claims Tribunal shall maintain a brief diary of the proceedings on an application for compensation.

230.

Assistance of Experts.

(1)

The Claims Tribunal may for the purpose of adjudicating upon any claim for compensation other than a claim for compensation, under Section 140, choose not more than two person having technical or special knowledge with respect to any matter before the Tribunal for the purpose of assisting the Tribunal in the holding of the enquiry.

(2)

The expert shall perform such functions as the Tribunal may direct.

(3)

The remuneration, if any, to be paid to the expert shall in every case be determined by the Tribunal.

231.

Appearance of legal practitioner.

- The Claims Tribunal may, in its discretion, allow any party to appear before it through a legal practitioner.

232.

Examination of applicant.

- On receiving an application under Rule 226, the Claims Tribunal may examine the applicant upon oath, and the substance of such examination shall be reduced in writing and shall be signed by the member constituting the Tribunal or as the case may be, the Chairman.

233.

Summary dismissal of application.

(1)

The Claims Tribunal may, after considering the application and the statement, if any, of the applicant, recorded under Rule 232, summarily dismiss the application, if for reasons to be recorded, the Tribunal is of opinion that there are not sufficient grounds for proceeding therewith.

234.

Notice to opposite party.

- If the application is not dismissed under Rule 233, the Claims Tribunal shall send the insurer or the owner or the driver of the motor vehicle against whom the applicant claims relief (hereinafter referred to as 'opposite party'), a copy of the application and if the claim in the application does not exceed Rs. 10,000/- also copies of all the documents and affidavits, together with a list thereof filed by the applicant under sub-rule (4) of Rule 226, together with a notice of the data on which it shall dispose of the application, and may, in case in which the claim in the application exceeds Rs. 10,000/- call upon the parties to produce on that date any evidence which they may wish to tender.

235.

Examination of opposite party.

- The opposite party may and if so required by the Claims Tribunal, shall at or before the first hearing or within such time as the Claims Tribunal may permit, file a written statement dealing with the claim raised in the application, and any such written statement shall form part of the record, provided that in case of an application in which the claim does not exceed Rs. 10,000/- the opposite party shall, on the date mentioned in the notice sent to him, file his written statement dealing with the claim raised in the application together with all the documents and affidavits for the proof of those documents and of facts on which he relies in support of his defence of the application entered in a properly prepared list of documents, affidavits and shall give to the applicant copies of the written statement, documents and affidavits:

Provided further that the Claims Tribunal may not allow the opposite party to rely in support of his defence, on any document or affidavit not filed along with the written statement, unless he satisfies the Claims Tribunal that for good or sufficient cause he was prevented from filing such document or affidavit, as the case may be, alongwith his written statement.

(2)

If the opposite party contests the claim, the Claims Tribunal may, and if no written statement has been filed, shall proceed to examine him upon the claim and shall reduce the result of the examination in writing.

236.

Framing of issue.

- After considering any written statement and the result of any examination of the parties, the Claims Tribunal shall ascertain upon what material prepositions of fact or of law the parties are at variance and shall proceed to frame and record the issue upon which the right decision of the case appears to it to depend.

237.

Determination of issue.

- After framing the issues, the Claims Tribunal shall proceed to record evidence thereon which each party may desire to produce.

238.

Summoning of witnesses.

- If an application is presented by any party to the proceedings for citation of witnesses the Claims Tribunal shall, on payment of such expense and fees, if any, as it may determine, issue summons for the appearance of such witnesses, unless it considers that their appearance is not necessary for a just decision of the case.

239.

Recording of evidence.

- The member constituting the Claims Tribunal or the Chairman thereof shall make a brief memorandum of the substance of the evidence of every witness as examination of the witness proceeds and such memorandum shall be written and signed by the member or the Chairman thereof with his own hand and shall form part of the record:

Provided that if the member or the Chairman is prevented from making such memorandum, he shall record the reason of his inability to do so and shall cause such memorandum to be made in writing from his dictation and shall sign the same, and such memorandum shall form part of the record:

Provided further that the evidence of any meticulous witness shall be taken down as early as may be, word for word.

240.

Local inspection.

(1)

The Claims Tribunal may, at anytime during the course of an enquiry before it, visit the site at which the accident

occurred, for the purpose of making a local inspection or examining any person likely to be able to give information relevant to proceedings.

(2)

Any party or the representative of any party may accompany the Claims Tribunal for local inspection.

(3)

The Claims Tribunal, after making a local inspection shall note briefly in a memorandum any facts observed, and shall show the memorandum to any party who desires to see the same, and shall supply, any party, with a copy thereof.

(4)

The memorandum shall form part of the record.

241.

Summary examination.

(1)

The Claims Tribunal during a local inspection or at any other time, save at a formal hearing of a case pending before it, may examine summarily any person likely to be able to give information relating to such case's whether such persons has been or is to be called as a witness in the case or not, and whether any or all of the parties are present or not.

(2)

No oath shall be administered to a person examined under sub-rule (1).

242.

Recording of reasons for postponement.

- If the Claims Tribunal finds it impossible to dispose of an application at one hearing, it shall record the reasons which necessitate the postponement.

243.

Judgement.

- The Claims Tribunal, in passing orders, shall record concisely in a Judgement the findings on each of the issue framed and its reasons for such findings.

244.

Application of Code of Civil Procedure.

- In so far as these rules make no provision or make in sufficient provision, the Claims Tribunal shall follow the procedure laid down in the Code of Civil Procedure, 1908 (V of 1908) for the trial of suits.

245.

Savings.

- Notwithstanding anything contained in these rules--(a) in the case of claim under Section 140 and in the case of any other claim not exceeding an amount of Rs. 10,000/- the Claims Tribunal may, at its discretion, after hearing the arguments of the parties, or of their legal practitioners if allowed under Rule 231 and after examining the documents, and affidavits accompanying the application for compensation decide the claim by recording a concise judgement and, (b) in case of a claim exceeding an amount of Rs. 10,000/- but not exceeding Rs. 25,000/- the Claims Tribunal may, at its direction, follow the provisions of Order XIX of the Civil Procedure Code:

Provided that in case where cross-examination of the deponent who has filed an affidavit is permitted by it the Claims Tribunal shall follow the procedure prescribed in Rule 30 of the said Code.

246.

Procedure regarding compensation on the principle of no fault.

- Notwithstanding anything contained in Rules 226, 245 and 247 in the case of a claim for compensation under Chapter X of the Act, the procedures shall be as follows, namely:-

(1)

An application for compensation shall be made to the Claims Tribunal in Form CWF, in triplicate, and shall contain the particulars specified in that form.

(2)

The application shall be accompanied by a fee of *[ten thousand rupees in the form of Court fee stamps and the following documents, namely:-

(i)

First information report;

(ii)

Injury Certificate or post-mortem report in case of death:

(iii)

Hiership certificate in case of death;

(iv)

Certificate from the registering authority regarding ownership of the vehicles involved in the accident;

(v)

Particulars of insurance of the vehicle involved in the accident.

(3)

No fees shall be charged for process of application for compensation made under this Rule.

(4)

The Claims Tribunal shall dispose of the application for compensation within six weeks from the date of receipt of such application.

(5)

For the purpose of adjudicating and awarding the claim, the Claims Tribunal shall follow the procedure of summary trial as contained in Chapter-XXI of the Code of Criminal Procedure, 1973.

(6)

The Claims Tribunal shall not reject any application made under this rule on the ground of any technical defect, but shall give notice to the applicant and get the defect rectified.

(7)

For the purpose of adjudicating and according the claim, the Claims Tribunal shall obtain whatever information and document considered necessary by it from the police, medical and other authorities.

*[The Hindi Text mentions Rs. 10/- and English text of Notification No. 16817, dated 23.9.93 mentions Rs. 10,000/- This may be verified from the Department]

(8)

On receipt of the application for compensation, the Claims Tribunal shall give notice to the owner, and the insurer, if any, of the vehicle involved in the accident, directing them to appear on a date not later than ten days from the date of issue of such notice. The date so fixed for such appearance shall also be not later than fifteen days from the receipt of the application for compensation. The Claims Tribunal shall state in such notice that, in case they fail to appear on such appointed date, the Tribunal shall proceed ex parte on the presumption that they have no contention to make against the award of compensation.

(9)

The Claims Tribunal shall proceed with the application for compensation, on the basis of:-

(i)

First Information Report;

(ii)

Injury certificate or post-mortem report in case of death;

(iii)

Registration certificate of the motor vehicle involved in the accident;

(iv)

Cover note, certificate of insurance or the policy, relating to the insurance, of the vehicle against third party risks;

(v)

The nature of the treatment given by the medical officer who has treated the victim.

(10)

The Claims Tribunal, in passing the orders, shall make an award of compensation of twenty five thousand rupees in respect of death and Twelve thousand rupees in respect of permanent disablement, to be paid by the owner or insurer of the vehicle involved in the accident.

(11)

Where compensation is awarded to two or more persons, the Claims Tribunal shall also specify the amount payable to each of them.

(12)

The Claims Tribunal, in passing the orders, shall also direct the owner or insurer, of the vehicle involved in the accident, to pay the amount of compensation to the claimant within thirty days from the date of the said orders.

(13)

Where the Claims Tribunal thinks that the actual payment to the claimant is likely to take time because of the identification and the fixation of the legal heirs of the deceased the Claims Tribunal may call for the amount of compensation awarded, to be deposited with the Tribunal, and then proceed with the identification of the legal heirs for deciding the payment of compensation to each of the legal heirs.

247.

Receipt of compensation paid.

- Upon payment of compensation, the Claims Tribunal shall obtain a receipt from the claimant and shall forward such receipt to the concerned insurer of the owner of the vehicle, as the case may be, for the purpose of record.

248.

Enforcement of an award of Claims Tribunal.

- Subject to the provisions of Section 174, the Claims Tribunal shall, for the purpose of enforcement of its award, have all the powers of a Civil Court in the execution of a decree under the Code of Civil Procedure, 1908 (V of 1908) as if, the award were a decree for the payment of money passed by such Court in a civil suit.

249.

Manner of appeals.

(1)

Every appeal against the Claims Tribunal shall be preferred in the form of a memorandum signed by the appellant or an advocate or attorney of the High Court duly authorised in that behalf by the applicant and presented to the High Court or to such officer as it appoints in this behalf. The memorandum shall be accompanied by a copy of the award.

(2)

The memorandum shall set forth concisely and under distinct heads the grounds of objection to the award against which the appeal is preferred without any argument or narrative and such grounds shall be numbered consecutively.

(3)

Save as provided in sub-rules (1) and (2), the provisions of Order XLI and Order XXI in First Schedule to the Code of Civil Procedure, 1908 (V of 1908) shall mutatis mutandis apply to appeals preferred to the High Court under Section 173.

Chapter-XI Offences, Penalties and Procedure

250.

Temporary acknowledgement in lieu of driving licence.

(1)

Where police officer or an officer of the Motor Vehicles Department or other Competent Authorities has taken temporary possession of a driving licence from the holder, under the provisions of Section 206 or for any other purpose, such officer or authority, shall unless the driving licence has been suspended or cancelled, issue a temporary acknowledgement in Form L.Temp, to the holder, authorising such holder to drive such class of vehicles, during such period as may be specified therein; and during that period, the production of such temporary acknowledgement on demand, shall be deemed to be the production of the driving licence:

Provided that the officer or the authority by which the temporary acknowledgement was granted may, in his or its discretion, extend the period for which such acknowledgement is to remain valid until the driving licence is returned; but such acknowledgement shall not be extended beyond the expiry of the driving licence.

(2)

Until the driving licence has been returned to the holder, he shall not be entitled to drive a motor vehicle without being in possession of his driving licence, beyond the period specified in the temporary acknowledgement.

(3)

No fee shall be payable in respect of a temporary acknowledgement under this Rule.

251.

Temporary acknowledgement in lieu of certificate of registration.

(1)

Where a police officer or an officer of the Motor Vehicles Department or other Competent Authority has taken temporary

possession of a certificate of registration from the owner or the driver of a motor vehicle, under the provisions of Section 213 or for any other purpose, such officer or authority shall unless the certificate of registration has been suspended or cancelled, issue a temporary acknowledgement in Form C.Temp. to the owner or the driver, as the case may be, authorising such owner to use the vehicle during such period as may be specified therein and during that period the production of such temporary acknowledgement on demand shall be deemed to be the production of the certificate of registration:

Provided that the officer or the authority by which the temporary acknowledgement was granted may, in his or its discretion, extend the period for which such acknowledgement is to remain valid until, the certificate of registration is returned; but such acknowledgement shall not be extended beyond the expiry of the certificate of registration, if any or the certificate of fitness, as the case may be, in respect of such vehicle.

(2)

Until the certificate of registration has been returned to the owner, the vehicle concerned shall not be used beyond the period specified in the temporary acknowledgement.

(3)

No fee shall be payable in respect of a temporary acknowledgement under this Rule.

252.

Penalty for causing obstruction to free flow of traffic.

- Notwithstanding anything contained in Rule 193 and subject to the provisions of Section 127 and Section 201, any officer not below the rank of Sub-Inspector any Magistrate or any officer of the Motor Vehicles Department not below the rank of Executive Magistrate or Assistant Motor Vehicle Inspector/Enforcement Sub-Inspector may recover a penalty at the rate of fifty rupees per hour from a person who keeps a disabled vehicle on any public place in such a manner, so to cause impediment to the free flow of traffic.

Chapter-XII Miscellaneous

253.

Refund of fees.

(1)

If the State Transport Commissioner, the Regional Transport Officer, The Assistant Regional Transport Officer, as the case may be, is satisfied that the amount paid is in excess or that it is paid erroneously, towards fees under these rules or that it is required to be refunded under the provisions of the Central Motor Vehicles Rules, 1989, he shall issue to the person entitled to the refund of such amount a certificate in Form R.F.

(2)

Any person to whom a certificate in Form R.F. has been issued under sub-Rule (1) shall, on presentation of the certificate at the local Government Treasury, the State Bank of India or any other bank conducting the cash business of the State Government, within 90 days from the date of its issue or from the date of signification of any subsequent renewal of the certificate by the issuing authority, be entitled to receive the refund of the amount mentioned therein.

(3)

The authority mentioned in sub-rule (1) shall maintain a register of refund the fees and every amount for which a certificate in Form R.F. has been issued, shall be entered in such register.

254.

Powers of officers of Motor Vehicles Department.

- Any officer of the Motor Vehicles Department, of above the rank of an Assistant Inspector of Motor Vehicles shall exercise the powers under the provisions of Sections 114 (1), (2) and (3), 132(1), 133, 134(b), 136, 158(1) and (4), 206, 207 and 213, subject to the restrictions imposed therein.

255.

Performance of functions by officers of the Motor Vehicles Department.

- Notwithstanding anything contained in these Rules-

(a)

State Transport Commissioner, Joint Commissioner may at any time perform any of the functions of a Regional Transport Officer, or Assistant Regional Transport Officer or Assistant Motor Vehicles Inspector or Motor Vehicles Inspector under these Rules;

(b)

The Regional Transport Officer or the Deputy Commissioner/Director of Transport or the Assistant Regional Transport Officer or the Assistant Director of Transport may at any time perform any of the functions of Motor Vehicles Inspector or Assistant Motor Vehicles Inspector under these Rules;

(c)

The Assistant Motor Vehicle Inspector may at any time, if so required, by the Assistant Regional Transport Officer or the Regional Transport Officer, perform any of the functions of Motor Vehicle Inspector under these Rules.

256.

Uniform for the officers of the Motor Vehicles Department.

- The Uniform for the Deputy Director of Transport, Regional Transport Officer, Assistant Director of Transport, Motor Vehicles Inspector and Assistant Motor Vehicles Inspector shall be as follows:-

(1)

Khaki forage or khaki peaked cap or khaki turban, or berei in navy-blue colour. Each of these dress shall have a head badge;

(2)

Khaki shirt or khaki bush shirt or khaki tunic with khaki buttons;

(3)

Khaki trousers of police pattern;

(4)

Khaki whistle cord;

(5)

Whistle;

(6)

Police pattern cross belt or waist belt of same Brown leather;

(7)

Brown shoes;

(8)

Khaki stockings or socks;

(9)

The Deputy Director of Transport, the Regional Transport Officer to wear Ashok emblem, and the Assistant Director Transport or the Assistant Regional Transport Officer to wear three stars and a badge with letter 'GMVD' and a strip in red and blue colour on the shoulder strap;

(10)

The Motor Vehicle Inspector to wear three stars and the Assistant Motor Vehicles Inspector to wear two stars, and the badge with letters GMVD1, and a strip in Red and Blue colour, on the shoulder strap;

(11)

The epaulets, badges, head badges and strip shall be of design and description, illustrated in the Sixth Schedule.

257.

Repeal and Savings.

(1)

The Bihar Motor Vehicles Rules, 1940 are hereby repealed.

(2)

Notwithstanding the said repeal anything done or any action taken under any of the provisions of the Rules so repealed shall, in so far as it is not inconsistent with the provisions of these Rules, be deemed to have been done or taken under the corresponding provisions of these Rules.

258.

The Motor Vehicle (Transport) Department shall consist of the following classes of officers:-

(1)

State Transport Commissioner.

(2)

Additional State Transport Commissioner.

(3)

Joint State Transport Commissioner.

(4)

Deputy State Transport Commissioner.

(5)

Assistant State Transport Commissioner.

(6)

Regional Transport Officer.

(7)

Secretary, Regional Transport Authorities.

(8)

Dist. Transport Officer/Addl. District Transport Officer.

(9)

Motor Vehicles Inspector

(10)

Enforcement Officer.

(11)

Mobile Enforcement Inspector/Enforcement Sub-Inspector.

(12)

Mobile Squad Constable.

(13)

Other officers who may be appointed from time to time.

259.

The officers shall in addition to any other function prescribed under the Act, and these Rules, discharge the functions mentioned below against their respective name. -

(1)

The State Transport Commissioner-

(a)

He will be head of the Motor Vehicles Department and will deal with all matters of policy and correspond with the State Government and other Heads of Departments. He will also be the Chief Executive Officer of the State Transport Authority.

(b)

He will do correspondence with the Central Government and other State Governments subject to the general direction of the State Government

(c)

He will have general control over Superintendents of Police regarding control of traffic.

(d)

He will have general control over Regional Transport Officers, District Transport Officers, Motor Vehicles Inspectors and Enforcement Officers.

(e)

He will have general control over construction, equipment and maintenance of Motor Vehicles in accordance with the provisions of the Act and the Rules.

(f)

He will ensure co-ordination of motor transport with other modes of transport.

(g)

He will implement of Government's policy in respect of motor transport.

(2)

Additional/Joint/Deputy State Transport Commissioner-

(a)

Functions of Secretary, State Transport Authority under Chapter-IV of these Rules.

(b)

Such functions of the State Transport Commissioner as may be delegated by general or special order of the State

Transport Commissioner.

(3)

Assistant State Transport Commissioner (Technical) and State Inspector of Vehicles-

(a)

Dealing with and advice on all technical matters relating to motor vehicles.

(b)

Dealing with reports of the Inspectors of Motor Vehicles on vehicles, inspection etc.

(c)

Dealing with matters relating to vehicles belonging to the Transport Department.

(d)

Functions as Inspector of Motor Vehicles under Rules, 51, 52 and 54.

(4)

Regional Transport Officers-

(a)

Function of Secretaries of the Regional Transport Authorities under Chapter-IV of these rules.

(b)

Implementation of Government's policy in respect of Motor Transport.

(c)

Any other function which may be assigned by the State Transport Commissioner and/or State Government.

(5)

District/Additional Distt. Transport Officer-

(a)

To work as Licensing Authority under Chapters-II and III of the Rules to work Chapter-IV of the Rule.

(b)

Implementation of Government Policy relating to Motor Vehicles Transport.

(c)

General Control of Motor Vehicle Inspector/Enforcement Inspector/ Enforcement Sub-Inspector in discharge of their function in the respective districts.

(6)

Motor Vehicles Inspector-

(a)

Duties prescribed in Rule 253.

(b)

To assist the Regional Transport Officers, Distt.Transport Officer/Addl. Distt. Transport Officer in all technical matters relating to road transport.

(7)

Enforcement Officers-

(a)

General control over mobile squad inspectors and their constables in discharge of their functions.

(b)

Correspondence with District Magistrates, Superintendents of Police, Regional Transport Officers, etc. on all matters relating to Mobile squads.

(c)

Details of periodical report (including tour diaries, tour programmes, petrol and repair bills) of the Enforcement Inspector/Enforcement Sub-Inspectors and submission of statistical information to the State Transport Commissioner.

(d)

Dealing with accounts of the Mobile Squad Branch.

(e)

Liason with District Police and other Government Department.

(f)

Inspection of the Mobile Squads.

(g)

Any other duties that may be assigned by the State Transport Commissioner.

(8)

Enforcement Inspector/Enforcement Sub-Inspector-

(a)

General enforcement of the Act and these Rules.

(b)

Checking of (i) private carrier in respect of the goods they are allowed to carry, (ii) public carriers in respect of their area of operation, and (iii) all transport vehicles including stage carriages, contract carriages and carriages in respect of contravention of the rules and violation of condition of permits.

(c)

Detection of abuses in respect of the Motor Spirit Rationing Order, 1941.

(d)

Assisting the public with courtesy instruction.

(e)

Any other function that may be assigned by the State Transport Commissioner by general or special order.

(9)

Mobile Squad Constables-

(a)

Driving the vehicle of the squad.

(b)

Any other duties that may be assigned by the State Transport Commissioner, the Additional/Joint/Deputy State Transport Commissioner and the Regional Transport Officer shall exercise the powers, under Sections 133,158 and 206 of the Act, of Police Officer not below the rank of Sergeant or Sub-Inspector of Police authorised or empowered in that behalf:

Provided that the State Transport Commissioner, the Addl. Joint/Deputy Transport Commissioner shall exercise such powers throughout the State and the Regional Transport Officers shall exercise all the powers within their respective jurisdictions.

(10)

The Enforcement Officer and the Mobile Squad Inspectors shall exercise, within their jurisdiction to be determined by the State Transport Commissioner from time to time, all the powers under Act or the Rules, of a Police Officer not below the rank of Sergeant or Sub-Inspector of Police authorised or empowered in that behalf.

(11)

Mobile Squad Constables shall exercise the powers of a Police Officer under clause (a) of sub-section (1) of Section 132 of the Act.

The Enforcement Inspector/Enforcement Sub-Inspector and Mobile Squad Constables shall wear the uniform prescribed in the Sixth Schedule to these Rules.

First Schedule

Form-P.C.A.T.

[See Rule 4 (2)]

Application for preliminary test of competence of drive/test for grant of authorisation to drive transport vehicle

To,

The Licensing Authority,

Full name and address of the applicant

.....
.....

(1)

hereby apply-

(i)

for a preliminary test for learner's licence to drive

(ii)

for a test of competence to driveI hold learner's licence no.....issued by Licensing Authority.....

(iii)

for a test for grant of authorisation to driveI hold driving licence no.....issued by licensing authority.....

(2)

I herewith tender the fee of Rs.....

(3)

I also herewith tender the appropriate fee as specified in Rule 32 of the Central Motor Vehicles Rules, 1989, for the issue of a learner's licence/driving licence.

Signature of the applicant

Date.....

Place.....

*Strike out whichever is either not required or not applicable.

Form-D. L. CON.

(See Rule 8)

Communication under Chapter 11

To,

The Licensing Authority

Driving licence no.....issued by you in favour of has, with effect from.....been (i) endorsed to drive additional class of vehicles namely.....

(ii)

renewed upto.....

(iii)

revoked under Section 16.

(iv)

revoked under clause.....of sub-section (1) of Section 19.

(v)

endorsed with the order of disqualification under clause of subsection (1) of Section 19 for a period of.....

(vi)

endorsed with the Court's order of sentence of imprisonment for a period of.

(vii)

affixed with the recent photograph of the holder, the copy of which is attached.

(viii)

endorsed with the change of following address.....

(ix)

endorsed with the authorisation to drive a transport vehicle, namely...

Signature, designation and address of the Licensing Authority

Date:

Place:

* Strike out whichever is either not required or not applicable.

Form-L. L. D.

[See Rule 13(1)]

Application for a duplicate driving licence

To,

The Licensing Authority,

Full name and address of the applicant

.....

.....

1. I hereby report that the driving licence held by me is lost/destroyed/torn/defaced/mutilated in the following circumstances (such licence is to be enclosed unless it is lost or completely destroyed).

2. I hereby apply for a duplicate driving licence and tender the fee prescribed in Rule 6.

3. The particulars of such driving licence held by me is as follows:

Driving licence no.....issued for.....(here enter the class of motor vehicles) in the name of.....by the Licensing Authority.....onand expiring on.....

4. I herewith attach two copies of a recent photograph of myself.

5. I hereby declare that my driving licence is not impounded by any authority, and that there have been no./following endorsement by the court since the date of grant/renewal.

Signature of the applicant

Date:

Place:

Specimen signature of the applicant,

1.

2.

*Strike out whichever is either not required or not applicable,

Form-T. V. A.

[See Rule 18(14)]

Application for grant of authorisation to Drive a Transport Vehicle

To,

The Authorisation Authority

Full name and address of the applicant

.....

.....

1. I hereby apply for grant of authorisation to drive a Transport Vehicle of the following category:-

(a)

Public Transport Vehicle.

(b)

Goods carrier.

(c)

Educational Institution Vehicle.

(d)

Private Transport Vehicle.

(e)

Goods Carriers carrying goods dangerous for human life.

2. I hereby enclose my driving licence issued by the licencing authority which is valid upto.....

3. This application is submitted to the Licensing Authority for issuing additional driving licence in addition to my driving licence no.....which is valid upto

4. I am also enclosing:

(a)

The moral character certificate issued by.....dated.

(b)

Educational certificate from.....standard examination.

5. I hereby declare that the following charges have/have not been proved against me.

Signature of the applicant

Date:

Place:

(Strike off which does not apply)

Form-L.TEM.

[See Rule 17(a) of the Bihar Motor Vehicles Rules, 1992]

Temporary Authorisation to Drive

(1)

I have taken possession of the licence hereunder described:-

(i)

Name of holder.....

(ii)

Father's name.....

(iii)

Present address.....

(iv)

No. of licence.....

(v)

Issued by the Licensing Authority of.....

(vi)

Date of expiry.....19...

Entitling the holder to drive, as a paid employee vehicles of the following classes:-.....Authorising the holder to drive a public service vehicle in

(2)

The holder is hereby exempted from the obligation to produce his licence so long as he is driving in accordance with this authorisation.

(3)

This authorisation is valid until the.....day of.....19..... or until the licence has been returned, suspended or cancelled by competent authority, whichever is sooner.

Date:Place :

Signature and designation of authorised
signatory

The above authorisation is hereby extended up to the.....date of 19 on the same conditions.

Date:Place :

Signature and designation of authorised
signatory

Form-C. L.COM.

(See Rule 27)

Communication under Chapter-III

The Licensing Authority

Conductor's licence no.....issued by you in favour of..... has with effect from.....been, (i) renewed upto.....

(ii)

revoked under Section 32.

(iii)

endorsed with the order of disqualification under sub-section (1) of Section 34 for a period of.....

(iv)

affixed with the recent photograph of the holder, the copy of which is attached.

(v)

endorsed with the change of following address.

Date:Place :

Signature, designation and address of the Licensing
Authority

* Strike out whichever is either not required or not applicable.

Form-L.CON.A

[See Rule 30 (2)]

Application for grant of conductor's licence

To,

The Licensing Authority

Full name and address of the applicant

.....

.....

(1)

I hereby apply for the grant of a conductors licence to act as a conductor of stage carriage, within the State of Bihar.

2. I herewith attach-

(i)

the proof of age, the date of birth being.....

(ii)

the proof of educational qualification having passed.....standard examination.

(iii)

the Adult First Aid Certificate No.....issued by St. John Ambulance Association (India) Branch, and valid upto

(iv)

the report of moral character obtained from Police Station, dated.....

(v)

three copies of recent photograph.

(vi)

the medical certificate in Form M. C. Con.

3. I hereby declare-

(i)

that I have the following convictions/no convictions.

(ii)

that I have previously held a conductor's licence issued by.....not previously held a conductor's licence.

(iii)

that I am not disqualified for holding a conductor's licence.

4. I herewith tender the fee for test prescribed in Rule 26.

Date:

Place:

Signature of applicant

Specimen signature of applicant.

1.

2.

*Strike out whichever is either not required or not applicable.

Form-M.C.CON.

[See Rule 30(2)(c)]

Medical Certificate in respect of an applicant for a conductor's licence

Part-I (To be filled in by the applicant)

1. Full name of the applicant.....

2. Permanent address.....

3. Present address.....

4. Date of birth.....

I hereby declare that I am not suffering from any physical or mental disability which would interfere with the efficient performance of my duties as a conductor.

Signature of the applicant

Date:

Place:

Part-II (To be filled in by registered medical practitioner specified in clause (c) of sub-rule (2) of Rule 30 in the manner specified therein)

1. Name of the applicant

...

...

...

2. Date of birth

...
...
...

3. Identification marks

- (1)
(2)

Space for photograph of size 50 mm x 60 mm

Having regard to his duties as a conductor of a state carriage.

- (a)

Is the applicant to the best your judgement subject to epilepsy vertigo or any mental ailment likely to affect his performance?

Yes/No

- (b)

Does the applicant suffer from any heart or lung disorder which might interfere with his performance?

Yes/No

- (c)

Does the applicant suffer from a degree of deafness which would prevent him hearing the ordinary conversation with passengers?

Yes/No

- (d)

Has the applicant any deformity or loss or remembrance which would interfere with his performance?

Yes/No

- (e)

Does he show any evidence of being addicted to excessive use of alcohol, tobacco or drugs?

Yes/No

- (f)

Does he suffer from attacks of loss of consciousness from any cause?

Yes/No

- (g)

Does he suffer from infectious or contagious disease?

Yes/No

- (h)

Is he in your opinion generally fit, as regards

Yes/No

- (i) bodily health

- (ii) eye sight

- (iii) mental ability? and

- (iv) hearing ability?

I certify that I have personally examined the applicant he is medically to hold a conductor's licence/he is not fit to hold a conductor's licence for the following reasons.

Signature of the applicant(in presence of medical practitioner)

Signature of theregistered medical practitioner

Date:

Place:

Note:-(1) The registered medical practitioner shall also affix his signature over the photograph in such a manner that part of his signature is upon the photograph and part on the certificate.

(2)

The registered medical practitioner shall also mention his name and address, in brief, the name of his clinical and telephone number, if any, and his medical qualification and registration number, below his signature on the certificate.

*Strike out whichever is either not required or not applicable.

Form-L.CON.

[See Rule 30(4)]

Conductor's licence

Conductor's Licence No.

...

...

...

Name

...

...

...

Son/Daughter/Wife of

...

...

...

(Parmanent address)

...

...

...

(Present address)

...

...

...

Space for photograph of size 50 mm x 60mm

Specimen Signature of the licence holder

Date of birth..... Educational qualification.

The holder of this licence is licensed to act as a conductor
of a stage carriage

The licence is valid from.....

to.....

Date:

Place:

Signature, designation and address of the
Licensing Authority.

This licence is hereby renewed from.....

to.....

Date:

Signature, designation and address of the
Licensing Authority.

This licence is hereby renewed from.....

to.....

Date:

Signature, designation and address of the
Licensing Authority.

*Strike out whichever is either not required or not applicable.

Form-L.CON. R.

[See Rule 33 (1)]

Application for renewal of a conductor's licence

To,

The Licensing Authority,

Full name and address of the applicant

.....

.....

1. I hereby apply for renewal of my conductor's licence No.....issued by the licensing authority and which is expiring on/has expired on.....

2. I herewith attach

(i)

the Adult First Aid Certificate No.....issued by..... any valid upto.....

(ii)

the medical certificate in Form M. C. Con.....

3. I hereby declare-

(i)

that I have the following convictions/no convictions.....

(ii)

that I am not disqualified for holding a conductor's licence.

(iii)

that I am not subject to any disease or disability that is likely to hamper me in the performance of my duties as a conductor of a stage carriage.

4. I herewith tender the fees of Rs....

Signature of the applicant,

Date:

Place:

*Strike out whichever is either not required or not applicable.

Form-C.L.D.

[See Rule 35(i)]

Application for a duplicate conductor's licence

To,

The Licensing Authority

Full name and address of the applicant

.....

.....

1. I hereby report that the Conductor's licence held by me is lost/destroyed/ torn/mutilated/defaced in the following circumstances.....

(Such licence is to be enclosed unless it is lost or completely destroyed).

2. I hereby apply for duplicate conductor's licence and tender the fee prescribedin Rule 26.

3. The particulars of such conductor's licence held by me are as following:-

Conductor's licence No issued in the name of.by the Licensing Authority.....on and expiring on.....

4. I herewith attach two copies of recent photograph of myself.

5. I hereby declare that my driving licence is not impounded by any authority and there have been no endorsement by the Court since the date of grant of last renewal.....

Signature of the applicant

Date:

Place:

Specimen Signature of the applicant

1.

2.

*Strike out whichever is either not required or not applicable.

Form-R.CON.

(See Rule 63)

Communication under Chapter-IV

To,

The Registering Authority

.....

You are hereby requested to take a note of the following entry in the registration record of the Motor Vehicle No.....registered by you, in the name of.....

(i)

the certificate of registration is renewed for a period of five years w.e.f.

(ii)

the vehicle has been assigned a fresh registration markw.e.f.....you are further requested to forward the certified copy of the registration record of the vehicle.

(iii)

the following change of address is entered in the certificate of registration, w.e.f.....

(iv)

the ownership of the vehicle is transferred in the name of..... having his place of residence/business at.....w.e.f.....

(v)

A fresh registration mark is also assigned to this vehicle on account of such alterations.

(vi)

the certificate of registration was suspended for the reasons stated under clause (a)/(b) of sub-section (1) of Section 53, for a period of...

Date:Place:

Signature, designation and address of the registering authority.

*Strike out whichever is either not required or not applicable.

Form-C.F.A.

[See Rule 51 (2)]

Application for issue/renewal of certificate of fitness

To,

The Inspector of Motor Vehicles

Full name and address of the

applicant?.....?

The Authorised Testing

Station?.....

place where the vehicle is

ordinarily kept?.....

1. I hereby apply for the issue/renewal of a certificate of fitness in respect of Motor Vehicle No /unregistered vehicle, the particulars of which are specified below:-

Make

Type of vehicle

Chassis No.

Engine No.

Class of vehicle

2. I herewith attach for unregistered vehicle for registered vehicle

(1)

Sale certificate

(1)

Proof of current Tax/G. Tax Addl. Tax/Passenger tax

(2)

Initial certificate

(2)

Certificate of fitness ...

(3)

insurance certificate

(3)

Insurance certificate valid upto ...

(4)

Order of grant of permit

(4)

Permit No.

(5)

Proof of payment of compounding fee referred to in Section

85(5) in Certificate of registration.

(6)

A blue-print or a drawing showing actual dimensions of a motor vehicle, in case a chassis, on which the body of an omnibus is built by a person other than the manufacturer of such vehicle.

(7)

Proof of compounding fee referred to in Section 86.

3. I hereby declare that this vehicle is not in arrears of any tax or any compounding fee referred to in Section 86.

4. I hereby tender the fee prescribed in Rule 81 of the Central Motor Vehicles Rules, 1989.

Date:

Place:

Signature of the applicant

*Strike out whichever is either not required or not applicable.

Form-C.F.X.

[See Rule 51 (5)]

Cancellation of certificate of fitness and temporary authorisation for the removal of the motor vehicle

Motor Vehicle No.....make type..... Certificate of fitness issued by.....

In my opinion, the vehicle described above, fails to comply with provisions of the Act and the Rules made thereunder, because of the following defects/damages-

Therefore, I hereby cancel the certificate of fitness and authorise the removal of the said motor vehicle to for the purpose of repairs. The vehicle may be towed/driven at the maximum speed of kms. per hour. This temporary authorisation is valid upto. The vehicle may thereafter be produced for re-examination and restoration of certificate of fitness, before the inspector of Motor Vehicles after the vehicle is repaired.

Date:Place:

Signature, designation and address of authority.

To,

The Registering Authority,

I have cancelled the certificate of fitness of M .V. No.on.....and authorised the temporary use of the vehicle for its removal to-

Date:Place:

Signature, designation and address of authority.

Form-M.V.INS.

[See Rule 51 (7)]

Inspection Report of a Motor Vehicle

Part-I

A. Registration mark.....Date of first registration-Make-Model-Type. - and class of the vehicle-Chais No-Engine no.

- Wheel base-Seating capacity (including driver)-standees, if any----

B. Axles

C.Tyres-size-number-ply

.....

.....

Number of axles at front

?

Number of axles at rear

?

Total number of axles

?

Note:-Type of axle-whether single or tandem-should be stated.

D. Weight in kilograms

E. Overall dimensions in mm

Unladen weight

?

Width

?

Front axle

?

Weight

?

Rear axle weight

?

Height

?

Gross vehicle weight

?

Overhand

?

Part-II {

|

| F. Payment of Taxes

| G. Validity of documents

|

| M. V. Tax paid upto

| ?

| Permit/Permit order valid upto

| ?

|

| G.Taxpaid upto

| ?

| Insurance valid upto

| ?

|

| Pass.Tax paid upto

| ?

| Certificate of fitness expiring/expired on

| ?

|

| Addl.Tax paid upto

| ?

| -

| Details of fee paid under rule 81 of the Central Motor
Vehicles Rules, 1989

| ?

| }

Part-III H. Condition of important unit and systems

Note:- If the condition is satisfactory, state O. K. and if defective, state the defects in brief against such item.

1. Hand Brake
2. Foot Brake
3. Steering
4. Forward/Reverse Gears
5. Windscreen Glass
6. Windscreen Wipers
7. Direction Indicators
8. Stop Light
9. Reflectors
10. Head Light
11. Rear Light
12. Red Indicator Light
13. Head Light Dipper
14. Painting on Head Light
15. Top Lights
16. Parking lights
17. Level of smoke/pollutant emission
18. Speed governor
19. Speedometer
20. Horns
21. Silencer
22. Condition of Tyres
23. Painting of registration mark
24. Rear-view mirror
25. Springs/Shock absorber,
26. Mudguards/mudflaps
27. Fluorescent strips
28. Painting of particulars
29. Body and loading platform
30. Driver's compartment/door
31. Spare wheel and tools
32. Audio/Audio-visual device in public service vehicles.
33. Paint work
34. Uphostery
35. Cushions
36. Body dimensions
37. Means of communication with driver.
38. Driver's seat
39. Fixed grabber/hanger straps
40. Seating arrangements
41. Gangway
42. Head room

43. Doors
44. Steps
45. Grab tail
46. Floor board
47. Leakage of exhaust gas
48. Internal lighting
49. Ventilation
50. Protection
51. First- Aid-box
52. Taximeter
53. Device showing 'TAXI'
54. Any other observation regarding:-

Engine system

Fuel system

Cooling system

Transmission system

Steering system

Breaking system

Springing system

Chassis frame

(1)

Issue/Renewal of certificate of fitness is hereby refused on the following grounds.

(a)

the overall dimensions/the weights shown in part-1 exceed, the prescribed maximum.

(b)

The condition of the unit/system shown at item no.....in part-III i.e. defective

Date:Place:

Signature, name, designation and address of the Inspecting authority.

(2)

(a)

The applicant has produced the notification no.....datedissued by Government of Bihar/Central Government exempting the vehicle from the provisions regarding overall dimensions/weight.

(b)

The defects shown at item No.....in Part III have been rectified.

Date:Place:

Signature, name, designation and address of the Inspecting authority.

(3)

The motor vehicle complies with all the requirements of the Motor Vehicles Act, 1988 and the rules made thereafter. The certificate of fitness is hereby issued/ renewed for a period of.....month, valid from.....to.

Date:Place:

Signature, name, designation and address of the Inspecting authority.

Form-C. F. SUB.

[See Rule 52(1)]

Extension of validity of certificate of fitness for the use of Motor Vehicle when certificate of fitness expired. Motor Vehicle NoMake.....Type Certificate of fitness issued/renewed byand expired onin my opinion, the vehicle described above, is fit for use. The fee prescribed under Rule 44 has been paid.

Therefore, I hereby authorise the use of the, vehicle until the.....day of the month of of the year.....provided that it is forthwith removed with all reasonable despatch to the area of.....by whom the certificate of fitness can be renewed, and that the following conditions regarding the carriage of persons or goods and the speed of the vehicles are observed strictly.

Condition-

Date:Place:

Signature, designation and address of the authority.

To,

The Registering Authority-----

I have authorised the temporary use of the motor vehicle no.....for its removal to.....This temporary authorisation is valid upto-

Date:Place:

Signature, designation and address of the authority.

* Strike out whichever is either not required or not applicable.

Form-C. R.TEMP. A.

Application for temporary registration or its extension

To,

The Registering Authority

Full name and address of the purchaser/dealer

.....
.....

I/We hereby apply for a temporary registration/extension of temporary registration of an under registered motor vehicle of following description.

1. Make..... Model.....Type.....

2. Chassis No.....Engine No.....

3. This vehicle is to be permanently registered in the name of.....at the address.....

4. I have purchased this vehicle from

We are the dealers in such motor vehicles, and this vehicle is to be delivered to the person in whose name the vehicle is to be permanently registered.

5. This vehicle is a chassis on which the body is to be built at.....

The body building is not yet complete and temporary registration no.....is expiring/has expired on and extension of temporary registration is requested upto.....

6. I herewith tender the fee prescribed in Rule 44.

Date:

Place:

Signature of the purchaser/dealer

*Strike out whichever is either not required or not applicable.

Form-C. R.TEM.

[See Rule 46 (2)]

Certificate of Temporary Registration

Temporary registration mark

Make

Model

Type

Chassis No.

Engine No.

Full name and address of the owner

Date:Place:

Signature, designation and address of the
registering authority

The period of validity of this certificate of temporary registration is hereby extended upto.....

Date:Place:

Signature, designation and jurisdiction of
registering authority

*Strike out whichever is either not required or not applicable.

Form-B.T.I.

[See Rule 53(1)]

Notice of an alteration proposed to be made in a motor vehicle

To,

The Registering Authority,

.....

Full name and address of the applicant

Iregistered owner, hereby give you notice, that I propose to make the following alteration in my motor vehicle of following description.

MakeModel.....Type

Chassis No.....Engine No.....Regis. No.....

1.

2.

3.

Date:

Place:

Signature of registered owner

Note:- The proof of chassis is, acquired/to be acquired shall be accompanied with notice.....the notice is for replacement of chassis.

(For the use of the office of registering authority)

To,

From

.....

The Registering

Authority,.....

Ref: your notice dated:-

The approval sought by you is hereby accorded/refused making the following alteration in your motor vehicle no.....subject to the condition that it complies with all the requirements of Motor Vehicles Act, 1988 and the rules made thereunder.

1.

2.

3.

Date:Place:

Signature, designation and address of the
registering authority

*Strike out whichever is either not required or not applicable.

Form-B.T.A.

[See Rule 53 (2)]

Report of alteration made in a motor vehicle

To,

The Registering

Authority,.....

Full name and address of the registered

owner.....

.....

Ref: Your letter of approval dated:

1. In accordance with the approval granted/deemed to have been granted. I have carried out following alteration in my motor vehicle no.....

1.

2.

3.

2. I herewith produce the said motor vehicle, and its certificate of registration in order that particular of the alteration may be entered therein.

3. I herewith tender the prescribed in Rule 81 of the Central Motor Vehicles Rules, 1989.

Date:

Place:

Signature of registered owner

*Strike out whichever is either not required or not applicable.

Form-C. D.

[See Rule 54(1)]

Application for a duplicate certificate of temporary registration/fitness

To,

The Registering

Authority,.....

Full name and address of the applicant.....

1. hereby report that the certificate of temporary registration/fitness in respect of M.V. No..... is lost/destroyed/torn/defaced/mutilated in the following circumstances:

(Such certificate is to be enclosed unless it is lost or completely destroyed)

2. I hereby apply for a duplicate certificate and tender the fee prescribed in Rule 44.

3. The particulars of such certificate are as follows:

(a)

Temporary registration was issued in the name of.....for the motor vehicle of following description and was valid upto..... Make.....Model.....Type.....Chassis No.....Engine No.....

(b)

Certificate of fitness was issued/last renewed by.....and was valid from..... to.....

4. I hereby declare that the said certificate is not impounded by any authority and that it has not been either suspended or cancelled under the provision of the Act or rules made thereunder.

5. I herewith tender the fee prescribed in Rule 44.

Date:

Place:

Signature of the applicant

Form-P. ST. S. A.

[See Rule 73(1)(i)]

Application for a stage carriage permit

To,

The Regional Transport Authority,.....

Full name and residential and business address of the applicant.....

I hereby apply for permit in respect of a stage carriage service as hereunder set out:-

1. The area or areas within which the service is to be operated.....

2. The route or routes for which the permit is required.....

3. The total length of each route.....

4. The length of each route lying in home region.....

5. Maximum number of vehicles which will ply on each route.....

6. Minimum number of vehicles which will ply on each route.....

7. Maximum number of daily trips to be provided on each route.....

8. Minimum number of daily trips to be provided on each route.....

9. The details of time-table pertaining to each route.....

10. Average speed of the vehicle on which each time-table has been worked out.....
11. The details of parking places/stands and halting stations/halts to be used for picking up and setting down passengers.....
12. The rate of fare to be levied for the journey and the details of fare-table pertaining to each route.....
13. Total number of stage carriages for which the permit is required...
14. Number of vehicles out of such total number to be kept in reserve to maintain the service and to provide for special occasions.....
15. The type and seating capacity of each vehicle.....
16. The details of arrangement made/intended to be made for.....
 - (i) housing of the vehicles.....
 - (ii) maintenance of the vehicles.....
 - (iii) repairs of the vehicles....
 - (iv) storage and safe custody of the luggage.....
 - (v) comfort and convenience of the passengers...
17. The maximum weight of luggage to be carried per passenger...
18. The maximum weight of luggage per passenger that shall be carried free of charge.....
19. The rate of charge to be levied for passenger's luggage in excess of the free allowance.....
20. The details of particulars that shall be specified in the tickets to be issued to passengers.....
21. Particulars of any stage carriage permit held by the applicant within the State and the registration marks of all the vehicles covered by such permits.....
22. The details of any other permit held by the applicant within the State and the registration marks of all the vehicles covered by such permits...
23. The details of last three year's record of payment of taxes in respect of vehicles stated in item no. 21 above.....
24. The details of last three years record of suspension or cancellation of any permit stated in item no. 21 above.....
25. Whether the applicant intends to use a stage carriage as a goods carriage also, either when carrying passengers or not If yes, total weight and description of the goods to be carried in the vehicles...
26. Whether the applicant intends to use a stage carriage as a contract carriage also, and whether the applicant has applied for such use in Form P. Co. A If yes, the area or areas in which the vehicle is to be used as a contract carriage and the number of vehicles to be used as contract carriage.....
27. Whether the applicant is in possession of the vehicles If yes, the registration marks of such vehicles if no, the details of arrangements made/to be made to acquire the vehicles.....
28. Whether the applicant is a co-operative society/ex-servicemen/ company. if yes, the details and proof of such status.....
29. The operation of service to be commenced with effect from...
30. I hereby declare that the above statements are true, and that I have supplied all the informations and documents necessary to support the statements made in this application.
31. I also, attach herewith sketch of each route showing the stands, distance etc. alongwith route.
32. I hereby agree that the statements made by me in this application shall be the conditions of permit issued to me.

Date:

Place:

Signature of the applicant

Note:-Where the space is not sufficient the applicant should furnish the information item-wise on separate sheets, must sign each sheet, and must attach them with the application.

*Strike out whichever is either not required or not applicable.

Form-P. CO. S.A

[See Rule 73(1)(ii)]

Application for a permit in respect of stage carriage to be used as a contract carriage also

To,

The Regional Transport Authority,

Full name and address of the applicant.....

I hereby apply for a permit in respect of reserve stage carriage to be used as a contract carriage also, as hereunder set out:-

1. Particulars of stage carriage permit held by the applicant

(a)

Permit No.....

(b)

Issued by.....

(c)

Valid upto.....

(d)

Number of total vehicles covered by the permit.....

(e)

Number of total vehicles kept in reserve for the service of stage carriage and to provide for social occasions.....

2. The area or areas for which the permit is required.....

3. Particulars of any contract carriage permit held by the applicant within the State and registration mark of all the vehicles covered by such permit...

4. The details of past three year's record of suspension or cancellation of any permit in item nos. 1 and 3 above...

5. The details of last three year's record of suspension or cancellation of the applicant in item nos. 1 and 3 above...

6. Details of occasions when such stage carriage vehicle is proposed to be used as contract carriage vehicle.

7. The details of last three years "record of payment of taxes in respect of vehicles stated in item no. 5 above.

8. Whether the applicant is in possession of the vehicle... If yes, the registration mark of such vehicle, if no, the details of arrangement made/to be made to acquire the vehicle.

9. Whether the applicant is a co-operative society/ex-servicemen. If yes, the details and the proof of such status.

10. I hereby declare that the above statements are true and that I have supplied all the information and documents necessary to support the statements made in this application.

Date:

Place:

Signature of the applicant

Form-P. CO. P.A.

[See Rule 73(1)(iii)]

Application for a contract carriage permit

To,

The Regional Transport Authority.....Region

Full name and address of the applicant.....

I hereby apply for a permit in respect of a motor vehicle to be used as a contract carriage as hereunder set out:-

1. The area or areas for which the permit is required.....

2. The type and seating capacity made for.....

3. The details of arrangements made for.....

(i)

housing of the vehicle.....

(ii)

maintenance of the vehicle... „

(iii)

repair of the vehicle.....

4. Whether the applicant intends to carry goods in the vehicle, in addition to, or to the exclusion of, passengers if yes, total weight and description of the goods to be carried in the vehicles.....

5. Particulars of any contract carriage permit held by the applicant within the State and the registration marks of all the vehicles covered by such permits.....

6. The details of any other permit held by the applicant within the State and the registration marks of all the vehicles covered by such permits.....

7. The details of last three year's record of payment of taxes in respect of vehicles stated in item No. 5 above.....

8. The details of last three year's record of suspension or cancellation of any permit in items No. 5 above.....

9. Whether the applicant is in possession of the vehicle if yes, the registration mark of such vehicle If no, the detail of arrangement made/to be made to acquire the vehicle.

10. Whether the applicant is a co-operative society/ex-servicemen.....if yes, the details and the proof of such status.....

11. I hereby declare that the above statements are true, and that I have supplied all the informations and documents necessary to support the statements made in this application.

12. I hereby agree that the statements made by me in this application shall be the conditions of permit issued to me.

13. I herewith tender the fee prescribed in Rule 74.

Date:

Place:

Signature of the applicant

Note:-Where the space is not sufficient the applicant should furnish the informations item-wise on separate sheets, must sign each sheet and must attach them with the applications.

*Strike out whichever is either not required or not applicable.

Form-P. PR. S.A.

[See Rule 73(1)(iv)]

Application for a Private Service Vehicle Permit.

To,

The Regional Transport Authority,.....Region

Full name and address of the applicant.....

I hereby apply for a permit in respect of private service vehicle as hereunder set out:

1. The area or areas, the route or routes for which the permit is required.....

2. Type and seating capacity of the vehicle.....

3. The nature and the particulars of the trade or business carried on by the applicant.....

4. Whether such trade or business of the applicant is registered under any law for the time being in force if yes, the particulars of such registration.....

5. Detail classification of persons and the total number of persons under each such classification, to be provided with such vehicle, in connection with the trade or business of the applicant.....

6. Total number of persons under each such classification, employed by the applicant.....

7. The number and conditions under which such persons carried in such vehicles (The copy of such terms and conditions to be enclosed with the application)

8. Whether the applicant is in possession of the vehicles if yes, the registration mark of such vehicle... ..if no, the details of arrangements made (to be made to acquire the vehicle)

9. Particulars of any private service vehicle permit held by the applicant within the State and the registration marks of all the vehicles covered by such, permits...

10. The details of last three year's record of payment of taxes in respect of vehicles stated in item no. 9 above.....

11. The details of last three year's record of suspension or cancellation of any permit stated in item no. 9 above.....

12. The manner in which it is claimed that the purpose of carrying such persons, in connection with the trade or business carried on by the applicant will be served by such vehicle.....

13. I hereby declare that the above statements are true, and that I have supplied all the informations and documents necessary to support the statements made in this application.

14. I hereby agree that the statements made by me in this application shall be the conditions of permit issued to me.

15. I herewith tender the fee prescribed in Rule 74.

Date:

Place:

Signature of the applicant

Note:- Where the space is not sufficient, the applicant should furnish the informations, item-wise, on separate sheets, must sign each sheet, and must attach them with the application.

*Strike out whichever is either not required or not applicable.

Form-P. PU. C. A.

[See Rule 73(1)(v)]

To,

The Regional Transport Authority,.....Region

Full name and address of the applicant.....

I hereby apply for a permit in respect of a goods carriage as hereinunder set out:-

1. The area or areas for which the permit is required.....
2. The type and capacity of the vehicle.....
3. The nature of goods proposed to be carried.....
4. The rates to be charged by the applicant for carriage of goods .
5. The details of arrangements made/intended to be made for.....

(i)

housing of the vehicle.....

(ii)

maintenance of the vehicle.....

(iii)

repair of the vehicle....

6. Particulars of any permit in respect of goods carriages held by the applicant within the State and the registration mark of all the vehicles covered by such permits.

7. The details of last three year's record of payment of taxes in respect of vehicles stated in item No.6 above...

8. The details of last three year's record of suspension or cancellation of any permit stated in item No. 6 above.....

9. Whether the applicant is in possession of the vehicle if yes, the registration mark of such vehicle if no, the details of arrangements made/to be made to acquire the vehicle.....

10. Particulars of any agreement or arrangement, affecting in any material respect the provision (within the region of the Regional Transport Authority) of facilities for the transport of goods for hire or reward entered/or proposed to be entered by the applicant with any other person by whom such facilities are provided whether within or without the region.....

11. Particulars of any agent's licence issued to the applicant for the business of collecting, forwarding or distributing goods carried by goods carriages....

12. Whether the applicant intends to carry goods for or in connection with a trade or business carried on by the applicant if yes, the nature of his trade or business and the nature of goods to be carried....

13. I hereby declare that the above statements are true, and that I have supplied all the informations and documents necessary to support the statements made in this application.

14. I hereby agree that the statements made by me in this application shall be the conditions of permit issued to me.

15. I herewith tender the fee prescribed in Rule 74.

Date:

Place:

Signature of the applicant

Note:-Where the space is not sufficient, the applicant should furnish the informations, item-wise, on separate sheets, must sign each sheet, and must attach them with the application.

*Strike out whichever is either not required or not applicable.

Form-P.TEM. A

[See Rule 73(1)(vi)]

Application for a Temporary Permit

To,

The Regional Transport Authority,.....Region

Full name and address of the applicant.....

I hereby apply for a temporary permit in respect of a transport vehicle owned by me, as hereunder set out:.....

1. The reasons/purpose for which, permit is required.....
2. The route or routes or the area or areas for which the permit is required.....
3. The period for which the permit is required From To.....
4. Registration mark of the transport vehicle

Make

Type

Chassis No.

Engine No.

U.W.

G.V.W.

Seating capacity (including driver)

5. Particulars in respect of this vehicle to be furnished by the applicant.....

(i)

Primary permit no issued by. valid upto.....

(ii)

Tax paid upto....Goods tax paid upto.....Additional tax paid upto Pass Tax paid upto.....

(iii)

C.F. valid upto Insurance valid upto.....

6. The details of last one year's record of suspension of primary permit stated in item No. 5 above.....

7. Particulars of payment of taxes, made to other States.....

8. I hereby declare that the above statements are true and that I have supplied all the informations required by this application.

9. I hereby agree that the statements made by me in this application shall be the conditions of temporary permit issued to me.

10. I herewith tender the fee prescribed in Rule 74.

Date:

Place:

Signature of the applicant

*Strike out whichever is either not required or not applicable.

Form-P.CO.SP.A.

[See Rule 73(1)(vii)]

Application for a Special Permit

To,

The Regional Transport Authority,.....Region

Full name and address of the applicant.....

I herewith apply for a special permit in respect of stage carriage/contract carriage/tourist vehicle owned by me as hereunder set out:-

1. The purpose for which the permit is required...
2. The route or routes or the area or areas for which the permit is required (The itinerary to be enclosed).

3. The period for which the permit is required From....to.....
 4. Registration mark of the stage carriage/contract carriage/tourist vehicle Make Type....Chassis No Engine No.....
(seating capacity including driver).....
 5. Particulars in respect of this vehicle to be furnished by the applicant.
 - (i)
Primary permit no issued by valid upto.....
 - (ii)
Tax paid upto Additional tax paid upto.....
 - (iii)
C.F. valid upto insurance valid upto.....
 6. Full name and address of the person who has engaged the vehicle for his party.....
 7. Whether the applicant has entered into a contract with that person to carry his party in the vehicle if yes, two copies of such contract to be enclosed with application.
 8. I hereby attach two copies of list of passengers in the form appended to clause (d) of sub-rule (3) of Rule 76.
 9. The details of last one year's record of suspension of substantive permit stated in item No. 5 above.....
 10. Particulars of payment of taxes, made to other States.....
 11. I hereby declare that the above statements are true, and that I have supplied all the informations and documents necessary to support the statements made in this application.
 12. I hereby agree that the statements made by me in this application shall be the conditions of special permit issued to me.
 13. I herewith tender the fee prescribed in Rule 74.
- Date:
- Place:
- Signature of the applicant,
- *Strike out whichever is either not required or not applicable.
- Form-P.C.S.A.
- [See Rule 73(1) (viii)]
- Application for a countersignature of a permit
- To,
- The State/Regional Transport Authority, Bihar State.....Region.....
- Full name and address of the applicant.....
-
- I hereby apply for a countersignature of a permit in respect of stage carriage/ contract carriage/goods carriage/private service vehicle as hereinafter set out:...
1. The primary permit No.....issued by.....Transport Authority State/Region for the route or routes or the area or areas for motor vehicle No and valid upto
 2. The particulars of abovesaid motor vehicle:
Make Model Type of vehicle Chassis No Engine No.....Seating capacity (including driver/conductor/attendant)....U.W G.V.W. Pay load.....
 3. Nature of goods to be carried, if any.....
 4. The route or routes or the area or areas for which the countersignature of the permit is required.....
 5. I herewith attach the primary permit stated at item No. 1 and the certificate of registration of a motor vehicle stated at item No.2, above.
 6. I hereby declare that the above statements are true, and that I have supplied all the informations and documents necessary to support the statements made in this application.
 7. I hereby agree that the statements made by me in this application shall be the condition of the countersignature issued to me.
 8. I herewith tender the fee prescribed in Rule 74.
- Date:

Place

Signature of the applicant

*Strike out whichever is either not required or not applicable.

Form-L.A-G.A.

[See Rule 73(2)(i)]

Application for an agent's licence for sale of tickets.

To,

The Regional Transport Authority,.....Region.

Full name and address of the applicant.....

I hereby apply for an agent's licence for sale of tickets for travel by public service vehicles, as hereinafter set out:.....

1. Date of birth

2. Education qualification.

3. I hereby declare:-

(i)

that I am not less than 20 years of age.

(ii)

that I have previously held an agent's licence issued by. /not previously held an agent's licence.

(iii)

that the agent's licence previously held by me was not/was suspended/ cancelled.

(iv)

that I shall furnish a security in cash if the licence is granted to me.

4. I herewith attach the proof of age, educational qualification and three clear copies of a recent photograph of myself.

5. I hereby declare that the above statements are true, and that I have supplied all the informations and documents necessary to support the statements made in this application.

6. I herewith tender the fee prescribed in Rule 74.

Date:

Place:

Signature of the applicant

Note:-Where the space is not sufficient, the applicant should furnish this informations, item-wise on separate sheets, must sign each sheet, and must attach them with the application.

*Strike out whichever is either not required or not applicable.

Form-L.A.G. G.C.A.

[See Rule 73(2)(ii)]

Application for an agent's licence for collecting, forwarding or distributing of goods.

To,

The Regional Transport Authority,.....Region.

Full name and residential and business address of the applicant.....

I hereby apply for an agent's licence for collecting, forwarding or distributing goods carried by goods carriage, as hereinafter set out:.....

1. Experience in the management or transport business.

2. Place where applicant proposed to engage as agent (Name of the town/city with detailed address).....

3. Places where the applicant proposes to establish his branch office (Name of the town/city with detailed address).....

4. Nature and extent of financial resources of the applicant:

5. Particulars of goods carriages:

Registration marks

(i)

Owned by the applicant:

(ii)

Under the control:

6. Full description of each place where the business is to be carried on:-

(a)

Location, open area, covered area for office and storage of goods (state full details like house or godown numbers, lane, byelane, main road and postal delivery district).

(b)

(i)

Area available for parking vehicles while being loaded.....

(ii)

Area available for parking vehicle waiting for loading or unloading...

7. The details of arrangements made/intended to be made for:-

(i)

housing of the vehicles.....

(ii)

maintenance of the vehicles.....

(iii)

repair of the vehicles... ..

(iv)

loading and unloading of the vehicles.....

(v)

weighing devices.....

8. Any other particulars.

9. I hereby declare:

(i)

that I have previously held an agent's licence issued by Regional Transport Authority/not previously held an agent's licence.

(ii)

that the agent's licence previously held by me was not suspended/ cancelled.

(iii)

that I shall furnish a security in cash if the licence is granted to me.

10. I hereby declare that the above statements are true and that I have supplied all informations and documents necessary to support the statements made in this application.

11. I herewith tender the fee prescribed in Rule 74.

Date:

Place:

Signature of the applicant

Note:- Where the space is not sufficient, the applicant should furnish the informations, item-wise, on separate sheets, must sign each sheet, and must attach them with the application.

*Strike out whichever is either not required or not applicable.

Form-A. R.T.

[See Rule 102(3)(f)]

Record of turnover for the period ending 31st Dec.

1. Principal Licence No....issued by Regional Transport Authority. Region, valid upto Total number of supplementary/licences held for branch offices at.....

2. Full name and address of the holder.....

3. Total number of goods carriages.....

(i)

owned.....

(ii)

under control....

4. Total staff engaged at each office including the staff to run the business and the vehicles.....
5. Total number of vehicles engaged for local delivery at each office.

Particulars

Jan. Feb. Mar. Apr.

May. Jun. Jul. Aug. Sep.

Oct. Nov. Dec.

Remarks

1.
Total running from the station (A)
2.
Total running from the station (B)
3.
Total load tonnes carried (A)
4.
Total load tonnes carried (B)
5.
Total load brought to the station (A)
6.
Total load brought to the station (B)
7.
Number of idle vehicle days (A)
8.
Number of idle vehicle days (B)
9.
Number of serious accidents (A)
10.
Number of serious accidents (B)
11.
Value of claims received (A)
12.
Value of claims received (B)
13.
Total of freight received (A)
14.
Total of freight received (B)
15.
Total of service charges (A)
16.
Total of service charges (B)
17.
Total of commission received (B)

The intimation of consignments despatched, the distance over which they are despatched, the freight and service charges received shall be recorded in every office to furnish information at items 1, 2, 3 and 4. Also record of weight of goods received at and distributed by every office from other offices will be kept from which information at items 5 and 6 can be furnished. The principal office will be receiving intimation for the rest of items by way of returns and from which the information can be complied.

Form-P.C.S.R.

[See Rule 73(3)(i)]

Application for renewal of a permit or a countersignature

To,
The State/Regional Transport Authority, Bihar State.....Region.

The Bihar Motor Vehicles Rules, 1992

Full name and address of the applicant.....

I hereby apply for the renewal of the permit/countersignature no. held by me and expiring on as hereunder set out.

1. Particulars of any permit/countersignature held by the applicant within the State and the registration mark of all the vehicles covered by such permit.....

2. The details of last three year's record of payment of taxes in respect of vehicles stated in item no.1 above.....

3. The details of last three year's record of suspension or cancellation of any permit stated in item no.1 above.....

4. The details of payment of taxes and validity of documents in respect of vehicles covered by this permit/countersignature.

Payment of taxes.....

validity of documents.....

M. V. Tax paid upto.....

Insurance valid upto.....

G.Tax paid upto.....

Certificate of fitness valid upto.....

Pass, tax paid upto.....

Addl. tax paid upto.....

5. Whether the agreements or arrangements which were made as a requirement for the grant of this permit have been continued without any change if changed or discontinued the detail reasons for such change or discontinuance.....

6. Whether the vehicle/vehicles covered by this permit/countersignature is/are held under any hire-purchase/lease/hypothecation agreement if yes, no objection certificates from the financier must be attached.

7. Particulars of registration of the vehicle covered by this permit/countersignature Registration mark Make Model Date of initial registration.....

8. I hereby declare that the above statements are true, and that I have supplied all the informations and documents necessary to support the statements made in this application.

Date:

Place:

Signature of the applicant

Note:-Where the space is not sufficient, the applicant should furnish the informations, item-wise, on separate sheets, must sign each sheet, and must attach them with the application.

*Strike out whichever is either not required or not applicable.

Form-L. AG. R

[See Rule 73(3) (ii)]

Application for renewal of an agent's licence for sale of tickets

To,

The Regional Transport Authority,.....Region.

Full name and address of the applicant.....

I hereby apply for renewal of my agent's licence no.....issued by the Regional Transport Authority Region, and which is expiring/has expired on.....

1. Particulars of any such other licence held by the applicant within the State...

2. Particulars of suspension of this licence or forfeiture of security, if any.....

3. I hereby declare the cash security already furnished by me is as per the requirement for the grant of licence.

4. I hereby declare that the above statements are true.

5. I herewith tender the fee prescribed in Rule 74.

Date:

Place:

Signature of the applicant

*Strike out whichever is either not required or not applicable.

Form-L. AG. G.C.A.

[See Rule 73(3)(iii)]

Application for renewal of an agent's licence for collecting forwarding or distributing goods

To,

The Regional Transport Authority,.....Region.

Full name and address of the applicant.....

I hereby apply for renewal of my Principal Licence and Supplementary Licence held by me, as hereunder set out:

1. Principal Licence No issued by the Regional Transport Authority.....Region, and which expiring/has expired on.
2. Particulars of all the supplementary licences held by the applicant.
3. The details of last three year's record of payment of taxes in respect of vehicles owned by the applicant and of vehicles under his control.....
4. The details of any last three year's record of suspension or cancellation of any licence.....
5. The details of last three year's record of forfeiture of security...
6. Whether the arrangements which were made as a requirement for the grant of principal or any supplementary licence have been continued without any change... ..if changed or discontinued, the detailed reasons for such change or discontinuance...
7. Whether proper record in Form A.R.T. appended to the Bihar Motor Vehicles Rules has been maintained for the period of currency of the licence at principal place of business as well as at each branch office.....
8. I hereby declare that the statements are true, and that I have supplied all the informations and documents necessary to support the statements made in this application.
9. I herewith tender the fee prescribed in Rule 74 for renewal of principal and supplementary licence.

Date:

Place:

Signature of the applicant

Note:- Where the space is not sufficient, the applicant should furnish the informations, item-wise on separate sheets, must sign each sheet and must attach them with the application.

*Strike out whichever is either not required or not applicable,

Form-P.C.S.D.

[See Rule 73(4) (i)]

Application for a duplicate permit/countersignature

To,

State/Regional Transport Authority,Bihar State.....Region.

Full name and address of the applicant.....

1. I hereby report that the permit/countersignature No in respect of stage carriage/contract carriage/private service vehicle/goods carriage/tourist vehicle is lost/destroyed/torn/defaced/mutilated in the following circumstances.....

(Such permit/countersignature is to be enclosed unless it is lost or completely destroyed)

2. I hereby apply for a duplicate permit/countersignature and tender the fee prescribed in Rule 71.

3. The particulars of such permit/countersignature are as follows:-

(a)

Permit/Countersignature No issued by.....valid....from.....to....

(b)

Type of permit.....

(c)

Registration mark/marks of the vehicle/vehicles covered by the permit...

4. I hereby declare that the said permit/countersignature is not impounded by any authority, and that it has not been either suspended or cancelled under the provisions of the Act or rules made thereunder.

Date:

Place:

Signature of the applicant.

*Strike out whichever is either not required or not applicable.

Form-L.AG. D.

[See Rule 73 (4) (ii)]

Application for a duplicate Agent's licence.

To,

The State/Regional Transport Authority, Bihar State.....Region.

Full name and address of the applicant.....

1. I hereby report that the agent's licence No.....

Principal licence No Supplementary licence No for sale of tickets.....collecting, forwarding or distributing goods issued by the Regional Transport Authority.....Region and valid uptois lost/destroyed/torn/defaced/mutilated in the following circumstances,

(Such licence is to be enclosed unless it is lost or completely destroyed)

2. I hereby apply for a duplicate agent's licence and tender the fee prescribed in Rule 74.

3. I hereby declare that the said licence is not impounded by any authority, and that it has not been either suspended or cancelled under the provisions of the Act or rules made thereunder.

Date:

Place:

Signature of the applicant

*Strike out whichever is either not required or not applicable.

Form-M.V. REP.A

[See Rule 73(5)(i)]

Application for a replacement of a vehicle covered by permit/countersignature.

To,

The State/Regional Transport Authority, Bihar State.....Region.

Full name and address of the applicant.....

I hereby apply for a replacement of the vehicle covered by the permit/countersignature held by me, as hereunder set out:.....

1. Particulars of permit/countersignature held by the applicant:-

(a)

Permit/countersignature No... ..

(b)

Issued by.....

(c)

Valid from....to....

(d)

Type of permit.....

2. Particulars of registration of present vehicle covered by such permit/ countersignature and of replacer vehicle.

Present vehicle Replacer vehicle

(i)

Registration mark

(ii)

Make

(iii)

Date of initial registration

(iv)

Type of vehicle

(v)

Seating capacity/G .V.W.

(vi)

Validity of C.F.

(vii)

Validity of Insurance.

3. Whether the present vehicle is held under a hire purchase/lease/hypothecation agreement if yes, no objection certificate from the financier must be attached...

4. Whether the applicant is in possession of replacer vehicle if yes, the certificate of registration must be attached. If no, the details of arrangement made/to be made to acquire the vehicle.....

5. Reasons for replacement.....

6. I hereby declare that the above statements are true, and that I have supplied all the informations and documents necessary to support the statements made in this application.

7. I herewith tender the fee prescribed in Rule 74.

Date:

Place:

Signature of the applicant

Note:-Where the space is not sufficient, the applicant should furnish the informations, item-wise, on separate sheets, must sign each sheet, and must attach them with the application.

*Strike out whichever is either not required or not applicable.

Form-TR. P.A.

[See Rule 73(5)(ii)]

Application for transfer of a permit/countersignature

To,

The State/Regional Transport Authority,Bihar State.....Region.

Full name and address of the applicant/applicants.....

I/We hereby apply for transfer of the permit/countersignature as hereinunder set out:-

1. Particulars of permits/countersignature:

(a)

Permit/Countersignature No... ..

(b)

Issued by.....

(c)

Valid from to.....

(d)

Type of permit.....

(e)

Name of the permit holder.....

(f)

Registration mark of the vehicle covered by the permit/ countersignature.....

2. Name of transferee.....

3. Reasons for transfer.....

4. Whether any premium, payment or other consideration arising out of the transfer, is to pass or has passed between the applicants if yes, the nature and amount of any such premium, payment or other consideration.....

5. Whether any agreement is made between the applicants for transfer of the permit if yes, the details of such agreement.....

6. In case the transfer is required upon death of the permit holder.....

(a)

Date on which the permit holder died.....

(b)

Relation between the applicant and deceased permit holder.....

7. In case the transfer of a countersignature is required, whether the primary permit is transferred in the name of the applicant... ..if yes, the date on which such transfer is effected.....

8. Whether the vehicle covered by the permit is held under a hire-purchase/ lease/hypothecation agreement....if yes, no objection certificate from the financier must be attached.

9. I/We declare that the above statements are true, and that I/We have supplied all the informations and documents necessary to support the statements made in this application.

10. I herewith tender the fee prescribed in Rule 74.

Date:

Place:

Signature of transferee

Signature of transferor

Note:-Where the space is not sufficient, the applicant should furnish the information item-wise, on separate sheets, must sign each sheet, and must attach them with the application.

*Strike out whichever is either not required or not applicable.

Form-C. AD. A.

[See Rule 73(5)(iii)]

Application for recording change of address

To,

The State/Regional Transport Authority,Bihar State.....Region.

Full name and present address of the applicant.....

I hereby apply for recording change of residential/business address in the permit/countersignature, as hereunder set out:

1. Particulars of permit/countersignature:

(a)

Permit/Countersignature No.....

(b)

Valid from to.....

(c)

Registration mark

2. Address to be recorded:

(a)

Residential address:

(b)

Business address:

3. Whether such change is recorded in certificate of registration of the vehicle if yes, certificate of registration must be attached.

4. I hereby declare that the above statements are true, and that I have supplied all the informations and documents necessary to support the statements made in this application.

5. I herewith tender the fee prescribed in Rule 74.

Date:

Place:

Signature of the applicant

*Strike out whichever is either not required or not applicable.

Form-P.S T.S.

[See Rule 73(7)(i)]

Stage Carriage Permit.

The Regional Transport Authority,.....Region.

Permit No.

1. Full name of the holder....

2. Full residential address....

3. Full business address.....

4. The route or routes for which the permit is valid.....

5. Total number of stage carriages covered by this permit.....

6. Number of vehicles out of such total number to be kept in reserve to maintain the carriage and provide for special occasions

7. Maximum and minimum daily trips on each route.....

8. Maximum and minimum rate of fares.....

9. The stage carriage may be used as a goods carriage within the area or areas and subject to conditions hereinunder specified-

10. The reserve stage carriage may be used as a contract carriage within the area or areas and subject to conditions specified in P.Co.S. Permit No issued in respect of this stage carriage permit.

11. Validity of permit from., ...to..

12. Particulars of registration of each stage carriage:-

(a)

Registration mark.....

(b)

Make.....

(c)

Model.....

(d)

Chassis No.....

(e)

Engine No.....

(f)

Seating capacity (including driver/conductor).....

(g)

Number of standees allowed.....

13. Hire purchase/lease/hypothecation agreement with in respect of M.V. Nos.....

14. Conditions:-

(a)

This permit is subject to the conditions laid down in Section 84 of the Act and in sub-rules (1) and (6) of Rule 76 of the Bihar Motor Vehicles Rules, 1992.

(b)

This permit is also subject to conditions that:-

(i)

the approved fare-tables and time-tables of the routes shall be exhibited in the vehicles and on the parking places/stands and halts specified in the application for the permit.

(ii)

the arrangements specified in the application for the permit, for housing, maintenance and repairs of the vehicles, and for storage and safe custody of luggage and goods will be maintained.

(iii)

the records and returns shall be submitted to the Transport Authority as specified by it.

(c)

This permit is further subject to other conditions attached to the permit.

(d)

The Regional Transport Authority may, after giving notice of not less than one month.

(i)

vary the conditions of the permit;

(ii)

attach to the permit further conditions.

Date:

Place:

Seal:

Signature and designation of authorised signatory

The Regional Transport Authority. Region.

Extension

Under the provisions of Rule 78, the area of validity of this permit is further extended in the following contiguous regions subject to the conditions set out below:-

Region

Route/Area

Conditions

Date:

Place:

Seal:

The Regional Transport

Authority, ?.....Region.

Signature and designation of authorised signatory

Countersignature

This permit is hereby countersigned with effect from and the countersignature No has been issued.

Date:

Place:

Seal:

The Regional Transport

Authority, ?.....Region.

Signature and designation of authorised signatory

Renewal

This permit is hereby renewed upto with effect from.....

Date:

Place:

Seal:

The Regional Transport

Authority, ?.....Region.

Signature and designation of authorised signatory

* Strike out whichever is either not required or not applicable.

Form-P.CO.S.

[See Rule 73(7)(ii)]

Permit in respect of a reserve stage carriage to be used as a contract carriage

The Regional Transport Authority,.....Region.

Permit No.

1. Full name of the holder.....

2. Full residential address....

3. Full business address.....

4. The area or areas for which the permit is valid.

5. Total number of reserve stage carriages covered by this permit.....

6. The type and seating capacity of the vehicle.....

7. Particulars of stage carriage permit held by the holder:..... Permit no expiring on.....

8. Validity of permit from to.....

9. Conditions:.....

(a)

This permit is subject to the conditions laid down in Section 84 of the Act, and in sub-rules (3) and (6) of Rule 76 of the Bihar Motor Vehicles Rules, 1989

(b)

This permit is further subject to other conditions attached to the permit.

(c)

The Regional Transport Authority may, after giving notice of not less than one month.....

(i)

vary the conditions of the permit;

(ii)

attach to the permit further conditions.

Date:Place:Seal:

Signature and designation of authorised signatory

The Regional Transport Authority,.....Region.

*Strike out whichever is either not required or not applicable.

Extension

Under the provisions of Rule 78, the area of validity of the permit is further extended in the following, contiguous region subject to the conditions set out below. -

Region

Route/Area

Conditions

Date:

Place:

Seal:

The Regional Transport

Authority,?.....Region.

Signature and designation of authorised signatory

Countersignature

This permit is hereby countersigned with effect from and the countersignature.....has been issued.

Date:

Place:

Seal:

The Regional Transport

Authority,?.....Region.

Signature and designation of authorised signatory

Renewal

This permit is hereby renewed upto from with effect from.....

Date:

Place:

Seal:

The Regional Transport

Authority,?.....Region.

Signature and designation of authorised signatory

*Strike out whichever is either not required or not applicable.

Form-P.CO.P.

[See Rule 73(7)(iii)]

Contract Carriage Permit

The Regional Transport Authority,.....Region.

Permit No.

1. Full name of the holder.....

2. Full residential address.....

3. Full business address.....
4. Registration mark of the contract carriage.....
5. Make Model Date of first registration.....
6. Chassis no Engine no.....
7. Type of vehicle.....
- Seating capacity (including driver/attendant).....
8. Hire-purchase/lease/hypothecation agreement with.....
9. Area for which the permit is valid
10. Validity of permit from to.....
11. Conditions:-

(a)

This permit is subject to the conditions laid down in Section 84 of the Act, and in sub-rules (3) and (6) of Rule 76 of the Bihar Motor Vehicles Rules, 1989.

(b)

This permit is subject to other conditions attached to the permit.

(c)

The Regional Transport Authority may, after giving notice of not less than one month.....

(i)

vary the conditions of the permit.

(ii)

attach to the permit, further conditions.

Date:Place:Seal:

Signature and designation of authorised signatory

The Regional Transport

Authority,?.....Region.

Extension

Under the provisions of Rule 78, the area of validity of permit is further extended in following contiguous regions subject to the conditions set out below:-

Region

Route/Area

Conditions

Date:

Place:

Seal:

The Regional Transport

Authority,?.....Region.

Signature and designation of authorised signatory

Countersignature

This permit is hereby countersigned with effect from and the countersignature no has been issued.

Date:

Place:

Seal:

The Regional Transport

Authority,?.....Region.

Signature and designation of authorised signatory

Renewal

This permit is hereby renewed upto with effect from

Date:

Place:

Seal:

The Regional Transport

Authority,?.....Region.

Signature and designation of authorised signatory

*Strike out whichever is either not required or not applicable.

Form-P. PR. S.

[See Rule 73 (7) (iv)]

Private Service Vehicle permit

The Regional Transport Authority,.....Region.

Permit No.

1. Full name of the holder....

2. Full residential address....

3. Full business address.....

4. Make Model....Type of Vehicle

5. Chassis No Engine No.....

6. Seating capacity (including driver/attendant)

7. Hire-purchase/lease/hypothecation agreement with.....

8. The route or routes or the area or areas for which the permit is valid...

9. Classification and number of persons to be carried-

10. Terms and conditions under which they will be carried-

11. Validity of permit from to.....

12. Conditions:-

(a)

This permit is subject to the conditions laid down in Section 84 of the Act.

(b)

This permit is also subject to the condition that the holder shall not allow any person to travel in the vehicle unless such person carries with him an identity card, signed and issued by the holder, and bearing the photograph of such person and showing his name and rank or designation of the position he is holding.

(c)

This permit is subject to other conditions attached to the permit.

(d)

The Regional Transport Authority may, after giving notice of not less than one month.

(i)

vary the conditions of the permit;

(ii)

attach to the permit further conditions.

Date:Place:Seal:

Signature and designation of authorised signatory

The Regional Transport

Authority,?.....Region.

*Strike out whichever is either not required or not applicable.

Extension

Under the provisions of Rule 78, the area of validity of this permit is further extended in the following contiguous region subject to the conditions set out below:-

Region

Route/Area

Conditions

... ..

... ..

... ..

Date:

Place:

Seal:

The Regional Transport

Authority, ?.....Region.

Signature and designation of authorised signatory

Countersignature

This permit is hereby countersigned with effect from and the countersignature No has been issued.

Date:

Place:

Seal:

The Regional Transport

Authority, ?.....Region.

Signature and designation of authorised signatory

*Strike out whichever is either not required or not applicable.

Renewal

This permit is hereby renewed upto....with effect from.....

Date:

Place:

Seal:

The Regional Transport

Authority, ?.....Region.

Signature and designation of authorised signatory

*Strike out whichever is either not required or not applicable.

Form-P. PU.C.

[See Rule 73(7)(v)]

Goods Carnage Permit

The Regional Transport Authority,.....Region.

Permit No.

1. Full name of the holder-

2. Full residential address-

3. Full business address-

4. Registration mark of the goods carriage-

5. Make Model Date of first registration

6. Chassis No Engine No.....

7. Type of vehicle.....Unladen weight-

8. Gross vehicle weight.....Payload-

9. Hire purchase/lease/hypothecation agreement with-

10. Area for which the permit is valid-

11. Validity of permit From To.....

12. Nature of goods to be carried as a public carrier-

13. Nature of goods to be carried for or in connection with a trader or business carried on by the holder-

14. Conditions:-

(a)

This permit is subject to the conditions laid down in Section 84 of the Act, and in sub-rules (3) and (6) of Rule 76 of the Bihar Motor Vehicle Rules, 1989.

(b)

This permit is subject to other conditions attached to the permit.

(c)

The Regional Transport Authority, may, after giving notice of not less than one month-

(i)

vary the conditions of the permit,

(ii)

attach to the permit; further conditions.

Date:Place:Seal:

Signature and designation of authorised signatory

The Regional Transport

Authority,?.....Region.

Countersignature

This permit is hereby countersigned with effect from and the counter-signature No has been issued.

Date:

Place:

Seal:

The Regional Transport

Authority,?.....Region.

Signature and designation of authorised signatory

Renewal

This permit is hereby renewed up to with effect from.....

Date:

Place:

Seal:

The Regional Transport

Authority,?.....Region.

Signature and designation of authorised signatory

*Strike out whichever is either not required or not applicable.

Form-P.TR.V.

[See Rule 73(7)(vi)]

Tourist Vehicle Permit

The State Transport Authority, Bihar State.....

Permit No.

1. Full name of the holder.....

2. Full residential address.....

3. Full business address.....

4. Registration mark of the tourist vehicle.....

5. Make Model.....Date of initial registration-

6. Chassis No Engine No.....

7. Seating capacity (including driver/attendant).....

8. Hire-purchase/lease/hypothecation agreement with,

9. This permit is valid for the whole of India....

Bihar and the following, contiguous States:-

(i)

(ii)

(iii)

10. Validity of permit from... ..to....

11. Conditions:

(a)

This permit is subject to the conditions laid down in Section 84 of the Act, in Rules 85 of the Central Motor Vehicles Rules, 1989, and in sub-rules (2) and (6) or Rule 76 of the Bihar Motor Vehicles Rules, 1989.

(b)

This permit is subject to other conditions attached to the permit.

(c)

The State Transport Authority may after giving notice, not less than one month-

(i)

vary the conditions of the permit,

(ii)

attach to the permit further conditions.

Date:Place:Seal:

Signature and designation of authorised signatory

The State Transport

Authority,Bihar State.....

Extension

Under the provisions of Rule 78, the area of validity of the permit is further extended in the following, contiguous regions subject to the conditions set out below:-

Region

Route/Area

Conditions

Date:

Place:

Seal:

The Regional Transport

Authority,?.....Region.

Signature and designation of authorised signatory

Renewal

The permit is hereby renewed upto.....with effect from-

Date:

Place:

Seal:

The Regional Transport

Authority,?.....Region.

Signature and designation of authorised signatory

*Strike out whichever is either not required or not applicable.

Form-P.TEM.

[See Rule 73(7)(vii)]

Temporary Permit

The State/Regional Transport Authority,.....State/Region.

Permit No.

1. Full name of the holder...

2. Full residential address...

3. Full business address...

4. Registration of the vehicle....

5. Make.... Model...Type of Vehicle...

6. Chassis No.... Engine No....

7. U.W. ...G.V.W.... Pay load...

8. Seating capacity (including driver/conductor/attendant).

9. Route/Area for which the permit is valid....

10. Validity of permit from to....

11. Nature of goods, if to be carried.

12. Particulars of payment of taxes, made to other State.....

13. Conditions:-

(a)

This permit is subject to the conditions laid down in Section 84 of the Act and in sub-rule (6) of Rule 76 of the Bihar Motor Vehicles Rules, 1989.

(b)

This permit is subject to other conditions attached to the permit.

Date:Place:Seal:

Signature and designation of authorised signatory

The State/Regional Transport

Authority,.....State/Region.

*Strike out whichever is either not required or not applicable.

Extension

Under the provisions of Rule 78, the area of validity of this permit is further extended in the following contiguous regions subject to the conditions set out below:-

Region

Route/Area

Conditions

Date:

Place:

Seal:

The Regional Transport

Authority,?.....

Signature and designation of authorised signatory

The State/Regional Transport Authority, Signature and designation of authorised signatory

Countersignature

This permit is hereby countersigned with effect from..... and the countersignature no..... has been issued.

The State/Regional Transport

Authority,?.....State/Region.

Signature and designation of authorised signatory

Form-P. CON. SP.

[See Rule 73(7)(viii)]

Special Permit

The State/Regional Transport Authority,.....State/Region.

Permit No.

1. Full name of the holder.....

2. Full residential address.....

3. Full business address.....

4. Registration mark of the vehicle.....

5. Make Model Type of Vehicle.....

6. Chassis No Engine No.....

7. Seating capacity (including driver/attendant).....

8. The persons mentioned in the attached list will be visiting the following places....

9. Validity of permit from.... to....

10. Full name and address of the person who has engaged the vehicle.....

11. Particulars of payment of taxes, made to the State.....

12. Conditions:-

This permit is subject to the conditions laid down in Section 84 of the Act, and in sub-rules (3) and (6) of Rule 76 of the Bihar Motor Vehicles Rules, 1989.

Date:

Place:

Seal:

The State/Regional Transport

Authority,?.....State/Region.

Signature and designation of authorised signatory

Extension

The State/Regional Transport Authority..... Permit No....State/Region.

Having regard to the circumstances of the case, the validity of this special permit is extended as follows:

(1)

The period of validity is extended upto.....

(2)

The passenger carried in the vehicle may also visit the following places.....

Necessary fees, for such extension is recovered vide R. No dated

Date:Place:Seal:

Signature of the applicant

The State/Regional Transport

Authority,?.....State/Region.

Signature and designation of authorised signatory

*Strike out whichever is either not required or not applicable.

Form-P.C.S.

[See Rule 73(7)(ix)]

Countersignature of the Permit

The State/Regional Transport Authority,.....State/Region.

Countersignature No.

1. Full name of the holder....

2. Full residential address...

3. Full business address.....

4. Primary permit No issued by.....Transport Authority. State/Region and valid upto.....

5. Registration mark of the Stage Carriage/Contract Carriage/Private Service vehicle/Goods Carriage.....seating capacity (including driver/conductor/attendant) U. W.....G. V.W.....Pay load..

6. The route of routes or the area or areas for which the permit is countersigned.

7. Validity of countersignature from to.....

8. Nature of goods to be carried, if any....

9. Conditions:-

(a)

This countersignature as subject to the conditions laid down in Section 84 of the Act, and in Rule 76; of the Bihar Motor Vehicle Rules.....

(b)

This countersignature is also subject of the conditions attached to the primary/permit.

(c)

In case of a goods carriage this countersignature is further subject of the following conditions:-

(i)

The laden weight limits fixed for the various roads in the State of Bihar as specified in Schedule appended to the agreement shall not be exceeded.

(ii)

The vehicle shall not be used for picking up and dropping down the goods between any two points in Bihar State. .

(iii)

The vehicle shall carry a distinctive board as specified in agreement.

(iv)

The State/Regional Transport Authority may, after giving notice of not less than one month:

(a)

vary the conditions of the countersignature,

(b)

attach to the countersignature further conditions.

Date:Place:Seal:

Signature and designation of authorised signatory

The State/Regional Transport

Authority,?.....State/Region.

Renewal

The permit is hereby renewed upto with effect from.....

Date:

Place:

Seal:

The State/Regional Transport

Authority,?.....State/Region.

Signature and designation of authorised signatory

*Strike out whichever is either not required or not applicable.

Form-NP.PU.C.

[See Rule 73(7)(x)]

National Permit

The Regional Transport Authority,.....Region.

Permit No.

1. Full name of the holder.....

2. Full residential address.....

3. Full business address.....

4. Registration mark of the goods carriage.

5. Make Model Date of initial registration

6. Chassis No Engine No.....

7. Type of vehicle Unladen weight.....

8. Gross Vehicle weight....pay load.....

9. Hire-purchase lease/hypothecation agreement with.....

10. This permit is valid for the whole of India/Bihar and the following, contiguous States:-

(i)

(ii)

(iii)

11. Validity of permit; from.... to

12. Nature of goods to be carried as a goods carriage.....

13. Nature of goods to be carried for or in connections with a trade or business carried on by the holder of permit....

14. Conditions:-

(a)

This permit is subject to conditions laid down in Section 84 of the Act, in Rule 90 of the Central Motor Vehicles Rules....and in sub-rules (5) and (6) of Rule 76 of the Bihar Motor Vehicles Rules.

(b)

This permit is further subject to other conditions attached to the permit.

(c)

The Regional Transport Authority may, after giving notice of not less than one month :

(i)

vary the condition of the permit.

(ii)

attach to the permit further conditions.

Date:Place:Seal:

Signature and designation of authorised signatory

The Regional Transport

Authority,?.....Region.Bihar State

*Strike out whichever is either not required or not applicable.

Extension

The validity of this permit is further extended for the following contiguous States. (i)

(ii)

(iii)

Date:

Place:

Seal:

The State Transport

Authority,Bihar State.....

Signature and designation of authorised signatory

Renewal

The permit is hereby renewed upto.....with effect from.....

Date:

Place:

Seal:

The State Transport

Authority, Bihar State.....

Signature and designation of authorised signatory

*Strike out which is either not required or not applicable.

Form-L. AG.

[See Rule 73(8)(i)]

Agents Licence for Sale of Tickets

The Regional Transport Authority,.....Region.

Agents licence No.

1. Full name of the holder.....

2. Full address.....

3. Date of birth Educational qualification photograph of holder of size 50 mm X 60 mm

4. The holder of this licence is licensed to act as an agent for sale of tickets for travel by public service vehicles.

5. This licence is valid from.- . to.....

Date:Place:Seal:

Signature and designation of authorised signatory

The Regional Transport

Authority,?.....Region.

Renewal

This licence is hereby renewed from to.....

Date:Place:Seal:

Signature and designation of authorised signatory

The Regional Transport

Authority,?.....Region.

*Strike out whichever is either not required or not applicable.

Form-L. AG. G.C.

[See Rule 73(8)(ii)]

Agents licence for collection, forwarding or distributing goods

(Principal Licence)

The Regional Transport Authority,.....Region.

Agents licence No.

1. Full name of the holder.....

2. Full residential address.....

3. Full business address.....

4. The holder of this licence is licensed to act as an agent for collecting, forwarding or distributing goods carried by goods carriages.

5. This licence is valid from to.....

6. Principal place of business.....

7. Places of each branch office.....

(If there are more places, separate sheet must be attached)

The details of principal or branch office such as municipal house number, nearest road, by-lane, postal delivery district and other land marks in the vicinity, to enable identification of the business place, duly attested must also be attached.

8. So long as this agent's licence is valid and renewed from time to time for the premises approved and which are maintained as per provisions of sub-rule (2) of Rule 104 the holder is authorised to engage himself for carrying on the business as agent for collecting, forwarding or distributing goods carriages plying for hire.

9. This licence shall be subject to the following conditions:-

- (i)
The licence shall, subject to the provisions of Rule 104 provide adequate space for the parking of vehicle for the purpose of loading and unloading goods.
- (ii)
The licensee shall be responsible for proper arrangement for storage of goods awaiting delivery or due despatch or both.
- (iii)
The licensee shall-
 - (a)
take all necessary steps for proper delivery of the goods of the consignee;
 - (b)
be liable to indemnify the consignee for any loss or damage to goods while in his possession by taking out adequate insurance cover, where available at the cost of the consigner or consignee;
 - (c)
issue to the consigner/consignee a note only after receipt of goods for despatches stating there in their nature of goods destination; approximate distance over which the goods are to be carried, the freight charged, the service charge, if any, such as for loading and unloading, provided that service charge shall be reasonable and proof of its reasonableness established, if required by the licensing authority;
 - (d)
do not, deliver the goods to the consignee without receiving the consignee's note or any such note issued by the office which received the goods for despatch or if this note is lost is misplaced an indemnity bond covering the value of goods;
 - (e)
issue a copy of every note issued to the consigner or consignee to the driver of the goods carriage transporting the goods and shall not allow any consignment to be loaded without handing over a copy of the note in respect thereof to the holder;
 - (f)
Maintain proper record in Form A.R.T., of collection despatch, or delivery, as the case may be, of goods, the registration mark of the vehicle in which goods are carried for transportation and make the same available for inspection by the licensing authority or by any person duly authorised by it in this behalf;
 - (g)
not charge commission exceeding that fixed by the licensing authority, subject to the orders of State Government if any;
 - (h)
maintain proper account of the commission, charged by him to every operator of goods carriage engaged by him;
 - (i)
maintain a weighing device in good condition and capable of weighing at a time not less than 250 kgs;
 - (j)
not refuse to accept goods by transport without valid reasons; and
 - (k)
comply with the provisions of Rules 100, 102, 103 and 104.

Date:Place:Seal:

Signature and designation of authorised signatory

Renewal

This licence is hereby renewed from.... to....

Regional Transport Authority....Region.

Date:Place:Seal:

Signature and designation of authorised signatory

The Regional Transport

Authority,?.....Region.

* Strike out whichever is either not required or not applicable.

Form-L. AG. G.C.

[See Rule 78(8)(ii)]

Agent's licence for collecting, forwarding or distributing goods

(Supplementary Licence)

The Regional Transport Authority.....Region.

Principal Licence issued by valid from to Supplementary Licence No.....

1. Full name of the holder.....

2. Full residential address as per principal licence.....

3. Full business address as per principal licence.....

4. The licence is valid from.... to...

5. The place of branch office.....

(The details of branch office such as municipal house number, nearest road, by-lane, postal delivery district and other land marks in the vicinity, to enable identification of the business place, duly attested must be attached).

6. So long as this Agent's licence is valid and renewed from time to time for the premises approved and which are maintained as per provisions of sub-rule (2) of Rule 104, the holder is authorised to engage himself for carrying on the business as Agent for collecting, forwarding or distributing goods by goods carriages plying for hire.

7. The licence shall be subject to the following conditions:-

(i)

The licence shall, subject to the provisions of Rule 104 provide adequate space for the parking of vehicles for the purpose of loading and unloading goods.

(ii)

The licensee shall be responsible for proper arrangement for storage of goods awaiting delivery or both.

(iii)

The licensee shall-

(a)

take all necessary steps for proper delivery of the goods to the consignee;

(b)

be liable to indemnify the consignee for any loss or damage to goods while in his possession by taking out adequate insurance cover, where available at the cost of the consignor or consignee;

(c)

issue to the consignor/consignee a note only after receipt of goods for despatch stating therein the weight; nature of goods, destination, approximate distance over which the goods are to be carried, the freight charged, the service charge, if any, such as for loading and unloading provided that service charge shall be reasonable and proof of its reasonableness established, if required by the licensing authority;

(d)

not deliver the goods to the consignee without receiving the consignee's note or any such note issued by the office which recovered the goods for despatch or if this note is lost or misplaced an indemnity bond covering the value of goods;

(e)

issue a copy of every note issued to the consignor or consignee to the driver of the goods carriage transporting the goods and shall not allow any consignment to be loaded without holding over a copy of the note in respect thereof to the driver;

(f)

maintain proper record in Form A. R.T. of collection, despatch or delivery, as the case may be, of goods, the registration mark of the vehicle in which goods are carried for transport and make them available for inspection by the licensing authority or by any person duly authorised by in this behalf;

(g)

not charge commission exceeding fixed by the licensing authority, subject to the orders of State Government, if any;

(h)

maintain proper account of the commission charged by him to every operator of goods carriage engaged by him;

(i)

maintain a weighing device in goods condition and capable of weighing at a time not less than 250 kgs.;

(j)
not refuse to accept goods for transport without valid reasons; and

(k)
comply with the provisions of Rules 100, 102, 103 and 104.

Form-T. A.COM.

[See Rules 73(9) and 73(2)]

Communication under Chapter-V

To,

(Designation of the officer)

The State/Regional Transport Authority,

State of Region.

It is hereby intimated that the Transport Authority has

(1)
w.e.f granted/renewed permit no operative in.....region, by extending its validity under Rule 78.

(2)
w.e.f..granted/renewed countersignature no of permit no.....

(3)
w.e.f replaced motor vehicle no another vehicle of the same nature bearing registration mark on.....permit no.....

(4)
w.e.f transferred....permit no in the name of address

(5)
w.e.f valid the conditions attached to permit no and the variations are as follows:

(6)
w.e.f.....varied the conditions attached to countersignature no....of permit no and the variations are as follows:-

(7)
w.e.f suspended/cancelled the.....permit no....countersignature no.....of.....permit no.....in respect.....of motor vehicle no.....for the reasons stated under the provisions of clause.... of sub-section (1) of Section 86, for a period of-

Date:Place:

Signature and designation of the officer and the name of the Transport Authority and Region.

*Strike out whichever is either not required or not applicable.

Form-S. S.T. U.

[See Rule 134(1)]

Proposal regarding a scheme of road transport service to be provided by the State Transport Undertaking.

Whereas the State Government is of opinion that for purpose of providing an efficient, adequate, economical and properly co-ordinated road transport service in general/in relation to the area of /the route on.....or portion thereof should be run and operated by the State Transport Undertaking the Government of Bihar, in accordance with the provisions of Section 99 of the Motor Vehicles Act, 1988, hereby publishes a proposal regarding a scheme of road transport service, as herein under set out.

1. Full name of the Undertaking.....

2. Address.....

3. Route/Routes or Area/Areas covered by the Scheme...

4. Whether the Undertaking is proposed to operate the Road Transport Service on the said route/area covered by the scheme to the exclusion, complete or partial, of other portion or otherwise.....

5. The names and addresses of existing permit-holders operating on the routes or in the area mentioned in (3) above.

Names

Address

route/s or areas

6. The nature of the services proposed to be rendered.

7. The maximum number of vehicles proposed to ply at any one time under the scheme.....

8. The minimum number of vehicles proposed to ply at any one time under the scheme and the minimum number of

daily trips.....

9. Type or types of vehicles proposed to be used on the service and approximate seating capacity. vehicles of not less than.....and not more than seats.

10. Number of trips proposed to be on each route.

11. Standard rate of fare proposed to be charged.....

12. The date from which the undertaking is proposed to commence the operation of the services (if dates are different for various routes or areas, mention the same)....

13. The names of the Regional Transport Authorities under whose jurisdiction the route(s) or area of any portion thereof lies.

14. Any other information....

The notice is hereby given that any person may, within 30 days from the date of publication of the proposed scheme in the official Gazette, file objection thereto before the State Government...in the manner prescribed in Rule 132 of the Bihar Motor Vehicles Rules.

Patna:Date:

By order and in the name of the Governor of Bihar.Secretary, Transport Department,Bihar, Patna

Form-A S. S.T. U.

[See Rule 137]

Approved scheme of.....

In accordance with the provisions of Section 100(3) of the Motor Vehicles Act the below mentioned approved scheme is hereby published in the Official Gazette.....

1. Full name of the Undertaking.....

2. Address.....

3. Route (s) or area covered by the scheme....

4. The Undertaking will, operate Road Transport Service on the said route/s or area covered by the scheme to the exclusion, complete or partial, or other persons or otherwise (mention particulars in the case of partial exclusion).

5. The nature of the services to be rendered....

6. The maximum number of vehicles which shall ply at any one time under the Scheme.

7. The minimum number of vehicles it shall ply at any one time under the scheme, and the minimum number of daily vehicle trips...

8. Type or types of vehicles to be used on the service and approximate seating capacity vehicles of not less than and not more than seats.

9. Number of trips to be run on each route....

10. Standard rate of fare to be charged...

11. The date(s) from which the Undertaking will operate (if dates are different for various routes or areas mention the same).

By order and in the name of the Governor of Bihar.

Patna:Date:

SecretaryTransport Department, Bihar, Patna

Form-COMP. A

[See Rule 226]

Application for compensation arising out of the use of motor vehicles

To,

The Motor Accidents Claims Tribunal residing at Applicant(s) vsresiding at Opposite Party

1. Full name(s) of applicant(s) with age.....

(i)

(ii)

(iii)

2. If accident has caused death:

(a)

relationship of each applicant with the deceased.....

(b)

age of deceased.....

3. Local address of applicants.....

4. Permanent address of applicants.....

5. Monthly income of injured person or deceased.....

6. Nature of injuries sustained and disablement caused.....

7. Date and place of accident.....

8. Registration mark of the motor vehicle involved.....

9. Name and address (if known) of

(a)

driver of the motor vehicle.....

(b)

owner of the motor vehicle.....

(c)

the insurer of the motor vehicle.....

10. Brief particulars of the accident.....

11. Quantum of compensation claimed and basis thereof.....

12. Grounds on which compensation is claimed (mention briefly the cause of action).

13. Whether demand for compensation has been made, if so from whom and with what result.....

14. If claim for compensation is not made within sixty days of accident, the grounds thereof.....

I hereby certify that the statement of facts contained above are to the best of my knowledge and belief, true.

Date:

Place:

Signature of claimant or authorised agent.

Form-M.V. Accident

[See Rule 215(4)]

Accident Report Form

1. Name of the police station.....

2. Description and registered number of motor vehicle.....

3. Condition of brakes and brake connections.....

4. Condition of steering, steering arms and connections and engine and engine control

5. Condition of gear-box and differential.....

6. Frame, (side, front and rear members).....

7. Wheel, (axles and springs front and rear).....

8. Any other defects worthy of special mention.....

9. Was accident, in the opinion of the inspecting officer, due to any mechanical defects, in the vehicle? (this opinion to be expressed in fatal case only).....

10. Are Registration and tax in order.....

11. Is Insurance in order?.....

12. (If a transport vehicle) are the certificate of fitness and permit in order?

13. Date, time and place of accident.

Signature of the Inspecting Officer

Name, Designation,

Regional Transport office.....

No.....

Date

Forwarded with complements to the.....

Regional Transport Officer

Form-C.W.F.

[See Rule 246(1)]

Application for compensation in respect of liability without fault

I.....son/daughter/wife/widow.....residing at.....having been injured in motor vehicle accident hereby apply for

the grant of compensation for the injury sustained necessary particulars in respect of the injury, vehicles, etc. are given below:-

I.....son/daughter/wife/widow.....of.....residing of...hereby apply as a legal representative/agent, for the grant of compensation on account of death of Shri/Kumari/Shrimati/son/daughter/wife/widow of.....Shri.....Shrimati.....who died/was injured in a motor vehicle accident. Necessary particulars in respect of the deceased/injured, the vehicles etc. are given below:-

1. Name and father's name of the person injured/dead (husband's name in the case of married women and widow).....
2. Full address of the person injured/dead.....
3. Age of the person injured/dead.....
4. Occupation of the person injured/dead.....
5. Place, date and time of the accident.....
6. Name and address of police station..... in whose jurisdiction the accident.....took place or was registered...
7. Was the person in respect of whom.....compensation is claimed travelling.....by the vehicle involved in the accident? If so, give the name of place of starting of journey and destination.....
8. Nature of injuries sustained and....continuing effect, if any of the injury
9. Name and address of the Medical Officer/practitioner if any, who attended on the injured/dead.....
10. Name of the injury and whether it caused permanent disablement or not?
11. Registration number and the type of the vehicle involved in the accident.
12. Name and address of the owner of the vehicle.....
13. Name and address of the insurer of the vehicle.....
14. Number and details of certificate of insurance or the policy of insurance...
15. Has any claim been lodged with the owner/insurer and if so, with what result?
16. Name and address of the applicant.....
17. Relationship with the deceased.....
18. Whether he has been paid any compensation out of the Solatium Fund.....
19. Any other information that may be necessary or helpful in the disposal of the claim.....

I.....solemnly declare that the particulars given above are true and correct to the best of my knowledge.

Date:Place:

Signature or thumb impressionof
the applicant

Form-L.TEM.

[See Rule 260(1)]

Temporary acknowledgement in lieu of driving licence

1. I have taken possession of the driving licence described below:.....

Driving licence No issued by Valid upto for class of vehicles authorising the holder to drive transport vehicles (Badge No. if any)

Full name of the holder Present address.....

2. The holder is hereby authorised to drive so long as he is driving in accordance with his driving licence.
3. This authorisation is valid until or until the driving licence is suspended or cancelled by competent authority, whichever is earlier.

Date:Place:

Signature and designationof
the authority

Extension

4. The above authorisation is hereby extended until on the same conditions, with effect from.....

Date:Place:

Signature and designationof
the authority

Form-C.TEM.

[See Rule 251(1)]

Temporary acknowledgement in lieu of the certificate or Registration of motor vehicle described below:-

Registration mark registered by.....

Make Model.....

type and class of vehicle Fuel Capacity.....

Chassis No Engine No S. C. (including driver) U.W.....G.V.W Pay load.....

Name of the registered owner.....

Address

2. The registered owner is hereby authorised to use the vehicle so long as he is using the vehicle in accordance with the certificate of registration.

3. This authorisation is valid until.....or until the certificate of registration is suspended or cancelled by competent authority, whichever is earlier.

Date:Place:

Signature and designation of
the authority

Extension

4. The above authorisation is hereby extended until on the same conditions, with effect from.....

Date:Place:

Signature and designation of
the authority

Form-R. E.

[See Rule 253(1)]

Certificate of refund

(Payable within 90 days from the date of issue)

To,

The Treasury Officer.....The

State Bank of India?.....Bank.....

From,

The office of the District Transport?...../Regional

Transport Office

I hereby certify, the refund of fee, as hereinafter set out:-

1. Full name and address of the person to receive the refund

2. Amount of fee initially paid by such person

3. Such fee was paid on account of

4. Refund of fee is admissible on account of

5. Amount of refund admissible

Please pay to-----

(in figure) Rs.

(in words) Rs.

A note of refund has been made on the original document and in the refund register of this office.

Date:Place:

Signature and designation of
the authority

*Strike out whichever is either not required or not applicable.

The Second Schedule

[See Rule 19 (i) & 31 (i)]

Badge to be displayed by driver and conductor

Bihar Driving Licence NoName

.....Licensing Authority.....

Bihar Conductor's Licence NoName

.....Licensing

Authority.....

1. The badge shall be rectangular in shape and measuring 60 mm. x 30 mm.
2. The badge shall be of hard plastic and the particulars to be exhibited on the badge shall be engraved on it.
3. In case of driver's badges the particulars shall be in black on white background and in case of conductor's badge they shall be in white on black background.

The Third Schedule

[See Rule 46(4)]

Registration Authority at

Dist. Code to be used by it

Patna

1

Gaya

2

Bhojpur

3

Chapra

4

Motihari

5

Muzaffarpur

6

Darbhanga

7

Monghyr

8

Begusarai

9

Bhagalpur

10

Purnea

11

Dumka

12

Hazaribagh

13

Ranchi

14

Palamau

15

Jamshedpur

16

Dhanbad

17

Chaibasa

18

Saharsa

19

Bokaro

20

Nalanda

21

Bettiah

22

Giridih

23

Dehri

24

Jahanabad

25

Aurangabad

26

Nawada

27

Gopalganj

28

Siwan

29

Sitamarhi

30

Hajipur

31

Madhubani

32

Samastipur

33

Khagaria

34

Sahebganj

35

Godda

36

Kisanganj

37

Araria

38

Katihar

39

Deoghar

40

Gumla

41

Lohardagga

42

Madhepura

43

The temporary registration mark shall consist of letter BHR, followed by district code and a number containing not more than four figures.

The Fourth Schedule

[See Rule 186(i)]

Distinguishing mark for a trailer

The distinguishing mark to be exhibited on the rear of a trailer or on the last trailer of a train of trailers, shall be as follows, and the dimension shall not be less than those prescribed hereunder.

120 M.M.

40 M.M.

160 M.M.

40 M.M.

The Fifth Schedule

(See Rule 192)

Traffic Control Signals

Signal-1

To stop a vehicle approaching from behind. The signaller should extend his left arm horizontally from the shoulder and parallel to the ground, with the palm facing front, its back being towards the rear vehicle as shown in the illustration.

Signal-2

To stop vehicle coming from front. The signaller should raise his right hand above his head slightly extending to the front with fingers closed and the palm facing the on coming traffic as in the illustration.

Signal-3

To stop vehicles approaching simultaneously from front and behind. The signaller should extend both the arms as described in Signals-1 and 2 as shown in the illustration here.

Signal-4

To stop traffic approaching from left and wanting to turn right. This signal will be given by extending the left arm as in Signal 1 and the right arm extended a little forward with the palm facing downwards as shown in the illustration here.

Signal-5

To stop traffic approaching from the right and to allow traffic approaching from the left to turn right. The signal will be given by extending the right arm as in Signal-2. Except that the arm will be side ways and the palm facing right as shown here.

Signal-6

To allow traffic coming from the right and turning right by stopping traffic approaching from the left. The right hand is raised to the position as shown in Signal-2 and the left hand sideways with the palm facing left as shown in the illustration.

Signal-7

Warning signal closing traffic. This signal is necessary as a preliminary to opening the other direction of traffic after turning right or left. Come on 1 Backoning on a vehicle approaching left. The right arm should be in a position as in Signal-2, and the left arm should be raised from the elbow upwards and brought upto the position of the shoulder. The signaller should also look to the left.

Signal-8

This movement should be repeated so that the motorist can understand that he is being called up. Come on 1 Backoning on vehicles approaching from the right. The left arm should be stretched as in Signal-1, and the right arm should be raised from the elbow upwards and brought in the position of the shoulder. The signaller should also look to the right.

Signal-9

Come on 1 Backoning on a vehicle, from front. The right hand should be raised from the elbow, back of the palm facing towards the vehicle.

Signal-10

The movement should be repeated.

The Sixth Schedule

[See Rules 256 and 259]

Uniform to be borne by Officers and Enforcement Staff of Motor Vehicles Department, Mobile Squad
Inspectors/Enforcement Inspectors

Head dress

-

Forage cap with red peak.

Body dress

-

Khaki Bush Shirts and slacks.

Leg dress

-

Socks and Brown shoes.

Badges

-

Title shoulder (Bihar Mobile Squad) and cap badge.

Winter

-

Khaki Great Coat.

Constables -

Head dress

-

Forage cap with red stripes.

Body dress

-

Khaki shirts and belt like police.

Leg dress

-

Brown shock and patties and boots.

Badges

-

Title shoulder (Bihar Mobile Squad).

Winter

-

Jersey Pullover and Great Coat.

Non-Police Enforcement Officers-

(1)

Forage cap khaki of the type used by Police Officers, with cap badge.

(2)

Khaki woollen overcoat, or woollen jersey and web belt.

(3)

Bush Shirt Khaki.

(4)

Stack Khaki.

(5)

Socks brown.

(6)

Shoes brown.

(7)

Shoulder badges "B. M. V. D." and 3 stars.

(8)

Water proof coat in rainy season.

(9)

Khaki Great Coat in winter season.

Related AI tags, queries and research notes

Translation